

FIVE YEARS IN TEXAS;

OR,

WHAT YOU DID NOT HEAR DURING THE WAR

FROM

JANUARY 1861 TO JANUARY 1866.

A NARRATIVE OF HIS

Travels, Experiences, and Observations,

IN

TEXAS AND MEXICO.

BY

THOMAS NORTH.



CINCINNATI:

ELM STREET PRINTING CO., 176 & 178 ELM STREET.
1871.

FIVE YEARS IN TEXAS;
OR,
WHAT YOU DID NOT HEAR DURING THE WAR
FROM
JANUARY 1861 TO JANUARY 1866.
A NARRATIVE OF HIS
Travels, Experiences, and Observations,
IN
TEXAS AND MEXICO.
BY
THOMAS NORTH.



CINCINNATI:
ELM STREET PRINTING CO., 176 & 178 ELM STREET.
1871.

The Project Gutenberg eBook of Five Years in Texas

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Five Years in Texas

Author: Thomas North

Release date: July 15, 2015 [eBook #49444]

Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/49444

Credits: Produced by Moti Ben-Ari and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK FIVE YEARS IN
TEXAS ***

**FIVE YEARS IN TEXAS;
OR,
WHAT YOU DID NOT HEAR DURING THE
WAR**

**FROM
JANUARY 1861 TO JANUARY 1866.**

A NARRATIVE OF HIS
Travels, Experiences, and Observations,
IN
TEXAS AND MEXICO.

BY
THOMAS NORTH.

CINCINNATI:
ELM STREET PRINTING CO., 176 & 178 ELM STREET.
1871.

Entered according to Act of Congress, in the year 1871,
By THOMAS NORTH,
In the Office of the Librarian of Congress.

PREFACE.

To conceive the idea, and execute the purpose of making a book, is, to a modest man, not a little monstrous; and yet, modest or immodest, monstrous or not, the author makes his best bow to the reader, and holds himself subject to criticism for not making it better. But many are running to and fro in the earth, and knowledge is being increased; for the runners, are they not making books for the million? And having run somewhat with the runners ourself, we might as well tell our story of travel too. The story is not of sailing round the world with Captain Cook, or any other Sea King. Nor is it one of Orient—of Oriental climes or times, or of its discords or chimes, but it is one that pertains to stirring events, in stirring times, in the most stirring of all stirring climes—America, our own sweet land of liberty.

The Author, in justice to himself, will state that in preparing this book for publication, he has been sore pressed for time to bring it out with that degree of merit, literary and otherwise, that he would have it possess.

The Eulogium on Hon. Martin P. Sweet, which we offer as our prelude, is at once an act of friendship and pleasure, as well as of justice, to one of such brilliant mental endowments and genial qualities of heart, and we believe our readers will so regard it. Besides, while some may not fully appreciate the relevancy of the Eulogy to the residue of the book, yet, for himself, the Author sees and feels a species of mystical connection between Mr. S. and himself in all his travels and experiences in Texas and Mexico. And so much the more because of his earnest prophetic endeavor to dissuade him from going there.

With this brief preface, we submit this volume to the public eye, hoping to please and interest, promising that we will do better next time, if we ever publish another book.

CONTENTS.

	PAGE.
CHAPTER I.	
Hon. Martin P. Sweet—Interview with and Eulogium	<u>9-29</u>
CHAPTER II.	
Trip to Galveston—Memphis Gentleman	<u>30-40</u>
CHAPTER III.	
Social Types—Henry Clay—General Polk	<u>41-44</u>
CHAPTER IV.	
Voyage Down the Mississippi—Poem on "Varieties' Theater."	<u>45-50</u>
CHAPTER V.	
New Orleans—Description of—Ocean View of Galveston—The Island, How Formed—Commercial Importance of, etc.	<u>51-64</u>
CHAPTER VI.	
Effect of Climate on Tastes, Appetites and Temper—The Enraged Clergyman—"Renegade Americans"—Morals and Religion—Reign of Terror—The Robbery	<u>65-70</u>
CHAPTER VII.	
Texas Oath of Office—"Code of Honor"—Dueling Spirit—Judge Lynch and Horse Thieves—The Doctor of Divinity—Conscript Law—"Like People, Like Priest"	<u>71-75</u>

CHAPTER VIII.

The Doctor's Prize Ring Illustration—The Wealthy Planteress—The Doctor's Dueling Card—Colloquy with the Planteress—The Doctor and the Judge—He Challenges the Latter—Shooting on Sight—Masonic Reconciliation

[76-85](#)

CHAPTER IX.

Babel of Tongues—Sam Houston—He Comes to Galveston to make a Speech—A Committee Wait on Him—He Makes a Speech—His Appearance On the Balcony of Tremont Hotel

[86-91](#)

CHAPTER X.

Houston's Speech—Col. Moore's Regiment—General Houston's Review of it—Williamson S. Oldham and Judge Campbell

[92-98](#)

CHAPTER XI.

Arguments on Secession in Outline

[99-101](#)

CHAPTER XII.

Texas Never Invaded—Feeling of the People—Galveston Retaken—General Sherman and Lt. Sherman—Solemn Scene Between Them—General Magruder and General Hebert

[102-113](#)

CHAPTER XIII.

The Federal Fleet—"Nicaragua Smith."

[114-117](#)

CHAPTER XIV.

The Captured Letter—Mrs. E.'s exile—Her Companions—Lewis and Emma—Lieutenant H.

[118-154](#)

CHAPTER XV.

Lawlessness and Crime—Doctor O. and the Overseer—Doctor F. Assassinated—Capt. Carr and Mr. Smythe

[155-161](#)

CHAPTER XVI.

The Two Days' Meeting—Power of Prejudice—The Feast at Our House—Brigadier General M. and Staff

[162-166](#)

CHAPTER XVII.

The Conscript Law—How the Writer Beat It, and How at last It Beat Him—Trip to Mexico—Matamoras—General Mejia—The Situation—Rev. Dr. L. and the Writer—Petitioning Maximilian—Preaching in Varieties' Theater

[167-172](#)

CHAPTER XVIII.

More about Texas—Plot against the Writer's Life—Pretext for the Attack—Prompt Action of Deputy Sheriff Hardin—Fear of Secret Assassination—Advised to Leave the Place—Went to San Antonio—Thence to Mexico—Lost in the Wilds of Western Texas—How We Got Out—The Two Mexican Rancheros—Gen. F. J. H.—Extradition of Don Manuel G. Rejon—Cortinas—The Writer's Family Flooded Out in San Antonio—They Come to Him in Matamoras

[173-182](#)

CHAPTER XIX.

Lee's Surrender—Effect on Texas Soldiers—Trip to New Orleans—Family Ship North—Writer's Return to Texas—He Visits Brenham, Austin, San Antonio and New Braunfels—Rev. Josiah Whipple—The Old Woman in Austin What

Wouldn't Hear the Blue Coat Preach [183-190](#)

CHAPTER XX.

Governor Hamilton—The Thirty Neros—The Old
German and His Wife—Fight with Indians—A
Native Texan's Opinion of Germans [191-195](#)

CHAPTER XXI.

Texas—Topography, Climate and Products of [196-210](#)

OLD LETTERS.—POEM.

Canto I. [213-222](#)

Canto II. [223-225](#)

Canto III. [226-231](#)

FIVE YEARS IN TEXAS.

CHAPTER I.

HON. MARTIN P. SWEET—INTERVIEW WITH, AND EULOGIUM.



n the month of November, 1860, shortly after the election of Abraham Lincoln to the Presidency of the United States, Hon. Martin P. Sweet came into the Circuit Clerk's Office of Stephenson County, Illinois, where the writer was acting as deputy to the regular Clerk—Mr. L. W. Guiteau—and addressing himself to us, said:

"Mr. N., are you busy?"

"Not very," we replied.

"If you can spare the time I would be glad of an interview with you at my office."

Laying aside the pen we went with him, and after being seated together in his private room adjoining the main office, he remarked:

"Mr. N., I understand you are thinking of going to Texas."

"I am not only *thinking* of it, Mr. S., but the purpose is already fixed to go."

"I regret to hear it," he said.

"Why so, Mr. S.?"

For a few moments he was silent, his eye scanning the figures of the beautiful carpet upon the floor; then calmly raising his face and fixing his full eyes, that looked nigh unto bursting, upon us—such was their intense earnestness, indicating the struggle of soul within, the play of emotions, honest and transparent; and holding the gaze upon us, while as yet no word from his eloquent lips had broken or changed the potent spell thereof—suddenly those eyes suffused with tears incontinent, the requisite power of speech had come, and he replied fervently:

"You ask why I regret to hear it; I will tell you why. We are friends, and have been friends for many a long year, and that, too, on terms of more than ordinary meaning, and sacred beyond the degrees of worldly friendship. The tie that hath bound us, you know, has been that of a deep and ardent Christian faith, which, though seeming to part asunder at times under the severe strain of mutual fault and criticism, producing the while outward non-affiliation, yet the substratum of unity is there, and its brotherly elasticity is too great to be snapped in twain. And however far apart the forces of the world may swing us, on the pendulum of time, still the return movement is certain and sure."

Thus spake a friend. And then, laying his hand upon his heart, he proceeded to say:

"Mr. N., I have loved you"—and pressing his heart said—"I have loved you *here*. It was years ago we learned to love each other as brother-friends, in earnest truth. You are still in my heart, and I believe I am in yours. You know my motto—'once in grace, always in grace'—once in friendship, always in friendship—once in love, always in love. We would not change it if we could, and could not if we would. I have never turned you out of my heart, never can, and never shall. My heart knows and bows to no destroying vicissitudes. Our friendship has no mere worldly cast, breathing the common atmosphere of self-interest, and putting on the offensive airs of self-righteousness; nay, it endures while witnessing the death-struggles of all such moral and social littleness in ourselves and in others.

"And now," continued he, "from these considerations, permit me to state further why I regret your contemplated move. My regard for the personal welfare of yourself and yours is too warm and deep, not to regret seeing you float to the Southern extreme of American society at the present juncture of our National affairs.

"The loud blast of secession is already heard in the South, and I am impressed that the Southern sisterhood of States will unite in a desperate effort to dissolve this Union and destroy the General Government. And that no renewal of compromise effort can save the tremendous shock of war, between the North and South, that portends in the political heavens. And I now feel bound to say to you, though in confidence, what for wise political reasons I have not dared to utter to any political friend, that I *more* than *fear*

—*I believe*—this Government is going to ruin! Presaging wrath is borne on every breeze, and tells of the coming woe!

"To me, this is no chimera of an overwrought imagination, but the serious, sober tone of destiny that comes thundering along the pathway of nations, and having shattered many nations, and buried them in the dust of the sepulchral past, no better fate may await ours. God save us! if that be possible; but it seems otherwise to me.

"And, friend N., if the half of my forebodings shall prove historic verity not far in the future, which side the division line do you wish to be found? To ask the question, I know is to answer it. You and I both hail from adjoining counties in the old Empire State as our fatherland, and are now citizens of the Empire State of the great Northwest. The one gave us birth, and nursed us to the years of early manhood. The other is our adopted State, where we have reached the strength and vigor of intellectual manhood. There we knew and enjoyed the blessings of freedom—freedom of opinion and of speech. Here the same, and not one degree north or south of the same latitude."

Here our brilliant friend drew a picture of suffering, in prospect for ourself and family, so vivid as to rival St. Paul's descriptive list of his own sufferings, by land and by sea, among false brethren, among Greeks and barbarians, in bonds and imprisonment, which awaited him in his journeyings from city to city.

In that description the writer saw himself served with a notice from the "Ticket of Leave Man," to quit the country in a given number of days, or hours, and in default thereof to abide the consequences—such as a free passage at sea, bound to a plank, or headed up in a barrel, companion and food for friendly sharks, or other monsters of the dark blue deep; or left, by the mob infuriate, "Looking up a black jack," as the chilling parlance of the country expresses it. And he saw the secret assassins in the forest nightshade, or in some dark and unfrequented nook, plotting against his life—saw the dagger gleaming in the dark, heard the death-dealing cartridge chambered in the revolver or derringer, the trial click of the hammer, and the adjustment of the cap. And then saw them emerge from their dark hiding place, and take position near the pathway of the unsuspecting passer-by, to shoot or strike him down, just when he thinks no danger nigh. But failing

here, because their victim reaches home by a course not in their plans, he saw the human bloodhounds lurking and skulking about his house, at the midnight hour, seeking quiet entrance to his chamber of rest. They enter, and there find the doomed one at rest with the loved ones, in the unconscious bliss of sleep, while the moonlight shimmers from the light breeze-waving trees, through the open lattice, in fantastic shapes of light and shade, upon the chamber wall, just o'er their pillowed heads, so soft and so silvery. The steel is in the assassin's uplifted hand. Witnessing angels are moved at the fearful sight, and cry out—"Stay thy hand! and hurt not the man!" but lo, 'tis not the hand of an Abraham that holds the deadly knife on high, but of the cruel assassin, whose soul communes not with angels of good, but is in league with angels of evil, who in cooler mood might relent the fiendish order to strike—if that were possible with evil demons—but being now at the mighty on-rush, like lightning the fatal blow descends; the warm blood flows, a life ebbs away, and the cowardly wretches retreat under cover of night, followed by the wails of the widowed wife and her helpless children, bereft in a moment of husband and father!

Thus did Mr. S. picture things on the Southern sky, in vividness of eloquent speech, which the writer rarely ever heard equaled—not more than half a dozen times in his life, at most. His soul caught the true image, and his language made it seem to one present and real.

As compared with other men he excelled in most of the qualities that constitute a successful public speaker, or private conversationalist. But comparing him with himself, it is difficult to determine in which he was the more excellent. His nature was spontaneous to an exceeding degree in every capacity and relation of life. The absorbing and evolving power of his intuitions was so remarkable that a book, heavy or light in tone of thought, was mastered by him as a mere breakfast spell. Memory was ever a faithful sentinel at his mental door, and every fresh thought passing its threshold was imprisoned there for life. In the more rigid sense of the schools he was never, perhaps, a systematic student; which might be urged by some as a fault, and the conclusion is logical on general principles. But he was a student, nevertheless, after nature's own style. He was nature's own genius, and could not be confined to the plots and plans of books—not even the books of the law. His soul was too thirsty to be slaked with legal waters. It looked up to the mountains for irrigation from the gospel waters of the

Spirit. Once on a time a young chip of the law challenged him on his inattention to the books, to whom he replied: "There are two classes of lawyers: those who make the books, or furnish the material for them, and are lawyers without them, and those who study the books to be lawyers at all."

As a jury advocate, as a platform speaker, as a popular orator on political and other occasions, it is conceded by those who knew him best, professionally and otherwise, that he never had his superior, and few if any equals in the whole Northwest. Nature had endowed him with a voice of surpassing compass and richness for oratorical purposes, and had breathed into his great soul a spontaneity of warm impulse and thought, to back and animate it, so that, whether he spoke in tenor or baritone, or deep basso, one always heard a soul-voice from the speaker.

His whole character, from top to bottom, was stratified with moral simplicity and a broad catholicity of temperament, which, under the guidance of his comprehensive intellect, brought him into rapport with truth wherever found. He thought, and felt, and spoke, in veins of enthusiasm, and hence was rather impatient of conservative restraint. He always entered his appearance against injustice and wrong, in radical pioneer style, with a directness of purpose that would see the beginning of the end at once. He never impressed one with the idea, in his public efforts before courts, or juries, or popular audiences, that he sought to produce sensational effects; nay, he was always too full of his subject for that—so full that some, in envy, or jealousy, or ignorance, might write him down a wild enthusiast, and at times a fanatic, because he believed the lions in the way, where most men feared to travel, could be slain and put aside; but we shall not so write him, for we know him better, and have a better chart of his character. From long personal intimacy with him we understand with what generous prodigality nature lavished upon him powers *sui generis*, and beyond those of most men, and above appreciation by the green-eyed few. If he were not perfect, as the religious legalist counts perfection, and had any marked faults, as all great men are said to have, the intelligent reader will not fail to appreciate the point when we say that peculiar faults, either secret or overt, seem quite inseparable from the characters of geniuses; and more, these very faults serve as foils of contrast to set off to greater advantage and glory

their superior excellences, while teaching us not to fall down and worship them as gods, for they are but men in common with other men.

Mr. S. stood aloof the major portion of his life from the technical distinctions and peculiar customs of the religious sects, and the more strenuous and imposing they were the less real fellowship from him. He thought he saw in the tone of creeds, old or new, as managed by human fallibility, the old "Yoke of bondage"—the imposition of tyranny—the reproduction of the old spirit of Judaism, in a display of "the commandments of men." And yet, in default of the grander development of the coming kingdom—the one organic headship of Christ, and the one all-pervading, and all-comprehending unity, under that headship—he recognized the preliminary usefulness of the sects, in keeping mankind beating the bush for religious truth, and making endeavors toward pure living. Hence his motto was: "The seed of the true church is scattered among all the sects, and will be gathered into one in the fullness of time."

From this standpoint he could never regard the distinctive features or claims of any existing sect as paramount to those of another, or as promising to transcend all others, absorbing them into a visible, vital oneness, in the final outcome of the conflict between modern sects. But believing, as a matter of the deepest faith with him, and the most unquestionably certain teaching of Christ, and what appeared to most people Utopian, that the true church on earth was intended by its divine Founder to be like its counterpart in heaven—a vital, visible, organic unity—he could not, at any time in his life, long yield himself to sectarian embraces. Here is the true explanation of the *ins* and *outs* that he practiced in this direction. When he went *in* he was esteemed just converted. When he went *out*, backslidden and lost—so reckoned the sectarian treadmill brother in his case, who failed to penetrate below the surface of his character, and did not see him *as* he was, and *where* he was.

The truth is, the writer never knew a man in whose subjective life the religious element was more potential. It was a profound inspiration, and the mainspring of his whole life-movements. And even when some of those movements became irregular and tangled from fractures or weakness in subordinate machinery, the mainspring was there, performing its functions, and kept him in motion. In every speech he ever made, at the bar, on the

stump, or elsewhere, this inspiration was in his soul, came up to his lips, and gave them their greatest power.

The most elegant and moving strains of eloquence he ever uttered came from this wellspring of the divine within him. It breathed in every breath, it toned every word, it warmed every impulse, it was the muse of every sentiment, it was the "fourfold chord" of his friendship; it was the tidal wave of his soul, hurling the shore rocks of biting sarcasm and scathing invective against evil and wrong. At such times his very lips seemed formed by nature for this kind of work, and woe betide the luckless man against whom he employed them. This divine passion gave him "cloven tongues of fire," and made him on occasion a pentecost of eloquence.

Congress was the ambition and disappointed hope of his life. So with Webster, Clay, and Calhoun, in regard to the Presidency of the United States. They were said to be too great for the position, which, of course, was intended as a high political compliment, meritoriously given to offset their disappointment. The compliment belongs with equal propriety to the subject of our sketch in his life-long aspirations for Congressional honors.

With his peculiar talents he doubtless would have shone more in the popular branch of the National Legislature than in the Senate. He was, by nature and education, the people's representative. But as a politician, in his own interest and for his own ends, he was a failure. There were plenty of men, with half his talent, that could and did beat him to death at the wheel of political fortune. Yet he was a king among his peers, though never crowned, but a king "for a' that."

He was the Whig candidate for Congress in 1844; and to show his popularity, though a Whig, and his party, on a strict party vote, in the minority by several hundred votes in the Congressional District, yet he swept it, and entered Nauvoo with a majority of between four and five hundred votes. But there the vote was solid against him. Joe Smith had a revelation the day before that the Mormons must vote for the Democratic candidate. And so he was beaten by the Mormons, who belonged to no party, but were up for bargain and for sale. Mr. S. would not soil his honor by making a bid for their vote.

He was candidate again, in 1850, against the Hon. Thompson Campbell. Again he carried the district, entering Jo Daviess, his competitor's own

county, with a majority of between three and four hundred votes. But the local feeling there for the home candidate overcame the majority, and defeated him again. When it is remembered what partisan odds he had to overcome in these two contests, amounting to a diversion of a thousand or more Democratic votes, and would have been triumphantly elected in the one case but for the treachery of the Mormons, and in the next but for the local feeling in his competitor's home county, preferring a home candidate, with the wholesale bid of Campbell for the abolition vote in certain localities, touching the abolition of slavery in the District of Columbia; we say, taking these things into the account, they exhibit the immense power and popularity of Mr. S.

Was he too honest for a politician? Aye, that was it. He reposed too much confidence in the professions of political friends. They took advantage of confidences ingenuously imparted, and slew him at the gate of triumphal entry. And some did it who had eaten bread from his professional hands. Such is life in this world of strife. Once when the election returns revealed their perfidious betrayal of him he cried out with a voice that could be heard from far: "Three cheers for Judas Iscariot! hurrah! hurrah!! hurrah!!!"

He was a life-long Whig and Republican, and did much heavy work for his party, but official recompense never came—a marked example of the proverbial ingratitude of political parties. Others entered into his labors and took his reward.

After months of severe suffering with malignant erysipelas, he paid the debt that all must pay, which balanced the books for this world, except that the balance sheet, if left unstruck by the hand and seal of the death-king, would show him a heavy creditor of his country. He died during the December term of the Stephenson County Circuit Court, A. D. 1864, his Honor, Benj. R. Sheldon, presiding.

The Hon. Thos. J. Turner, a contemporary of the deceased at the bar, arose in Court and said:

"It is difficult for me to find words to express what we all feel on this solemn occasion. Hon. Martin P. Sweet is dead. We shall not again hear from his lips the burning eloquence that in times past has thrilled the court and the bar, as he held up to view the enormities of crimes which he had been called upon to prosecute; or the melting pathos with which he

captivated the sympathies of jury and people, while defending those he regarded innocent. Few men ever possessed that magnetic power which chains an audience in a greater degree than did our departed friend.

"It is not alone at the bar that he has left his impress as a leading mind. In the arena of politics, and in the sacred desk, he was alike conspicuous. Logical in argument, terrible in invective, and quick in repartee, he carried the judgments of the jury or an audience. Or failing here his quick sympathies and deep pathos led them along against the convictions of judgment. Such was Martin P. Sweet as an orator and advocate. A self-made man, he surmounted difficulties which would discourage and defeat others, and reached a position at the bar second to none, and established a reputation as an orator of which any man among us might well feel proud.

"But it is not as a public or professional man alone that we mourn him to-day. Mr. Sweet immigrated to Winnebago County, in this State, in the year 1838, where, with his own hands and the help of his wife, he erected a comfortable log-house, and there entered upon that chimerical course of life which, at some time or other, in the life of almost every lawyer has held out the promise of ease, self-culture and intellectual enjoyment—the life of a farmer. But he soon found that the fields would not yield a harvest without incessant toil, and that calves and pigs did not spring indigenous from the soil. And in 1840 he left his farm and removed to Freeport, where he remained, with the exception of two or three years he was in the ministry, until his death.

"On opening an office in Freeport he soon secured a remunerative practice, and took a first rank at the bar throughout the circuit. His services were sought after wherever important cases were to be tried, or legal ability was required. Among the traits of character that endeared Mr. Sweet to the members of the profession were his urbane manners, his nice sense of professional honor, and his kind and courteous bearing toward those who were opposed to him. In these respects he has done much to elevate the standard of professional ethics.

"In private life he was generous and urbane, and had many friends, with few if any enemies. In his death the bar has lost one of its brightest ornaments, the city a good citizen and zealous friend, and the County and State an able defender of their rights. For all these we mourn him. There is

still another circle that mourns him with a deeper grief—the charmed circle of home. The sorrow which reigns there is too sacred to be spoken of in this place. With closed eyes and silent lips, all that was mortal of our friend sleeps just where he desired his last sleep should be, beneath the green sods of this beautiful prairie land, which in life he loved so well; while his spirit, we trust, has entered upon higher and holier joys, and more sublime pursuits than this earth affords.

"Let us, my brethren of the bar, while our eyes are suffused with tears, and our hearts bowed with sorrow over his grave, resolve to emulate his virtues, to follow his example, and avoid and forget his faults—if he had any—so that when our work on earth is done, and when our names maybe mentioned, as the name of our departed friend is mentioned to-day, with bated breath and choked utterance, it may be said of us: 'Our work is finished, it is well done.'"

In response to Mr. Turner's eulogy the Judge said, in substance, that "during the sixteen years he had been on the circuit bench he had known Mr. Sweet as a member of the bar, and as an effective speaker and legal orator he had no superior, and at times he was the leading genius, outstripping all others in his judicial circuit. That it was probable we should never look upon or hear his like again. The thrilling tones of that voice, so powerful, so charming and so eloquent, have died away forever to the natural ear, but still we hear the echoes in the chambers of the soul. And hereafter, when we think of Mr. Sweet, it will be in connection with some great effort we have heard him make in by-gone years, and the sensations we felt then will again rush over the soul. Thus will he speak back to us from the world of the departed. And to-day, while sitting here on this accustomed bench, I seem to hear his utterances over again, as we all do, but they are more solemn and impressive because now they have the momentum of eternity added to that of time. May we emulate his virtues and be prepared when our change comes."

During the delivery of the eulogy the Judge appeared more deeply moved than he had ever been known to be before, on any occasion, and the members of the bar fully sympathized. It was a rare occasion for the play of solemn emotions, and for a grand uprising of the soul toward God.

We offer no apology to the reader for prefacing our book with the foregoing eulogistic sketch of our departed friend, and it is presumed none is necessary. We are certain of it with the friends of Mr. Sweet, who knew him best. And if he had enemies that last till now, political or otherwise, to such we make our bow in passing, and say, *requiescat in pace!*

This outline sketch, containing something of an analysis of the character and gifts of Mr. S., though too brief to be called a biography, is extended beyond the limits of our original purpose, but while justified in our own feelings and desires in the matter, we doubt not the glad approval of the reader will be given also; and particularly of the profession to which he belonged, and in which he was a star of the first magnitude. But aside from a desire to render this tribute of respect to the fragrant memory of departed worth and genius, the writer, with modest pretension, would wrest his name from further silence of the pen and press, and rob oblivion of a name too bright, and too dear to friends and relatives to be lost from the public eye and ear.

Now the reader may well conclude that the eloquent pleadings of such a friend were quite sufficient to deter one in the unpropitious situation of our country, during the winter of 1860-1, from making the rash move—"Out of the world into Texas." The writer can never forget that earnest private interview, in the little side office, when Mr. S. employed his powers of logic and description to maintain the assertion that the "irrepressible conflict" was about to reach the shocking crisis of civil war between the North and South. A decade of years has since passed, bearing him away, but his predictions have become historic verity. The conflict culminated in the *ne plus ultra* of human rage, in which the two greatest evils of all time met and struggled for the mastery—war and slavery. And because war was the greater slavery was wiped out in a baptism of blood! And in that baptism the grim-visaged evil plucked and sacrificed five or six hundred thousand home lilies from the "Sunny South" and from the mountains and valleys of the North!

CHAPTER II.

THE TRIP TO GALVESTON.



On the 12th day of January, 1861, we left Freeport, Illinois, with our family, for Galveston, Texas; making that port on the Gulf of Mexico the 23d of the same month, eleven days on the passage. Galveston lies in north latitude, twenty-nine degrees, while Freeport is nearly forty-three degrees north, making about fourteen degrees difference, or one thousand miles. The distance traveled by us was about eighteen hundred miles. Just before leaving Freeport the thermometer had registered thirty degrees below zero. In Galveston it was as much above zero. A stiff norther' was blowing the day we landed, and while it was pleasant to us, just from a high northern clime, we observed that the Galvestonians, as they were passing on the streets, had overcoats on, and were muffled to the ears, hurrying to their business places and homes with the same shivering rapidity that would characterize people in a climate where the cold ranged twenty to thirty degrees below zero, and a stiff wester' or nor'wester' were beating cold music out of the icy keys of the weather.

We took the Illinois Central Railroad to Cairo, thence the fine steamer "Champion," Captain Moore. She was afterward transferred to the war service of the United States. We landed at New Orleans on the 21st of the month, which was the day before the vote on Secession was to be taken in the State of Louisiana. When time is not an important consideration with the traveler, we know of no more delightful voyage than by a first-class steamboat down the "Father of Waters" to the Crescent City—a palace on the waters, in a delicious climate, through a magnificent country in the "Sunny South," sweeping from thirty-seven to thirty degrees north latitude, but ten hundred and forty miles by the meandering river.

But the times lent an increased and somewhat fearful enchantment to the novel voyage, in January, 1861. Standing as we did, for the first time in our life, on the Ohio levee at Cairo, and still on free soil, though in sight of

slave territory, just across the river in old Kentucky, where the great Henry Clay lived, and whence radiated his greatness over the world, the steamer standing at her wharf with a capacity of two thousand tons, her state-rooms taken by Southern-bound travelers, and having on board eighteen thousand bushels of corn from Egypt, we confess, as we stood there, at the hour of seven in the morning, ready with our company to take passage, and be borne away from all our free-soil associations, imagination stood on strained wing for a thousand miles down the river, essaying to divine the possible events of the next few days, and of that novel trip.

Already before committing us and ours to the atmosphere and destiny of the Southern clime, did the darkness of the future pass over us and compel imagination to fold her wings. And then again, faith in progress, faith in *Christian* America, faith in Providence, struck that darkness from the sky, and bid us hope for peace. Up to that time, with thousands of others, we had indulged the pleasing and prominent thought that Christian civilization had progressed too far in this country to allow the people to plunge themselves into a fratricidal war. But events since have demonstrated to the contrary; and one is reminded that the reasons still exist that called forth the utterance from the Son of God: "Think not that I am come to send peace on earth: I came not to send peace, but a sword."

The steamer left the wharf at Cairo, steamed down the river and passed Columbus, Kentucky, and the islands in the river. They had no special histories then, such as stirred the whole country a few months later, not even Island Number Ten, where commenced the first rebel blockade of the river. Nothing of special interest transpired to mar the general pleasure of the voyage. Sometimes one would hear the question of secession quietly mooted; but no excited or angry discussion. There was obviously a terrible thinking going on generally, with all on board; but the passengers seemed indisposed to become much acquainted. They would not converse unless they could do so on the subject uppermost in their thoughts. And all plainly saw, and deeply felt, what that subject was. But lips were sealed, they were in the bondage of the country, and the riveted fetters of silence were upon all.

We remember a Southern gentleman came on board at Memphis. His personal appearance was imposing, his presence commanding, and would have been more so if he could have divested himself of that peculiarly

haughty air that he wore as a sort of "martial cloak wrapped round him." He probably stood six feet and two to four inches in height, had a military build, and looked as though he was born to command, at least, as if he wanted to command, and thought he was born for that purpose. And the probability is that he enjoyed the misfortune of having been born on a plantation, the "heir apparent" to five or six hundred negroes. We were sitting near his dignity, one evening, in the gentlemen's cabin, others were sitting around, conversation was at low tide, when we made some remark about secession, at which his majesty took umbrage, and he contradicted us with an emphatic "*No sir.*" He then eyed us in momentary silence, as though canvassing the question mentally, whether we were not a live Yankee, and spying abolitionist, from the land toward the "north star," coming down South to steal negroes, or incite them to insurrection. And though he did not give us the benefit in words of his cogitations on the subject, we thought words were needless to convey to the mind what he thought and how he felt.

We knew nothing then of the existence of the organization known as the "S. S." or "Sons of the South;" but probably it was then in operation, and for aught we know our name and personal description went down on the books of that secret organization. We were probably spotted about that time. No other collision happened between the Memphis gentleman and ourselves, as we avoided further contact with him, observing that he was so agonized with self-importance that we judged he would be happier without intercourse with us than with it; and, *vice versa*, we felt in the same way toward him. The nearest approach to sociability afterward between us was by a mutual exchange of leering glances of the eye.

If the Southern man hate it is with a perfect hatred, and his wrath is more easily provoked than that of the Northern man. He speaks not to his enemy except with the fiery tongue of his revolver. The man of the North hates with a mental reservation, leaving room for reconciliation; but the man of the South is as hospitable and warm-hearted to a friend or guest as he is terrible in hate of an enemy. It was when we met his Memphis majesty that we began to appreciate the power of sectional prejudices, based on sectional differences—differences in institutions, customs, habits, climate and ways of thinking.

It is a fact, patent to the intelligent traveler, that the temper of a people partakes largely and inevitably of the isothermal character of the climate they live in. This is seen in the Southern States; and the further south one penetrates the more conspicuous the fact. Like the climate the temper of the people is hot, fiery, impetuous, and, on occasions, will burst out in volcanic eruption, submerging in utter ruin what has become obnoxious to its vengeful wrath. In the Northern States the temper of the people is like the climate, temperate, platonic, philosophical; they take things patiently, steadily, perseveringly, certainly, and herein may be seen—bating other modifying conditions—the causal reason for the disparity of temper between the Northern man and the Southern. One is steady, persevering and more reliable; the other unsteady, more easily discouraged and less reliable; can not brook contradiction or opposition without *thoughts*, at least, of his six-shooter. Not so with the Northern man, he would prefer sitting down with his opponent and arguing the difference out to legitimate conclusions and a good understanding.

Right here is one of the main reasons why the South, in the late war, was overwhelmed with defeat in four years. The commissarial department of army supplies lacked energy, integrity, perseverance. The armies, by consequence, suffered terribly the last year and a half of the war from desertion. Scores of thousands of men took leave of absence during that time—we will not stigmatize them deserters—went home and managed to keep out of the way of the ubiquitous conscript officer, or, by collusion with him, secured freedom from molestation by him. With naked feet and backs, and empty stomachs, they preferred to leave the field of active operations and let fat officers "fight it out on that line." Thus the impetus with which the South inaugurated the war, though tremendous in maddened enthusiasm at first, soon became exhausted, and the grand on-rush was left by the suicidal policy, or want of policy, without resources, and in four years died out and succumbed to the superior powers of the North.

The general drift of past history goes to show that North men have generally been victors in all wars with South men where the mutual conditions of the contending parties otherwise were anything like equal. The northern climes are sturdy and masculine, while the southern are enervating and effeminate. The people of these respective latitudes, as it

were by an inevitable law of assimilation in nature, are conformed to them in physical and mental condition.

Without raising a question of the possible or impossible, but simply of the probable or improbable, as touching the adaptability of white labor to the South—for the white man *can* do anything possible to be done by human agency at all, and if challenged *will* do it for the sake of experiment, or pride, or some pet theory, if nothing more—and by white man we mean the Anglo-Saxon, headship of all the human species in physical symmetry and intellectual force—it will be sufficient to say that, "judging the future by the past," which is a safe general rule, making all due allowance for exceptional cases, it is not to be expected the Anglo-Saxon race will ever perform the common field labor of the Southern States of this country, the Gulf States in particular. An appeal to their history in past ages, and other countries, will show they never have done it in such extreme latitudes. The reasons appear to be those of constitution and Providence, and are inseparably dual in form and action. The constitutional make-up of the Anglo-Saxon is such, so fine and sensitive, and so elastic withal, as displayed in his more native northern climes that he will probably ever obey, in the main, the isothermal conditions of nature and climate, which affect and influence his activity, *pro* and *con.*, and in and to which he was born. The temperate zone is unquestionably his center of gravity, and toward this his specific race will continue in the future, as in the past, to gravitate.

If we go round the globe, neither in present nor past history will be found this race doing the common out-door labor in any countries lying between the equator and thirty-five degrees north latitude; and the supposition is reasonable that they never will in the ages to come; unless in course of time a radical climatic transformation should take place, driving the south pole thirty degrees over into Asia, and bringing the north pole down thirty degrees nearer the equator. We would not advise movements or investments in anticipation of such an event.

The reader will please mark that we do not say the white man *can not* do it, but simply that he *has* not, *does* not, and hence probably *will* not. Not that the maximum heat of those latitudes is greater or more oppressive than of the more northern latitude, or as much so, where grateful winds come in and compensate, but the heated term instead of closing at the end of one, two, or four weeks, at the most, as in the North, continues four to six months in the

South, and brings upon the human system at last an enervation of body and spirit inevitable, and in the end almost constitutional. Northern people would freely pronounce and denounce it as sheer laziness, not taking account of the climatic conditions of the country. Now in this state of the case it is an open question if, after several generations had come and gone, the Anglo-Saxon type would not almost disappear, or so far change as to fail of recognition. The Anglican tongue might preserve it if preserved itself. The more dusky races of mankind are the aboriginal inhabitants of those countries and latitudes, and they constitute the normal industrial agencies thereof. We noticed while in the South that the proportion of old people among the white population was small in comparison with their proportional numbers in the North; while with the blacks, despite the hardships of their enslaved condition, the proportion appeared much larger, thereby showing that the Anglo-Saxon's longevity there is less than in his native climate North. The violent probability is that correct tables of mortality, if they could be had, would confirm this view of the subject.

CHAPTER III.

SOCIAL TYPES.



It is probable that the finest social types in this country have heretofore been found in the South. That this is true, or could be under the dark shadows of an institution so out of harmony with the progressive spirit of the age certainly seems paradoxical. The slave-holding population, it is claimed, represented more social refinement and elegance of personal manners than any other class in America.

Whatever barbarous proclivities were chargeable to them in other respects, they were not so chargeable in the social aspects of their characters. And this was one of the slaveholder's vantage-grounds, that he never failed to employ on occasion of entertaining travelers and visitors from other portions of the world, especially from the Northern States. Perhaps there was nothing the Southern gentleman prided himself more upon than the prestige of his social power; and many a Northern man has lost the backbone of his opposition to the peculiar institution under its seductive influence. A social insult, perhaps, more than any other, was bitterly resented and summarily punished.

To attain a high degree of social culture and refinement is not unlike learning a trade, or one of the fine arts. It is an art, if not the art of arts, which requires study and practice; as much so as to become a first-class tradesman or artist of any kind. One has to pass the trying ordeal of social gymnastics. The beauty of social elegance is like the "beauty of holiness." It attracts the admiration of most, excites the envy of many, the jealousy and hate of the mean, and is a ruling power in every department of Church and State, and of society. This was the strong secret agency in the hands of the South—the "*suaviter in modo*" that gave them leading sway so long in Congress, and with the Government.

There is this difference, however, in the comparison between the "beauty of holiness" and that of social perfection—the one *must* be real, the other may have but the semblance of reality, being so much of an art, while the other is

the very essence of character. In order to great social refinement one needs ample time or leisure to cultivate the art. And who in America have been so much favored in the past with leisure as the people of the South?

In elegance and ease of personal manners perhaps no man in America excelled Henry Clay. His very style of taking snuff, and handling his snuff-box, is said to have been so elegant that, though inimitable, yet his friends and admirers, in and out of Congress, who indulged the nasal habit attempted to copy him.

The late Rt. Rev. General Polk, of the Confederate Army, and Bishop of the Episcopal Church, is said to have been scarcely equaled in pleasant manners. He made it a specialty of his personal improvement until he had become something wonderful in social power. He it was that, after having occupied Columbus, Kentucky, with his troops, went on board a Federal gun-boat at Island Number Ten, by invitation of the commander, to talk over some war question, and during the interview was invited to a social glass of wine. The Federal officer led off in a toast: "To the name of George Washington, the Father of his Country." General Polk gracefully acknowledged the compliment, and then holding up his glass said: "George Washington, the first rebel." Perhaps no finer retort can be found in the history of the late war, or in the English language, as to that matter; so elegant, so devoid of grossness, or of anything that could give possible offense to a genteel mind.

We beg the reader not to take the impression of supercilious excess in the polite manners of the Southern people, or of anything bordering on affectation, for this would be great injustice to them. There was too much whole-souled magnanimity and hospitality about them for that. The play of their manners was free from the prescriptive rules and ceremony which frequently produce in one's breast an agony of anxiety, and yet it was courtly and dignified, without obsequious flattery or littleness.

CHAPTER IV.



ut to return to our voyage down the river. On nearing Memphis we were advised by the officers of the boat that we might expect a hailing shot from the batteries just above the city. And sure enough it came right across our bows. We ran in shore, and, of course, were startled into a new and strange feeling, as yet inexplicable, because so un-American, and contrary to the hitherto free experience of American travelers on their own waters or their own soil. Was it for amusement or a farcical burlesque on the governments of the Old World? Or was it ominous of that fearful struggle of blood which afterward rent the country for four long years? Events have since shown that "Coming events cast their shadows before."

After a few hours' detention we passed on down the river; but as we reached Vicksburg again we heard the booming of cannon as a signal to again tie up, be overhauled and show our "manifest." After that we were graciously permitted to pass all points without further molestation; for the reason, we suppose, that having passed the upper points of cannonized salutations, and thereby cleansed of all suspicion of being or carrying "contraband of war," it was unnecessary to waste any more powder on us. So we reached the Crescent City in peace and safety; when, for the first time, we looked upon its six miles or more of wharves, literally piled with cotton and corn, and other products of both North and South, and merchandise from Europe and the Atlantic cities by the ten thousand packages, and there were scores of steamboats, flatboats, and other crafts discharging their cargoes.

In the free play of imagination one was reminded of the account of the ancient provision of the Egyptian monarch, made under the prophetic direction and supervising genius of the virtuous and immaculate Joseph, against the seven years' famine. And as one stood there, on the hurricane-deck, or "texas," of some immense steamer, and looked up and down, over and around those crescent-laid wharves, one was moved to ask in wonder, whence and for what these immense and almost endless stores of sugar, molasses, flour, pork, corn, potatoes, fruits, etc., and what mean these dense

masses of earnest-looking people, hurrying to and fro on the streets. Ah! it is the 21st day of January, 1861, and the next day was fraught with the momentous and grave issues of an election on the question of secession. The flags of all civilized nations were floating in all parts of the city, except the "Stars and Stripes;" and among them was most conspicuously displayed the "Rattlesnake" flag of Louisiana; and one could but feel it was a fit emblem of the occasion, and of the spirit of some of the people. One gentleman told us that though he had been a resident of the city for many years, and sympathized with Southern grievances, yet when he saw the flag of the Union trailed in the dust, and put out of sight, and the Rattlesnake of Louisiana hung up in its place on the Custom House, he cried like a child, and somehow felt as though the world was being buried and he was attending the funeral.

Demoralized! and for a change,
Unseen by friend or foe, unknown
Among the throng where all were strange,
No harm to us, to others none.
Thus reas'ning fancy held the sway,
As did the de'l in Adam's day:
And so "Varieties" that night
We saw—and "Little Dot" so bright.
We saw "The Cricket on the Hearth,"
And heard it sing in joyous mirth,
And heard it till it sang no more,
Because the fire got low, and low'r,
In "John's" poor heart, and on the floor,
And dying embers ashes bore,
And cold crept in through cracks and door,
And cricket hid where 'twas before.
Then tyrant conscience smote the charm!
But sense replied: Why where's the harm?
'Tis better thus to spend our time
Than to be caught in bigger crime.
Another blow! the festive craft
Of sense careen'd, and shipp'd a draught
Of drowning waters o'er the deck,
But mercy came and sav'd the wreck.

The conscience only knows the law;
And lashes with it rough and raw,
While sense plays with it, sly bo-peep,
Nor will its orders always keep.
Mandamus on mandamus comes
From court by conscience kept and run,
The devil serves process in tones
That scare poor sense and spoil its fun.
That night in sweet "Varieties"
Were many thund'ring consciences;
But still bewitching play went on,
And righted misapprehension.
Sweet truth, but not in monkish mood,
Came out, and in free tresses stood;
She gave the bowl of blood to law,
Without a kiss, the people saw,
But turn'd to mercy all in tears,
Embrac'd and kiss'd, then fled the fears.
Thus shriv'd by truth and grace in one,
The play grew brighter till 'twas done.
With mingled hope and fear we thought
That "John" might lose his "Little Dot,"
For "Tackleton," both mean and dried,
His jeal'sy hard to stir he tried.
"The barn, dear John, she's there, she's there,
With that young 'Salt' from o'er the sea;
He's handsome tho', it is but fair
To own, but so much worse for thee.
His nut-brown hair, his hazel eyes,
His form, and feature, and his size,
Look just like hers, as near as can
The charms of woman and of man.
They stroll together everywhere,
Now 'mong the orchard trees they are,
Now in the deep and secret grove,
Beyond all eyes save One above.
He plots, dear John, against thy heart,

And seeks her life from thine to part.
Roll back the tide of coming woe!
See! do! ere it's too late to do!
Woman's a name for falsity,
A dark and deep immensity
Of mystery—who can explain?
I trust her not—she's made in vain!"
All eyes and ears were open wide,
As John and Tack stood side by side,
One's face was written o'er with self,
And one with honor's soul itself.
"Old Tack, thou puritanic wretch!"
Said John, "Thy neck deserves to stretch!
Thou lying fiend! How dar'st thou blot
The honor of my little Dot,
With lies from out thy lying throat,
Each lie a mountain from a mote?
I'll brain thee (raised fist) if thou don't repent
And send thee where thou should'st be sent!
D'ye hear!" "Yes, Sir, distinctly, Sir,
I hear, I hear," whin'd the old cur,
"Don't strike me, John, for I'm a priest,
Nor treat me as you would a beast."
Now John look'd out upon the lawn
And spied his little Dot with one
In sailor jacket short, not long,
Come tripping on with flow'rs and song.
The raven flapp'd his wings but once—that's all,
The pair were in the cottage hall;
The skylark rose, went up the sky,
And sung: "Dot's brother's home to live and die."
The play was done and love remain'd;
The union was preserved, tho' strained
By tests of slander, malice, hate,
Its strength was prov'd too much, too great.
And here a moral lesson came,
An emblem of our country's life;

And as the sequel showed, the same
As harmony 'twixt man and wife.
Now Uncle Sam, like Brigham Young, you know,
Had many wives, say thirty or so,
And Lou'si Ann would snap the Fed'ral band,
And let the Young Confed'rate take her hand.
Her children were Frenchy, fickle and warm,
And held a grand pow-wow in the wigwam;
They solemnly said their mother should wed
The young suitor, and leave the old man's bed.
But we waited not to witness the lot
Of the old and the new, but left the spot,
Our way to pursue, tho' clouds made us rue
Leaving the old for the strange and the new.

CHAPTER V.

NEW ORLEANS AND GALVESTON.



New Orleans stands on the eastern bank of the Mississippi River, one hundred and ten miles from the Gulf of Mexico, and is called the "Crescent City," because of the sublime and beautiful sweep of the "Father of Waters" around the city in a perfect circle, striking in on the north, thence circling to the west, then south, then east, then gently north, on a bend enchanting to behold, coming up to the landing at a point due east two or three miles only, from the river on the west of the city, where it first heaves in sight to the traveler on the deck of a steamer coming down, making a distance of ten to fifteen miles in the circuit, and leaving the city stand on a grand dead level peninsula, almost an island. The magnificent bosom of the waters heaves and presses up the river sides in fresh beauty constantly, as if "Old Neptune's" soul stood beneath in the river's mighty depths, and throwing out broad shoulders and long arms spanning its breadth, were intent on heaving the waters over its leveed banks to deluge and drown out the inhabitants.

Water is taken from the river and conducted along either side of the streets, just at the edge of the sidewalks, in stone ducts, built up square a foot or so in depth and width. With such facilities for irrigating the streets New Orleans may be, and is, one of the cleanest and sweetest cities in the world. The spirit of the people seems broken since the war, and doubtless many a year will pass ere the old romantic gayeties and business pluck and prosperity will come back again. The evil genius of the "peculiar institution" is gone never to return, though its corporal presence remains, to man the live industries of the olden times.

But to resume our narrative of travel. We staid in New Orleans during the night of the 21st of January, but did not remain the next day to witness the further movement of secession, but crossed the river ferry at eight o'clock in the morning, and took the train at Algiers, on the west side, for Berwick's Bay, seventy-five miles distant, and the terminus west of the railroad. Most

of the route may be characterized as crocodile or alligator swamp. It was covered with water and heavy timber, and a thick undergrowth of cane, Spanish daggers and dwarf palm, such as is manufactured into palm-leaf hats, with other kinds of water shrubbery. When cleared up and properly prepared these lands will make splendid rice and sugar plantations. The alligator will migrate before the hand and foot of civilization.

Thence we shipped by "Morgan Line" of steamers to Galveston, two hundred and fifty miles, on the Gulf of Mexico. Nothing occurred to mar the general pleasure of this part of the journey. Neptune was unusually quiet, only showing his disposition in gentle undulations of the deep; no heaving billows, with white caps breaking on their angry crests, and dashing the iron-bound vessel up in the air, and dropping her again in cradles of the deep; no qualms and retching to make one feel he didn't care whether the vessel lived or went to the bottom, but rather preferred the latter; and the sooner the better. No, a "norther" was blowing off mainland—now and then in sight—and laid the waters smooth so that we took regular meals and kept them down, and were not thrown from our berths by a bouncing boat.

On approaching Galveston at sea, twenty miles away, vision is frequently cheated by the intervention of a mirage, the effect of which is to give to the city the appearance of air-suspension—a heavenward elongation, sitting on the lap of the ocean with no *terra firma* beneath. But on nearer approach the illusion disappears, and there stands before you, on a small piece of nature's ground-work, and as though painted by a fairy hand, in spiritual shadows, on the low extended horizon beyond, Galveston, exciting the strange beholder into the romantic feeling that it is a city of fairies. And though the romance is toned down by the reality on landing, yet there she stands, one of the finest and most beautiful cities in the South of her size. She had before the war a population of twelve to fifteen thousand, and in one year after the war she had twenty-five thousand souls, and three thousand additional buildings.

Galveston stands on the east end of an island of the same name, running northeast and southwest, thirty miles in length, and with a varying width of two to four miles. Plausible tradition has it that when the island was first occupied and settled by Anglo-Americans, forty to fifty years ago, they found as its lone occupant a beautiful Castilian woman in male attire,

supposed to have been connected with the notorious Captain Lafitte, who, with his band, committed piratical depredations on the Gulf and in the West Indies, and who had headquarters there and up the wilds of the Trinity River. Hence the island was first facetiously called "Gal-with-a-vest-on," but afterward it was reduced to the more elegant trisyllabic of Galveston.

The island is a huge long sandbank, the work of the Gulf waters for ages in sand deposits. The indentation of the main shore where the island lies was favorable for such deposits. But this alone does not sufficiently account for the fact that the island is at that particular place. The Gulf Stream, in its rebound and return movement from the shore of Western Texas, a hundred and fifty miles to the southwest of Galveston, after having been driven there by the "trade winds" that come in from the direction of the Coast of Africa—from the southeast, through the channel between Cuba and Yucatan—passes near the island, en route to the channel between Florida and Cuba, and in its passage throws off inshore the sand disturbed and gathered up in its course from the bottom of the Gulf. Besides Trinity River comes in at the head and east of the island, and passes out into the Gulf Stream in a southeasterly direction, throwing to the right, toward the island, deposits similar to those made to the left by the Gulf Stream. Thus do we theorize as to the natural causes for the formation and existence of the island. These two counter forces of water co-operate, and between them have made it what it is. Besides this sandbar above water there are lying between these two water forces, and a few feet beneath the surface, sand reefs running from the head of the island southeast, and circling south and west five or six miles, forming a splendid outside harbor, with a depth of water ranging from a minimum of ten to a maximum of seventy feet. The heaviest vessels can lie there and ride at anchor in perfect safety, as they are protected from the heavy "trade winds" from the southeast, and others from the south, by these reefs. Nature has furnished the surface of the island with a few inches of light sandy soil, warm and quick-producing, growing corn, the largest and sweetest sweet potatoes, the largest and most delicious melons of all kinds one ever saw or ate, with garden sauce of every name and nature; even Irish potatoes, if grown from seed imported from the north each year. The whole island from the city to the southwest end thereof furnishes fine grazing for cattle and other stock, and the butchers keep their beeves there a few days before they are slaughtered and sold in the market, and the beef when marketed and on the table is the sweetest and most savory the writer

ever found in any country, particularly that fattened on mesquite grass. The Gulf beach in low tide furnishes the finest ride or drive imaginable, and at eventide hundreds of vehicles and pedestrians may be seen enjoying themselves there.

The commercial importance of Galveston may be judged of by the single fact that of the four hundred thousand bales of cotton produced in Texas in the year 1860 three hundred thousand bales were compressed and exported at Galveston, worth at that time \$15,000,000 in gold, but would now be worth \$25,000,000. The geographical location of Galveston speaks also for its commercial importance. It is the New York of Texas, and Galveston Island is the Long Island of Texas. The inside harbor lies in the bay immediately in the rear of the city, between the island and the mainland, where the bay is two miles wide. The entrance to the harbor has ten feet of water over the bar in low tide, and fourteen to sixteen feet in high tide.

Galveston lies in twenty-nine degrees north latitude, and midway between the mouth of the Mississippi River on the east, and Mexico and the Rio Grande on the west. If you draw an imaginary line commencing at the mouth of the Columbia River, in Oregon, running southeast; another line commencing at Lake Itasca, the headwaters of the Mississippi, running due south, and another commencing at Portland, Maine, running due southwest; all these lines will intersect at Galveston. One of the driving wheels of the great commercial wagon of the United States stands at Galveston, and the steam of progress is driving the mighty vehicle westward, keeping pace with the "star of empire."

When that network of railroads which but for secession would now have been thrown over all Texas, east, west, north and south, tapping the wheat regions of Northern Texas, the lumber regions of Eastern Texas, the stock regions of Western Texas, and the cotton and sugar regions of Southern Texas; we say, when this railroad system shall be achieved for that great country, thus developing and bringing to the markets of the world the productive resources of Texas, a country six to seven hundred miles square, large enough to lay down on its surface the State of Massachusetts more than thirty times, and not lap anywhere, the result will be wonderful beyond all present calculations. Every variety of soil is found in Texas, and all kinds of grain and fruit can be produced there, with sugar, and cotton one to four bales to the acre.

Texas is a country of great extremes and contradictions. It is the hottest and coldest; the driest and wettest; it has the most streams and the least water, some wet and some dry, and mostly dry at that; the best soil and the poorest, very little of the latter; the most cattle and the least milk, and butter, and cheese, and beef; the most salubrious climate and most sudden changes of weather; the least rain and heaviest rain-storms; the sunniest sky and most terrific thunder-storms; the most balmy Gulf breezes and most bitter biting northers; long rivers and least navigation; the heaviest pine forests and least pine lumber; the best types of society, and the meanest the sun ever shone upon.

Portable saw-mills, located along projected railroads in those pine forests lying in Eastern Texas, hundreds of miles in extent, taking Brazos River as the dividing line between Eastern and Western Texas, would coin money for the proprietors. And the prediction is safe that the time is not far distant when the railroads will be built, those forests felled and cut up into lumber, towns spring up, and the "wilderness bud and blossom as the rose."

The wet and dry seasons come in pretty regular alternations, each in a series of seven to ten years. And nature, ever faithful, with her "canny hand" has recorded these meteorological histories in trees of the forest, and the record may be traced back through a period of two hundred years. The unmistakable record is traceable in the thick and thin rings or grains of the trees, varying in thickness from that of a wafer to a quarter of an inch, in grades from thin to thick, the former representing the dry, and the latter the wet seasons.

Now some crops of the country are more successfully raised in the dry seasons, and others in the wet. Cotton is produced in the greatest abundance in a comparatively dry season; corn the reverse. So that, by keeping and observing a critical meteorological record the planter can calculate with a good degree of certainty what crops would promise best from year to year. Thus, we believe, Providence has made it feasible, through science and art, for man to live and prosper in any country or climate under the sun. And further, the normal products of the different countries and climates are most suitable for the industries, health and happiness of the inhabitants thereof.

If the labor question of that country is ever properly settled and harmonized—in regard to which we are more hopeful than doubtful from recent data—

the leading productive interest of Texas will continue to be that of cotton, particularly in the southern-central section. But we think the future will show that the strongest rival interest will be grape culture and wine making.

It is now conceded and agreed by practical men in the business of grape-growing there, that the soil and climate of Texas are admirably adapted to grape culture; and though in the past cotton has engrossed the attention of the people to the exclusion almost of every product except corn, now the cultivation of grapes is assuming prominent and tangible shape, and commanding the practical attention of the citizens of the State. Besides, the next few years will probably bring into the State thousands of vine-growers from the South of France and Germany, who will make this their principal business. If we look at the progress made with the vine in Ohio and other Northern States, with a less favored soil and climate, increasing from four thousand acres, ten or twelve years ago, to two millions of acres now devoted to wine-growing, yielding large profits and immense fortunes for those engaged in the business, how much greater success may be expected to accrue from an equal outlay of money and effort in the warm loamy soils of Texas.

The change in the labor system, resulting from the late war, is bringing the subject into more public notice. The system of forced labor no longer overshadows and oppresses the spirit of progress and improvement there. The inveterate slowness of the country must give way before the advancing step of reform, and as increasing light breaks in, bringing to public view the ponderous follies of the past industrial history of the country, new ideas will be allowed and patronized; new experiments made on scientific principles, and the present and prospective resources of the country, heretofore undiscovered or neglected, will be developed to a degree of profit and fortune that will astound the people themselves. When the people see that, in the matter of grape culture, a few acres cultivated in the vine will yield as large a profit as a cotton plantation ten times as large, and requiring ten times the labor, many more will be tempted to plant vineyards and reap the easy reward; so that after they are well planted and cared for, and by the third year have reached the profitable bearing period, instead of fifty dollars per acre, at most, net profit, as with cotton, for *wine* only a *clear* profit of five hundred to one thousand dollars per acre may be realized from grapes, and equally so for table use. Nor is there danger of overstocking the market

with so useful and healthful a delicacy. The greater the supply the greater the demand. Our remarks on profits of grape culture are not imaginary guesswork, but based on well ascertained *facts* in the experience of vine-growers in Texas, with whom we have a personal acquaintance. They recommend the following varieties as doing well and being profitable there: The Concord, Clinton, Diana, Delaware, Iowa, Ives' Seedling, Herbemont, Creveling, Hartford Prolific, Perkins, Black July, Jacques, and Rogers' Hybrids numbers 1, 3, 4, 9, 15, 19, 22; and they say the beginner will do well to commence with the Clinton, Concord, etc., which will almost take care of themselves. The Diana is a fine grape for either table or wine. The Delaware and Isabella are fine table grapes, and the best native growers they have. But in Texas the trouble is to choose, for they nearly all do well.

As an indication and natural justification of the most sanguine ideas of grape culture in Texas, we will state that the indigenous Mustang grape grows there spontaneously in great wasteful abundance, along the water-courses, on the uplands and upland "dry runs." There are cart-loads, car-loads, yes, steamboat loads of them growing wild over the country, and in different varieties. From this kind of grape are manufactured just those claret or sour wines most grateful to the tastes of people in hot climates.

It is thought by many good people in Texas, and as a temperance expedient too, that Providence hereby indicates what drinks, aside from water, are needful for the health and temperate habits of the country. The question is, why is the country so overstocked with this kind of grape? not by accident, or for mere ornament, certainly, nor for the use of bird or beast, for they touch them not, nor yet for table use, as no human tongue or lips would last long coming in contact with the powerful acid of the hull of this kind of grape. The pulp has a most delicious flavor, but can not be sucked from its dark inclosure without bringing with it the biting acid. There is no alternative; it was intended for man's use after being transformed into wine.

CHAPTER VI.

EFFECT OF CLIMATE ON TASTES AND APPETITES.

t is worthy of note and may be remarked that one's tastes and appetites undergo great changes in passing from a high northern clime to a southern; so much so that to his own surprise one finds himself literally accomplishing the experience of "loving what he once hated, and hating what he once loved." For example, buttermilk and clabber are delicious to the taste there; but few people ever think of them in the North except in association with food for swine. There, for convenience of using at meals, the milk fresh from the cow is first strained into bowls and tumblers, and then set aside and left stand for the cream to rise, and the hot weather, with or without thunder-storms, to inspissate the milk into clabber. Then it is brought on as the most delicious dish on the table, reserved as dessert for the last round, sprinkled with clean white sugar.

The difference of feeling, taste, appetite and temper we experience in changing climates is exactly measured by the isothermal difference of our latitudes. One may have a sweet platonic temper in the North, but in changing latitude ten or fifteen degrees southward, he will be surprised to find his temper tending to a change of ten or fifteen degrees also. And if he be a Christian he will be tempted at times to think divine grace not sufficient to preserve the peace between conscience and conduct. The reader will please note that we speak in these matters not from observation alone but with the authority of experience also.

We knew a minister of religion there, a recent import from the virtuous and platonic North, who had not been thoroughly mad for twenty years, and who possessed no little degree of self-complacency on the score of an invincible equanimity of temper; and his feeling had the merit of fact; so much so that once on a time, before his migration southward, one of his

friends, observing his uniform evenness of temper, even in the midst of great provocation, and becoming irritated at his want of irritation, said to him: "Tell me, Sir, why is it that you don't get mad sometimes; your want of temper seems unmanly, unnatural, and savors of effeminacy, and reminds me to quote Shakespeare on you thus: You can 'smile, and smile, and be a villain still.' Don't refuse to express indignation on just occasion, but blow off the pent-up stuff; a little thunder now and then purifies a sultry atmosphere."

We saw this clerical specimen of "patience on a monument" one day suddenly lose his virtuous temper, and fall into a paroxysm of madness, and on slight provocation, quite fearful to behold, in which he poured out the vials of his wrath upon his friend, to the exhaustion of all decent epithets. Samson was shorn of his strength and left weak like another man, self-mortified beyond measure! Much we searched to know the cause of this sudden transformation, and while we wondered fancy heard a voice whisper, "The climate, the climate."

From this standpoint we commenced a series of observations, and became satisfied the fancied suggestion was correct. We found by pushing inquiry far enough that church members were considered quite excusable in the use of profane language when driving ox or mule teams. The offense was not regarded as deserving severe reprimand or expulsion from the church. A more puritanic style of Christian morals would not allow the excuse to be carried to such a degree of license, for it sternly insists that the Christian should be master, and not subject, at the hour of trial, and will scarcely allow that circumstances may be reckoned in the moral count to palliate offenses.

Doubtless the standard of moral sentiment with the public in gross is lower in Texas than elsewhere in the South, because, forsooth, it is a newer country; and in this respect partakes of the free and easy characteristics common to all new countries in their pioneer life. Besides, it was originally settled by an Anglo-American element, called in the expressive parlance of those days "renegade Americans," from the "States," "refugees from justice" many of them, smart, shrewd and unscrupulous, whose sons are now on the stage of action. This was the element which, during the late war, found an opportunity for the gratification of its native instincts, and dominated everything, and inaugurated and kept alive a perfect reign of terror in the

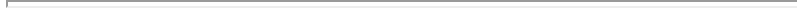
absence of the better class of citizens at the seat of war. Half a dozen of these desperadoes could intimidate and plunder a town without let or hindrance; and if any one objected or offered resistance he was shot down like a dog, and nothing said or done about it. Eight or ten of them entered our store one day, in the summer of 1863, and in our presence helped themselves to suits of clothing, boots and shoes, hats and caps, taking from six to eight hundred dollars' worth, in gold. Some of them duplicated and triplicated the robberies. One of them walked up to us and flourishing a six-shooter across the counter, said: "If you say a word there is what will make daylight shine through your d—d Yankee carcass." The situation was not pleasant at all, but there was no relief. They walked off with their plunder, and we thought as they went, "good riddance to bad rubbish;" but no, this was not the end of the matter, for on the principle that man never forgives whom he has injured, we had to meet a personal challenge to a duel from the leader of the gang, the one who had threatened to make daylight shine in a disagreeable way. The challenge was given because we had said to a lady accomplice of theirs, who was in the store after the robbery, ostensibly to purchase goods, but really to draw us out in some unguarded remark that could be used as an excuse for an attack on us: "That in ordinary times, their conduct would be considered no less a crime than robbery." Our challenger said he was ready to stake his life in vindication of his conduct, and he turned pale and trembled like an aspen leaf. While he was excited we kept cool, and suggested to him that perhaps his information about what had been said was not quite correct, and even if it were, and we should fight over the matter, and one of us should have the satisfaction of carrying the other's blood on his soul to the judgment, we did not see how that would change the character of their original conduct. That if he were reasonable the matter could be adjusted between us peaceably. And on appealing to his better judgment, he conceded we were right, and said in conclusion:

"Mr. North, though you are from our enemies' country I believe you are a gentleman, and hereafter I am your friend."

"Well," said we, "how much better such a termination to a bad matter than to make targets of ourselves in a duel. And now, my good fellow, let by-gones be by-gones, and may we have a better understanding in the future."

"Agreed," he said, and we parted.

We met casually afterward, and he minded the treaty.



CHAPTER VII.

TEXAS OATH OF OFFICE



he oath of office in Texas is the same it is in Illinois; and yet it seems to have little power to save the country from the curses of the dueling spirit. It would seem that the "code of honor," so called, is a good deal demoralized in Texas, in comparison with its status in the older Southern States—if such a thing can be demoralized. It assumes more the form of open and secret assassination—shooting a man down behind his back, or in the dark, or on sight, with the simple warning, "Take care of yourself."

A duelist can not hold office in Texas, but he can defeat a good law by turning assassin, and committing a crime that eclipses the one forbidden by the oath of office.

It may be that the criminal reports of Texas can show that a man has been hung there for killing a man, but it is doubtful. But many a man has been hung for stealing a horse by "Judge Lynch." The horse thief is generally disposed of in this summary way without judge or jury; and even when tried and sentenced by the courts to the penitentiary the officer having charge of the prisoner for safe delivery there, by collusion or otherwise, reports him "escaped," by which the knowing ones understand he is rescued from the officer by a mob and hung to the nearest tree. *Shame* on such law and order, even among barbarians. But such are the issues of life and death in Texas, and a man is a little nearer death there all the while than in any other country we wot of.

As an example of the jeopardy of human life, and how crime against society maybe committed with impunity in that country, we will give the case of a leading business man in one of the cities of Texas, and a prominent member of a leading religious body (whose name we withhold), who, some years before the war, had a personal difficulty with a citizen, who had threatened him with personal violence. He had him placed under arrest, to be bound over to keep the peace; but when so arrested, and in the hands of the officer

of the law, and at a moment when he was most harmless, the meek follower of *Him* who "resisted not evil," drew a pistol and shot him dead! And would you think it, to the disgrace and outrage of religious decency, and law and order, no notice was ever taken of it by either the courts or the church. He has been an acceptable member of the same religious sect ever since, worshiped at her altars, taken her sacraments, said her prayers, and mingled in her fellowships. We have frequently seen him taking part in religious service, but could never set eyes on his reticent cast-iron face without seeing the mark of Cain upon him. In the murderous act he gave the clearest evidence of both physical and moral cowardice, and hellish revenge.

But after all, why should such a state of things be thought so very strange, when laymen have the example of the priest. "Like people, like priest," is true in more senses than one. There is a certain Doctor of Divinity in Texas who is said to be a man of profound learning and intellectual refinement, President, before the war, of —— University, located at C., and named for a celebrated ecclesiastic. This divine was considered and admired by many as the leading orator of the State. He had been imported from the State called the "Mother of Presidents," a few years prior to the war, to push forward and build up the educational interests of the State, and especially of the religious denomination in which he was a shining light.

But when secession was sprung upon the people he switched off on that, and became the most violent advocate, perhaps, in all the State, of the right and of the duty of Secession. He canvassed the State in that interest. The war opened, he raised a regiment, was made its colonel, and went to the front. It was not long before reports came back that the Doctor was drinking, and had been seen intoxicated more than once. Meanwhile his ambition was struggling for a brigadier-generalship, which he never reached. Two years passed, and the Confederacy was meeting heavy reverses in the field; and now the time had come to give a few more turns to the thumb-screws of conscription, even to the extent, as General Grant said, of "robbing the cradle and the grave."

The Doctor was just the man to send home from the army to canvass the State by way of bolstering up a sinking cause, and preparing the people—what were left of them, the old men and women and babies—for the new movements of military despotism. We heard the Doctor in a labored speech of two or three hours' length, in which he attempted to show that the

Confederacy had never been more promising of final success. That though some appearances were unfavorable, such as the loss of New Orleans, Vicksburg and the command of the Mississippi River, and some other *unimportant* points, yet the spirit of the Confederacy was unbroken, the armies were withdrawing from all unimportant places, except Richmond, and concentrating on important ones, located off the principal thoroughfares of the country, little towns among the by-ways and hedges, out of harm's way, where the enemy could not reach them, and where strategic movements could be planned without molestation from the enemy, and from whence dashing surprises could be executed upon him without fear of a return of the compliment with interest. A policy which, the speaker said, was quite the reverse of that of the Union armies, as they were obliged to scatter in proportion as the Confederates concentrated, in order to garrison the points and occupy the country thus vacated. The argument looked plausible to the green ones, didn't it, reader? It is always easy to make people believe what they want to believe.

CHAPTER VIII.

THE DOCTOR'S PRIZE-RING

ILLUSTRATION.

But at last the Doctor gave his spell-bound audience the benefit of a prize-ring illustration, which ran on this wise: He said "that the Southern champion had choice of ground, and the corner in the ring with his back to the sun, which compelled the Northern pugilist to face the fiery orb, which he regarded quite an advantage, as he thought 'Sam' could not long endure the hot blaze in his face. He described 'Sam' as a man of giant frame and strength, but awkward movements, and questionable powers of endurance, a Goliath in appearance, fearful to look upon or to hear, his voice like that of his Philistine prototype. But he had not the pluck, the heroism, the chivalry of his antagonist, and, indeed, could not have, for he was descended from the Roundheads of England, who in all their generations had been a pestilent and meddlesome race of fanatics wherever found, at home and abroad. Not so with the Southern champion. 'Johnny' came down from the Olympic heavens of the English Cavaliers, brave, chivalrous, with small but compact frame, agile, confident, the very David of the Southern house of Israel."

He said "the prize was the grandest ever battled for among the battling nations. The fight in the first few rounds was a regular stand-up give-and-take. The first knock-down and first blood were awarded to 'Johnny' at Bull Run, or Manassas. After that he feinted, dodged and retreated, till at Richmond he got in a stunning blow on the giant, and 'sent him to grass.' After being well sponged up in the Washington corner, by Abraham and Mac, his seconds, the giant came to time again, and a few more rounds were had, at Gettysburg, Fort Donaldson, Shiloh, Perryville, New Orleans and Vicksburg, where the little man of the South was repeatedly knocked down and roughly handled in chancery. 'Johnny' tried once to suddenly flank 'Sam' and get first to the Washington corner, which well-nigh proved fatal to his resources of strength and endurance.

"After this the programme of the little David was changed to dodging, retreating, falling, *a la* Tom Sayers; but he was to put in a telling blow when he could, tapping the wind, closing the sight, and drawing blood as much as possible, and when he couldn't, to depend mainly on avoiding blows, but keep on provoking them, thus leaving 'Sam' to exhaust himself in 'beating the air,' as heavy blows given in the air are more hurtful and exhausting to the striker than when delivered upon an object. David was to make feints and dodge, which would set the Northern Philistine in a rage after him around the ring, the one giving prodigious blows in the air, the other keeping out of harm's way."

This sort of negative policy the learned, pious and patriotic Doctor claimed would "give victory to the Southern champion, and he would bear the giant's head in triumph to the camp of Israel."

Save the want of rhetorical dignity in the illustration, it was all well enough, only so it had been true to the facts, but unfortunately subsequent events went to show that the little wiry man of the South became exhausted by the dodging and retreating policy first, and went under at last, and the bloody sponge was thrown up in token of his defeat.

Some time before this appearance of the divine orator a card appeared in the Houston press, over the Doctor's name, threatening dire vengeance upon his slanderers, according to the *code duello*. In his speech he referred to the card, and then giving a Randolphian angle and shake to his dexter index finger said, with bitter venom, "that card is to *stand* till after the war, when there will be time to settle with my enemies." The moral disgust we felt at this vile utterance was simply unutterable.

The next day a certain widow lady, owner of a large plantation and a hundred negroes, was in the store; she was tall and straight, with sharp angular features, a dark Southern complexion, black hair and eyes in keeping, a masculine business turn of mind, and occupied perpendicular space in air, about five feet nine inches. Taken undivided her presence was rather commanding. Approaching us at the counter, with quizzing eye, and an air of triumph, she said:

"Well, Sir, how did you like the speech yesterday?"

Generally we had to think twice before speaking once, frequently three times, and then again keep up a heavy thinking, and not speak at all. As near as we can calculate we had about three thinks: First, who was the Doctor? second, who was the lady addressing us? and third, who were we? Then we replied:

"Madam, I have no fault to find with the speech as a Confederate speech; it was all well enough in that regard. As a piece of oratory I admired many portions of it; as the effort of a politician on the stump, or of a jury advocate, I thought very well of it, but I did not approve the animus of the speaker when judged from the standpoint of a Christian divine."

"Why, Sir, what do you mean?" said the lady.

"I mean, Madam, that the spirit of dueling is not the spirit of Christ."

"The Doctor's remarks about the dueling card pleased me more than anything else," rejoined the lady.

"That part of the Doctor's remarks I disapproved most," we rejoined.

"Well," she continued, "I am a professing Christian, and a member of the Baptist Church. I have several sons, and have always taught them to defend their characters according to the *code of honor*, and, Sir, if your ideas are correct then I confess I know very little about Christianity."

"Very likely, Madam, and I think none of us know much about the true spirit of it, the way we are going on. But, my dear lady, what are the Doctor's grievances when compared with those of Christ and his Apostles? and yet what would you think of the idea that they carried deadly weapons to defend their characters and persons with? Preposterous, do you say? 'The servant is not above his Lord.' If the Master might not do so how much less the servant. And furthermore, how does the Doctor's case stand in the constellated light of the Master's declaration, 'My kingdom is not of this world, else my servants would fight.'"

"Well," said the lady again, in a half desponding tone, "if that's the true doctrine I don't know what we should do if we should undertake to carry it out in this world. But then I can't believe it, and that's all there is about it with me, I can't believe it."

"There's the trouble, Madam, we don't really and practically believe what we profess except when the truth conserves our self-interest, or our convenience. When otherwise we can not trust God for results, but take matters out of his hands and control them ourselves, and for ourselves. And behold what dirty, wicked work we make of it sometimes."

Just then the wealthy planteress left, as though with a new idea in her head and heart.

But to quote the Doctor a little more. He said: "After the war I intend giving myself to the legal profession, and shall not return to the pulpit. I am keeping a *spotted book*. All persons who refuse to go into the army, or evade the conscript law by any dodge or subterfuge whatever, their names shall go down in the spotted book, to receive my special attention after the war, personally, professionally, and politically, and I swear it here and now; they shall be hunted in town, in the city, through the wilderness, out of the country, and peradventure a worse fate may befall them!"

He said: "If Southern independence can not be achieved I would prefer to go under the English or French flag. I could bear being whipped by the Mexicans, by England, by France, or by any other people under the sun—even by the Hottentots—but to be subjugated by a meddlesome pusillanimous race that says *ceow* for cow, is intolerable to the last degree."

Two years after this speech, when the war was over, we met the Doctor at the dinner-table of the City Hotel in New Orleans, most slouchfully dressed, and with an equally slouchful look; at least so imagination played through our optics. He was on a pilgrimage to Washington to swallow the hated "iron-clad," and obtain his pardon. We thought appearances indicated that he needed a pardon bad, both from Washington and from a higher source. No man in Texas had done more to promote secession. He was a violent denunciator of all who did not succumb to his way of thinking, and tacitly, at least, gave countenance to the mob spirit against them.

We say, is it strange that laymen should hold human life of little value when their spiritual leaders do the same. Here was a man who bore the tri-colored character of divine, educator and military captain, merging the whole in the low, despicable and intensely wicked character of duelist.

It is only two years since the writer was back in Texas a few months, and while there a political meeting was held at the city of H., one night. At that meeting Judge —— was one of the speakers, and in his speech made some caustic allusions to "scallawags" which the Doctor construed as intended by the speaker for him, whereupon the next day he addressed a note to the Judge, by the hand of his friend, demanding an explanation, which was refused because of the arrogant tone of the language in which the demand was made. A second note was dispatched, repeating the demand, and closing in case the Judge again declined explanation, with a challenge to fight, conceding to him choice of weapons and place. To this he declined as before, and for similar reasons; also, declined acceptance of the challenge on the grounds that, first, he had conscientious scruples, and second, it was a violation of the laws of the land, but that if attacked he should defend himself in accordance with the law and right of self-defense.

Now, at this stage of the affair the Doctor was reduced to the alternatives of yielding the point of honor or shooting on sight. He chose the latter. So, with divers and sundry weapons of death—a rifle, a double-barreled shotgun, a six-shooter, and a pair of derringers, with, perhaps, a bowie-knife, meaning by the medley of arms to observe the nice point of using the same weapon the Judge might have when they met—he took position on Main Street, where his game had to pass in going from his house to his office, and waited there two or three hours, but the Judge did not appear. By this time a large crowd of the Doctor's friends and neutral spectators had gathered round, and the enraged divine—or colonel, as he was then called—stepped upon a dry goods box and harangued the excited crowd, closing up with the historic and threadbare denunciation of the Judge as "a scoundrel, a liar and a coward," and he would shoot him when and wherever he saw him. He then retired to private quarters, to be flattered by a few friends for his brave and chivalrous conduct. Of course the Judge was a scoundrel a liar and a coward, because the Colonel said so, in the God-defying spirit of hate and murder. He could not be a good man, an honest man, or a brave or true man, after this; no, the Colonel had said it before men and angels, and laughing devils, and the universe was bound to credit his *ipse dixit*. The parties, however, were soon reconciled by the good and pacific offices of the Masonic fraternity, of which they proved to be members. The Judge said he did not intend his remarks on scallawags for the Colonel, and did not know the Colonel was a Mason. And the Colonel said he did not know the Judge

was a Mason, or he might have acted differently; that the Judge was a gentleman, and he certainly felt bound to make the *amende honorable*. How changed! The furious madman would have killed him but a few hours ago, but suddenly he becomes as "gentle as a sucking dove." O, poor deluded devotee of the dueling code, thou wouldst have imbrued thy hands in the blood of thy fellow, and on thine own mistaken suspicion! Well, God pity thee till thou learnest better, and cease thy barbarity of soul!

CHAPTER IX.

BABEL OF TONGUES.—SAM HOUSTON.



he center of attraction to all political parties in the South was slavery; and no party could expect to exist with any respectable dimensions, or to possess any organic force in public affairs that did not gravitate in that direction. It was the Banquo's Ghost of every occasion and emergency. It is true, however, that there was a weak, maudlin, and mawkish anti-slaveryism here and there, through the South; but it had no bowels of effective demonstration; no inherent potency of melting mercy and just indignation, to stem the counter current, and throw off the shackles self-imposed. But when the South had drifted on the shoals of secession the issues were changed, and large and respectable masses of the people preferred the Union to slavery; but still the institution dominated everything in the shape of political action. The situation now was attended with schismatic sentiment and covert action against it, as witnessed in the babel of tongues on the question of secession.

There were different parties in Texas, representing many different views and measures, to meet the new monster now emerging from the deep waters of the nation's life.

First and foremost, the old original died-in-the-wool, South Carolina, John C. Calhoun, nullification party, which, though fewest in numbers, yet embraced in its ranks, most of the talent, wealth, and fashion of the South. This party believed in secession *per se*, for its own sake; and had been plotting and planning for long years to make it an accomplished fact. They thought the suitable occasion had now arrived for striking the effective blow in its behalf. They could now fire the public heart, through the medium of slavery, and win the prize of Southern independence.

There was another party, more numerous, who accepted the doctrine of secession as the dernier condition—that the rights of the South could not otherwise be preserved inviolate. They argued, "Wait till the commission of an overt act by the new Administration—Congressional or Executive

interference—then will be time enough, and better excuse in the face of the nation and of mankind, for secession."

A third party believed in preserving the Union at almost all hazards; even with the loss of the peculiar rights of the South. They argued and urged that Southern rights could be maintained by fighting for them, if need be "in the Union and under the old flag." This party was quite numerous.

A fourth party said, but dare not say it very loud, "Let slavery slide, if need be it is not worth shedding blood over, but let us have the Union. Besides, the sentiment of all mankind is against our servile system, and history will dig its grave at last." This party was in the minority of all.

Still a fifth party opposed secession under any circumstances, on the ground of *bad policy*, and *inexpediency*. They said, secession is suicide, the very course to pursue by which to swamp and lose our rights. Secession will be a stupendous failure, and we shall lose by it the very thing we propose thereby to defend and save. Prophetic words, which subsequent events literally fulfilled.

This was old General Sam Houston's position. He led this party in Texas. He spoke his mind freely anywhere, and in the face of threats, denunciations and mobs. We remember the interest and excitement manifest a few days before the vote on secession was taken in Texas, on the occasion when the "old man eloquent" of the "Lone Star State" came down to Galveston from Houston, to address the people on the exciting topic. The rumor spread through the city that Houston had come and would speak the next day at eleven o'clock A. M., from the second gallery of the Tremont House. It was evident there was a deep undercurrent of excitement, with a glassy calmness on the surface, as in "still waters that run deep." There was an unsearchable depth in each man's eye, like the shadowy stillness preceding the bursting storm. In the morning of the day when he was to speak a self-constituted committee of several leading citizens waited on the General at his quarters, and warned him not to attempt making a speech that day, as they feared serious disturbance and personal harm to him. They said: "General, you know we are your personal friends, and have been your political supporters heretofore, but we are opposed to your views on secession; still we don't want to see you harmed."

The General replied with characteristic dignity: "Gentlemen, I thank you for your personal considerations, but I have seen stormy times in Texas before, and I have seen my personal friends tremble for my safety before; but, gentlemen, I shall make the speech to-day at eleven o'clock A. M., as already given out, from the upper gallery of the Tremont House—should be pleased to see you there, gentlemen, to hear, and if necessary to help keep order."

One of the parties to the interview came into our office and reported what had passed. The writer had then never seen the General, and felt a strong desire to go and hear the "old war-horse," but concluded, being a stranger in the country, and not wishing to be caught in the presence of a mob, not to go. Eleven o'clock came, and twelve, and some one came in and said: "Houston is speaking, and has been for an hour, and all is quiet." We went and heard the balance of his speech. After seeing and hearing him a few minutes we did not wonder he was not disturbed by a mob.

There he stood, an old man of seventy years, on the balcony ten feet above the heads of the thousands assembled to hear him, where every eye could scan his magnificent form, six feet and three inches high, straight as an arrow, with deep set and penetrating eyes, looking out from under heavy and thundering eyebrows, a high open forehead, with something of the infinite intellectual shadowed there, crowned with thin white locks, partly erect, seeming to give capillary conduction to the electric fluid used by his massive brain, and a voice of the deep basso tone, which shook and commanded the soul of the hearer. Adding to all this a powerful manner, made up of deliberation, self-possession and restrained majesty of action, leaving the hearer impressed with the feeling that more of his power was hidden than revealed. Thus appeared Sam Houston on this grand occasion, equal and superior to it, as he always was to every other. He paralyzed the arm of the mobocrat by his personal presence, and it was morally impossible for him to be mobbed in Texas, and if not there then not anywhere; no, not even in that hot country which, as the Boston divine said, "modesty forbids us to name," and which, in this respect, is the best synonym for it, and rival of it, we can imagine.

CHAPTER X.

SAM HOUSTON'S SPEECH.



he drift of Houston's speech was—the *inexpediency and bad policy of secession.*

He told them they could secure without secession what they proposed to secure by it, and would certainly lose through it. He gave the greater force to his declarations by appealing to them to know if he had not generally been right in the past history of Texas, when any great issue was at stake. Told them he made Texas and they knew it, and it was not immodest for him to say so; that the history of old Sam Houston was the history of Texas, and they knew it; that he fought and won the battle of annexation, and they knew it; that he originally organized and established the Republic of Texas, and they knew it; that he wrested Texas from the despotic sway of Santa Anna; that he commanded at San Jacinto, where the great Mexican leader was whipped and captured, and they knew it.

"Some of you," he continued, "opposed the annexation of Texas to the United States, and I suppose have never forgiven me, even to this day, but I appeal to your sober judgments if, as it were, the very next day after annexation became history, Texas did not enter upon a career of fortune she had never realized before. I appeal to you for the frank confession that you have always prospered most when you have listened to my counsels. I am an old man now. I knew you in infancy, took you and dandled you on my knee, nursed you through all your baby ailments, and with great care and solicitude watched and aided your elevation to political and commercial manhood. Will you now reject these last counsels of your political father, and squander your political patrimony in riotous adventure, which I now tell you, and with something of prophetic ken, will land you in fire and rivers of blood.

"Some of you laugh to scorn the idea of bloodshed as a result of secession, and jocularly propose to drink all the blood that will ever flow in

consequence of it! But let me tell you what is coming on the heels of secession. The time will come when your fathers and husbands, your sons and brothers, will be herded together like sheep and cattle at the point of the bayonet; and your mothers and wives, and sisters and daughters, will ask, Where are they? and echo will answer, where?

"You may," said he, "after the sacrifice of countless millions of treasure, and hundreds of thousands of precious lives, as a bare possibility, win Southern independence, if God be not against you; but I doubt it. I tell you that, while I believe with you in the doctrines of State rights, the North is determined to preserve this Union. They are not a fiery impulsive people as you are, for they live in cooler climates. But when they begin to move in a given direction, where great interests are involved, such as the present issues before the country, they move with the steady momentum and perseverance of a mighty avalanche, and what I fear is they will overwhelm the South with ignoble defeat, and I would say, amen, to the suffering and defeat I have pictured if the present difficulties could find no other solution, and that too by peaceable means. I believe they can. Otherwise I would say, 'Better die freemen than live slaves.'

"Whatever course my State shall determine to pursue my faith in State supremacy and State rights will carry my sympathies with her. And, as Henry Clay, my political opponent on annexation said, when asked why he allowed his son to go into the Mexican War, 'My country, right or wrong,' so I say, my State, right or wrong."

We noticed several times the very men applauding the speech who had opposed the speaker and the speaking in the morning. The power of General Houston over a Texas audience was magical to the last degree, and doubtless well understood by himself; hence he feared no mobs.

During the first year of the war Colonel Moore had organized a splendid regiment of eleven hundred young men, volunteers mostly from Galveston, finely equipped, of which Sam Houston, Jr., was a member. They were on dress parade daily, and presented a charming appearance. It was as fine a regiment as went to the war from any section of the country. The Colonel was justly proud of them, and fond of exhibiting their superior drill and "dress" to the public, and particularly to old military men. They fought their first battle at Pittsburg Landing, or Shiloh, as the Confederates called it. But

before leaving the island for the seat of war the Colonel invited General Houston to review his regiment. Now Judge Campbell, of one of the judicial districts of Texas, and Williamson S. Oldham, member of the Confederate Congress, had been the old General's bitter enemies during the canvass on secession. They had followed him night and day through the State. On the day set for him to review and put the regiment through some military evolutions, the General was on hand at the hour and place. This called out a large concourse of people to witness the performance; the day was sunny and beautiful; the hour ten in the forenoon. The regiment was in complete uniform and perfectly armed; their arms glistened in the sunbeams as they stood in perfect dress, and at "present arms," when the "hero of San Jacinto," supported by their Colonel, stood in front. He was the hero of San Jacinto sure enough, for there he stood, in the same military suit he had worn in 1836, at the battle of San Jacinto, when Santa Anna was captured; his pants tucked in the tops of military boots; suspended at his side was the same old sword, and on his head was a weather-beaten, light-colored, broad-brimmed planter hat, the left side buttoned up to the crown. There he stood, the very impersonation of the olden times. It was a sight for sensation. All eyes were now upon him, some of them dimmed with tears, and many a throat of soldier and spectator was choking down feeling unutterable—the writer with the rest. Not a word had yet passed the General's lips, but now the Colonel passed him his own sword and told him to proceed. Then came

ORDER NO. 1.—"Shoulder arms."

ORDER NO. 2.—"Right about face." The regiment now facing the rear, the General cried out in stentorian tones of sarcasm: "Do you see anything of Judge Campbell or Williamson S. Oldham there?" "No," was the emphatic reply. "Well," said the General, "they are not found at the front, nor even at the rear."

ORDER NO. 3.—"Right about, front face."

ORDER NO. 4.—"Eyes right. Do you see anything of Judge Campbell's son here?" "No, he has gone to Paris to school," responded the regiment.

ORDER NO. 5.—"Eyes left. Do you see anything of young Sam Houston here?" "Yes," was the thrilling response.

ORDER NO. 6.—"Eyes front. Do you see anything of old Sam Houston here?" By this time the climax of excitement was reached, and regiment and citizens together responded, in thunder tones, "Yes!" and then united in a triple round of three times three and a tiger for the old hero. Thereupon he returned the Colonel his sword, with the remark, "There, Colonel, that will do, I leave you to manage the rest of the maneuvering," and retired from dress parade.

The old General died at Huntsville, Texas, a year or so before the war closed, but he lived long enough to see fulfilled what he had predicted in his speeches, and to receive the acknowledgment from some of his bitterest opponents that he was right. His lone widow followed him to the grave, by yellow fever, December 5, 1867. Thus ended the career of the Hercules of the Lone Star State, and she will never do herself honor, and the name of Houston justice, until she has a monument for him in granite or marble, surmounted with his statue, or an equestrian statue, in the metropolis of the State.

CHAPTER XI.

ARGUMENTS ON SECESSION IN OUTLINE.

n the platform of secession there was barely one plank on which all parties could stand in agreement, and we give it in the following words, to wit:

"*Resolved*, That the rights of the South are seriously threatened, and in imminent danger of actual invasion by the North."

This was the solemn affirmation of the whole South. But on the question, What shall be done, what measures adopted, what course pursued, to make the most and the best out of the situation? the people were not a little divided. We will recite a few of the arguments in outline used by the different factions.

The original secessionist argued from the Constitution itself, that the States out of which the Union was formed were independent sovereignties antecedent to the Union, and all State elements and powers were reserved to the sovereignties that were not *expressly* surrendered to the General Government; that the Constitution was the instrument and servant of the Union, and was not intended to reflect its power back upon the reserved rights of the States. That the Constitution did not *forbid* secession in express terms, *ergo*, the right of secession was *negatively implied* by the Constitution; that its silence on the subject was, and could be, no bar to the right; that it could not take notice of the subject at all, as it is not in the nature of such an instrument *per se* to anticipate its own repeal or dissolution.

The suggestion to "wait for an overt act," was answered by saying that the Union was like a business copartnership for certain purposes, and when one member of the firm declares his purpose to swindle the other whenever opportunity serves, it is the privilege, the right, the duty, of the partner thus placed in jeopardy not to wait for the "overt act" of swindling to transpire, but to forestall and prevent it by breaking up the compact at once; that the

Union was substantially such a copartnership, or compact, for purposes of mutual aid, and for mutual protection against foreign invasion.

This sort of argument appeared plausible, and generally had the effect to silence dissenting parties. The reply to it was considered insufficient, that, though the Republican party had succeeded in placing Mr. Lincoln in the presidential chair, yet he could do nothing inimical to the rights of the South. His oath of office would deter him, even if personally inclined to damage the South, and though he had said in his series of discussions with Stephen A. Douglas, in Illinois—"This government and country can not remain half free and half slave." No, secession, unconditional, immediate, bore down all opposition, and Texas with her ship of state and canvass spread, her sails flying, and the "Lone Star" floating at top-mast, and all on board except a few stanch Union men, stood out for the deep sea of secession and rebellion. She foundered, and with the Confederate armada of States went to the bottom; and now the Union wreckers are trying to fish her up, and back into place again.

CHAPTER XII.

TEXAS NEVER INVADED.



Unlike the other Southern States, Texas was never invaded and devastated by the Union armies. Considered in the light of a necessary evil, as a terrible educator, or rough civilizer for the barbarian element in Texas society, it might have been a good thing, perhaps, if she had been overrun, and this low element thoroughly subjugated, and made feel and understand that there was another force in the world besides Texas outlawry—that of law and order. But all things considered, it is probably as well she was saved from such a scourging. The innocent would have suffered with the guilty, and many lives and much property been sacrificed.

Texas was never whipped in spirit, only nominally whipped, in being surrendered by the official act of General E. Kirby Smith. Like "dog Tray," she was found in bad company. Indeed, so far from being whipped in spirit was she, that the proposition was seriously made and entertained, after Lee's surrender, that Texas could carry on the war by herself, and alone win what the whole South had failed to achieve together. General Magruder issued a bombastic proclamation to this effect. But the more sensible people understood it as a shrewd blind on his part, to facilitate his escape to Mexico, which he made immediately after.

By no means would we leave the impression that the whole population felt this way. The intelligent and better classes plainly saw, and admitted their cause was irretrievably lost, and in justice to them we must say they were willing to accept the situation in good faith, and govern themselves accordingly. One of this class said to the writer: "I have fought the fight, been whipped, and now I submit and say, the United States Government is good enough for me, and hereafter I am as good a Union man as the best."

But we must say of the other class that swallowed Magruder's proclamation, that they did not accept the situation in good faith, have not yet, and never will so long as they can keep the waters muddy. For the benefit of this class,

if they could have suffered alone, one could have desired Sherman's or Sheridan's army to pass through the country and give it a touch of devastation. You wish to know what class they were. We give the following description: They were a mixed class with very little of the good in the mixture. They didn't have horns on their heads, nor were they cloven-footed except in character; and in this respect they bore strong resemblance to their father, the old "cloven-foot" himself.

The masses of them wore spurs on their heels, generally the immense wheel-spur, and though they were not born with them on, yet they might as well have been, for they not only rode in them, but walked in them, ate in them, and slept in them. Their clanking as they walked was like a man in chains. They wore belts around the waist, suspending one or two revolvers and a bowie knife; were experts in the saddle, had a reckless dare-evil look, and were always ready for whisky and a big chew of tobacco, and the handwriting of passion and appetite was all over them. They were cow-boys from the wild woods and prairies, and sons of the low class planters, with a strong sprinkling of the low white trash, clay-eaters, so plentiful in the Atlantic Southern States.

In such a flock the one that has killed his man or more is hero and leader. This class of desperadoes were tools of the more accomplished, genteel, oily-tongued, respectable scoundrels in society, who sat behind the screens in the green-room of iniquity, and were the wire-pulling prompters of crime—such as intimidation, robbery, assassination, and so on. Especially was this the case during the war. It is impossible to understand, without experience, the situation of unmitigated horror created by such surroundings. One can talk or write about it, and the hearer or reader can imagine, but experience alone realizes the full horror.

We have said that Texas was never invaded, but she was pretty thoroughly blockaded on the coast; and artillery duels between land and sea frequently took place, but seldom to Confederate disadvantage. General Hebert was first in command of the Department of Texas, but he proved to be a man of no military force or practical genius, though a West Pointer, and had enjoyed the advantages of military associations in Europe, the reflex of which appeared rather to damage his usefulness than otherwise. He brought with him so much European red-tape-ism, and being a constitutional ape, that he preferred red-top boots, and a greased rat-tail moustache, with a fine

equippage, and a suite of waiters, to the use of good, practical common sense. Cannon, heavy siege guns, that had cost weeks of time, and thousands of money to transport from Virginia by rivers, through floods, storm and mud, lay on the wharves at Galveston, for months, waiting orders from the commandant to be placed in position on the fortifications erected at divers points on the island beach. Everybody became tired and disgusted with the General and his policy. He was too much of a military coxcomb to suit the ideas and ways of a pioneer country; besides, he was suspected of cowardice.

In May, 1862, the naval fleet outside made a demand for the surrender of the city, giving four days for a decision. The demand was refused. It was believed, of course, that Hebert would at least make a show of fight for the reputation of it, if for nothing more, and that a handsome artillery duel might be expected any hour. This expectation was strengthened by an order for all non-combatants to leave the island in a given time. The next few days witnessed a general stampede of people and valuables up country, the writer and his family with the multitude, to save them from the dangers of flying shot and shell. Every dray and available vehicle was brought into requisition to convey people and goods away from the city. Anything that could freight a thousand pounds or more, could easily command five dollars a load, four miles to the bridge, where the cars stopped. It was hurrying times.

On the fourth or fifth day a gun-boat ran in and opened fire on "Fort Point," near the entrance to the inside harbor. According to secret order, previously given, the fort responded with one gun, and then it was abandoned. Meanwhile the General and staff, with most of the troops, were making safe retreat to Virginia Point, four miles down the bay, on the main land side. Thus the city was left to be occupied by the Union forces. The naval fleet entered the bay in peaceful triumph, and no doubt they felt a contempt for the Confederate General in command, who had so ignominiously fled, when they looked around and saw the facilities he had for defense.

The intervening space between city and railroad bridge was neutral ground, not occupied by either party. Non-combatants were freely allowed passes to and from the city. This cowardly flight so incensed the people against Hebert, that they petitioned for his removal, and it was granted. In the fall of 1862 he was replaced by General Magruder—the gay, dashing, and

festive Magruder; and this suited Texas. But Magruder soon saw that Texas expected him to retrieve the disgraceful loss of Galveston, the metropolis of the State.

So in a quiet and undemonstrative way, without giving out to the expectant public either time or mode, he prepared to recapture the Island City and the fleet in her bay, of which the celebrated and staunch "Harriet Lane" was the flagship, and stood at the wharf in central raking attitude to the city.

A few miles below the city of Houston, on Buffalo Bayou, at a point of narrows, where the huge forest trees on either bank locked arms across the waters, and the shade thereof made still deeper by the mustang vine, and the ever creeping old ivy, might have been seen three or four old steamer hulks being transformed into rams and gun-boats, whose sides were barricaded with compressed cotton bales. And this was the naval force with which to attack Uncle Sam's heavy iron-clads. Magruder had called to his side for consultation, upon the feasibility of his daring enterprise, his predecessor in command, who laughed him to scorn, as a dreaming fanatic, with more courage than brains. But not being disheartened by Hebert's wet blanket, he prosecuted his plans and purpose to completeness of preparation. Hebert left, and went to some private retreat up country, where he would not be considered by any implication, of word or circumstance, to be partaker in so wild and reckless a scheme.

Outside it was not yet known what time Magruder would make the attack. The secret was yet in his own breast, or, at most, was confined to himself and staff. But a few days prior to the event, it was rumored that Magruder intended making the State a new-year's present. So on the 31st day of December, A. D. 1862, the fleet weighed anchor, and proceeded, while yet daylight remained, down the bayou to Red Fish bar, within fifteen or twenty miles of the Federal fleet, and there anchored and waited till the dark hour of morning should come, named in "special orders."

The ugly-looking crafts were manned by volunteers for the occasion, and though never yet in a fight, they had even more than the determined spirit of the "veterans." They were spoiling for the fray. One fear only served to dampen their ardor. The waters might be flowing at low tide on Red Fish when the hour came to pass it, and they could not pass it before, for fear of discovery by the Federal fleet, to whom they intended a complete surprise.

The land forces were at Virginia Point, ready to cross the two-mile bridge, and move up the island toward the city. Just at the dying of the old year, and the birth of the new, the two forces began to move; the one by water, the other by land, with flying artillery. The rolling wheels were muffled in the sand, and with silent roll and tread they moved on, and took well chosen positions. The two forces were to co-operate. They were to strike together at the moment when the moon should be gone to rest, which was at five o'clock in the morning. The land forces were there, and ready to open fire at the time, but waited till a few minutes after, hoping to hear the signal gun from the fleet first. But not so; the fleet then was hanging on Red Fish in low tide, as feared. Fatal detention, if not soon released, and taking part in the action now progressing. They could hear the booming cannon miles away, and in panting mood, and with desperate effort, they float once more, and steam to the scene of action, two hours late—but "better late than never." Victory was trembling in the balance between the contending forces. One ram made direct for the "Harriet Lane," firing as she went, and struck her obliquely on the hind quarter. The rigging of the two vessels became tangled together so that they could not separate. The boarders rushed upon the deck of the "Harriet Lane" with cutlasses, knives, and navy shooters, and demanded her surrender. But her commander, Captain Wainwright, refused. And then they fought, bravely fought, hand to hand, on both sides, until Wainwright fell, shot through the heart, on his own deck, saying as he expired: "Tell mother I defended the 'Harriet' as long as I could." Sherman, his first lieutenant, was mortally wounded. By this time the deck was running with blood from the dead and dying, and the white flag was run up to the masthead, and the whole fleet in the bay thereby surrendered. Meanwhile one of the Confederate gun-boats had sunk, being struck by a cannon-ball below water mark. One of Magruder's couriers was at this moment carrying an order to the troops to cease fighting and retreat; and another courier rushed to headquarters with the news of the surrender, and the General ordered him placed under arrest for bringing a false report. But he was soon released, for, sure enough, it was 8 o'clock, the victory was won, and the "New-Year's gift was made."

Touching incidents sometimes occur on such occasions. There was one deeply so on this occasion. General Sherman, whose history ran back to the stirring times of the Texas Republic, was in command of the Confederate ram that fought the "Harriet Lane." Lieutenant Sherman, just fallen on her

deck, was his son. There they had met in deadly strife, father and son, the latter mortally hurt, and life fast ebbing away. But they did not recognize each other till the bloody contest was over, and then, at the moment of recognition, the son exclaims in feeble tones: "O, is that you, father? and have we been fighting each other? The day is lost, and I am dying now, father! Can I not have the holy sacrament to my comfort before I die?" We will not attempt to describe the agony of that father's heart, as he bent to embrace his dying boy, and to say, "Yes, my son; O, my darling son!" The sacrament was given and taken together by living father and dying son, who in one short hour afterward as each said—"Forgive me, father," and "Forgive me, my son"—breathed his life out sweetly, lying on his father's bosom. The next day a solemn military procession, with soft and reverent tread, passed to the cemetery, where the father himself read the sublime service of the Episcopal Church—of which father and son were both members—over his boy's grave. Solemn salutes were fired in honor of the noble dead. The victory and the defeat were alike forgotten, and regretted for the day, under the sublime touch of a human scene so tender, so grandly holy! We know the father well, a *good* man, though a rebel.

The news of the victory passed over the State with an electric thrill, and gave the people an elevation of spirits, from which they never fully came down, even at the close of the war. This, with an easy victory obtained at Sabine Pass, about the same time, by an Irish company of artillery in fortifications, by which a fleet was repulsed, and one or two of the largest vessels disabled and captured, gave Texas somewhat of a feeling of invincibility.

CHAPTER XIII.

NICARAGUA SMITH.



he next day after the retaking of Galveston, another sensation occurred, but of an entirely different character, showing other phases of human nature, and developing a different class of feelings. The circumstances were as follows: That day a fleet of transports hove in sight outside, just from New Orleans, bringing fifteen thousand troops, to reinforce the small garrison already there—one or two regiments. These troops belonged to General Banks' Department, and were sent to Galveston to commence operations on a larger scale than had ever been attempted before. It was an earnest purpose and part of a general plan for the subjugation of the "Lone Star" State. They were to make Galveston the Gulf base of operations, and penetrate inland to Houston, and thus up the Texas Central Railroad into the interior of the country, forming a junction with the expedition coming in from the Red River way, in accordance with plans traced on military maps. This would create a diversion, and compel the Texas forces to remain at home, and not be sent to fight Banks' main expedition. The scheme was doubtless a good one in its conception, and looked like the scheme of Grant and Sherman to break that portion of the Confederate backbone, lying west of the Mississippi. More than this, it was a part of the grand whole devised by them for crushing every part of the monster east and west of the Father of Waters.

The fleet knew nothing of the retaking of Galveston the day before. So they sent in a small craft with a few men, to herald their coming. The forerunner suspected nothing but what all was right till they reached the landing, where they were taken in charge by Confederate hands. The pilot proved to be a man who had volunteered in the Confederate army at the opening of the war, and was placed on sentinel duty at Bolivar Point, across the bay from Galveston, and one foggy night he stole a boat and deserted to the fleet outside, some months before. His name was Smith, but he bore the significant and historic name by which he was familiarly known on

Galveston Island, of "Nicaragua" Smith. He had been with Walker in his filibustering expedition against Nicaragua. He was one of the worst desperadoes ever known in all that country, though so far he had managed to escape the hands of justice. But now, at last, he was caught as a deserter, and acting as pilot to the enemy, conducting him to the place and scenes he was so familiar with. The United States flag was still flying on the Custom House in plain view of the fleet. The deception at first was perfect, and the Confederate authorities hoped to play the game out, and capture the whole fleet, so they sent out true and trusty men in Federal uniform and equipage, to invite and conduct them in. But something raised suspicion—the want of proper salutes and signals, also credentials from the Commodore of the "Harriet Lane" fleet, now captured. The Commodore was blown up in an attempt to blow up one of the vessels after the surrender, and which was contrary to the usages of war.

On being questioned at the flag ship, suspicion was confirmed. The leader in charge was detained as an exchange host for Nicaragua Smith. The exchange never came. Smith was court-martialed, found guilty of inexcusable desertion, and sentenced to be shot to death the next day. When standing in front of the twelve messengers of death, the lieutenant having charge of the execution of the death sentence, advanced to him, and asked if he had any last word or message he desired to leave. He said "Yes," and gave it, but the character of it forbids its mention here. He died as he had lived, with unmentionable wickedness on his lips—a sad spectacle of depravity, unwept and unregretted by all!

The fleet steamed and sailed away, disappointed and defeated in the object of their coming. Banks was moving up the Red River Valley, with heavy land forces, supported by gun-boats, and Steele down through Arkansas, to a junction with him at Shreveport. But Texas, now relieved by the change of situation at Galveston, could spare their forces and send them to the front against Banks and Steele. They met them in detail, before the junction of the two lines, and both were defeated, and made disastrous retreats. Everything so far under Magruder seemed to favor the fortunes of Texas arms, and the prestige thereof by this time had become immense, particularly at home.

CHAPTER XIV.

THE CAPTURED LETTER.—MRS. E.'s EXILE.

oon after these several triumphs of Texas arms, a vessel was shipwrecked on the Gulf, and among the debris that washed upon the coast, a U. S. mail bag was picked up by the soldiers on duty there and forwarded to headquarters. It contained a large amount of letter mail, going North from Texas. The letters were written in part by Texans, who had fled the country to Mexico on account of proscription for Union sentiments, and to avoid conscription, with other reasons. And many were written by those still remaining in the country.

The accident furnished an opportunity for the military authorities to discover who might be traitors in their midst. The contents of the letters were carefully examined, and indicated that some of the writers entertained sentiments more or less treasonable to the Southern cause. Among the writers of this class was a Mrs. E., living a hundred miles from the coast, on the Texas Central Railroad. She had emigrated years before from the central part of the Old Empire State of the North. She was a lady of a decidedly literary turn of mind, and this fact was strongly marked in the literary tone of the contraband letter that had, by unforeseen accident, fallen into military hands. It read, in part, as quoted below:

"Dear Mother: It is a long time since communication was broken off between us. It seems an age. I am tired of it, and would that the unnatural struggle were over. But how and when, God only knows! I am living under a reign of terror, where dissembling is an art, and must be practiced, though self-bemeaning to an honest mind. The crushing incubus is upon us, and must be borne as best it can be. It would be comparatively easy to float with the current here if one's sympathies were with it. But dare I say it (?), mine are not. May the gods, in their own quick time, relieve the terrible suspense, and give victory to the 'Stars and Stripes.'"

Thus wrote one of the most talented ladies in Texas. She was a lady of medium height and size, delicately organized, sensitive temperament, brunette complexion, and a dark full swimming eye—a gazelle-eyed Juno. Unlike some literary members of the sex, she was a very queen of domestic neatness, thrift and joy, as well as a happy companion of books. More than this, she was by no means a literary or domestic recluse, but her large heart sent out its tendrils for the dews of neighborhood life, and gave out the sweet waters of friendship to such as should themselves be friendly. The beautiful climax of her character was in giving joy to others. She was most happy when making others so. Without guile herself, she never looked for it in other people. Yet this beauty of her character—an ingenuous frankness of heart and manner—sometimes inspired envy and jealousy in those who were her personal and social antipodes.

In literary matters, the poets were as familiar to her as household words. But she paid tribute not to literature alone, but ventured into the deep waters of such authors as Hugh Miller on Geology, Humboldt's Cosmos, and was able to digest metaphysics, theology, etc. And if, in the midst of it all, household cares included, exhausted in mental and physical strength, a little negro boy should come and say, "Please ma'm, here is some cloth, and mother is sick, and wants you to cut me a coat; she says you are so good you will do it," she will take the cloth, and cut and baste by the hour, and then send the little black home so glad.

In prose she writes heavy or light, and her muse sparkles with beautiful poetry. She is now, and has been since the war, a correspondent of first-class periodicals, weekly and monthly, at home and abroad, and is a leading poetess of the "Lone Star State."

One morning the door-bell rang at her house. Mrs. E. answered the summons in person, and on opening the door there stood a tall, handsome gentleman, in military costume. Each said "good-morning," and bowed the stranger's bow.

"Is Mrs. E. at home?" he inquired.

"She is," replied that lady.

"Have I the pleasure of addressing that lady now?" said the officer.

"I am Mrs. E. Will you come in, Sir?" said she, in a dignified tone.

"I thank you, Madam, I will, if you please," and stepping in, he was seated on the sofa.

"Let me take your cap, Sir," said the lady, reaching out her hand to relieve him of that gold-braided and spangled ornament.

"No, I thank you, Madam, I am in a hurry, and am under orders in calling on you this morning so unceremoniously, without previous announcement by card or courier," said the military gent, with the feeling that he was in the presence of superior intelligence and worth. At this moment he felt that it would be a gracious relief if he could be spared the chagrin of serving a military summons upon the fair lady, for whom he confessed himself inspired with unusual respect, though never having met her before. He treated her, in words and manner, with genuine politeness, and no gentleman could have done otherwise.

"May I inquire, Sir, speaking of being under orders, what your orders are?" said Mrs. E., with evident surprise at the officer's hint.

This interrogatory of the lady had the effect of producing a grip of Mars at his throat, while Cupid's arrow struck his heart, and the lady, all unconscious of his struggle between the two deities, waited his reply. At last regaining his speech, and having studied well the language in which he would make his errand known, with the least possible shock to Mrs. E.'s sensibilities, he proceeded to say:

"My dear lady, it becomes my very unpleasant duty, under imperative orders, to request you to accompany me to headquarters, at Houston, where General M., the Commander of the Department of Texas, will make known to you the reasons of this summons."

"A request for me to appear at military headquarters, before the Department General—for *me*, a lady! and may I know what for? Strange Order from the General to a lady! What can it mean, and will you, if at liberty, explain how, and why it is, that a humble lady like myself has so suddenly reached such a degree of importance with the military headship of the land?"

"As I said before, he will disclose to you the reasons for this summons, Madame," said the officer. "It is a very unpleasant matter to me, and the more so, as I perceive you are a lady of unusual refinement, appearance and manners."

"I suppose, then, the summons is imperative and I must go?" said the lady again.

"Madam, I do not clothe my orders in such abrupt language, but feel bound to treat you in every respect as a gentleman should a lady, or," hesitatingly, "as if I were an old and accepted friend, paying court to your ladyship," said the man under authority, not from the war deity alone, for the last words were on the indictment of the little-winged god.

A lovely carnation blush overspread the brunette cheeks of Mrs. E., and reflected back the sentiment, in wordless pleasure. Just then the gallant gentleman relieved her momentary embarrassment, by pleasantly inquiring: "How soon, Mrs. E., may I expect the pleasure of your company by railroad to Houston. The next train will be here in two hours. Can you be ready in that time?"

She assured him that she could. "You will then excuse me, Madam, from taxing your time further, and I will return to the depot, and there wait your coming at the hour." So saying, the officer retired. On reaching the depot, he saw the two soldiers he had brought with him, armed with bayonets, and supplied with handcuffs, in anticipation of arresting some female outlaw, but now would part with the world, if his to give, sooner than Mrs. E. should know of his bayonet companions, and the other preparations for depriving her of physical freedom. He ordered the soldiers to keep out of sight at the depot, and give him no word or look of recognition on the train in the lady's presence. At first they did not exactly understand the secret of such instructions, but asked no explanations, though they wanted to ask, and the officer did not condescend to enlighten them, so they were left to their wits to divine the mystery.

But, meanwhile, what had been going on at the house of Mrs. E.? During the interview between her and the officer no member of the household had intruded into the room where they were, but as he retired she lost no time in acquainting the family circle with what had happened. That is, she told them that she had to report herself at military headquarters; and described the good-looking and polite gentleman who had served the summons, but said never a word of the little brush of romance from Cupid's wings.

"But what does it mean?" said one and another, and still another.

"I don't know," said she, "but I am going to see. The officer is a true gentleman, I am satisfied, and no harm will befall me in his hands. Besides, he will not only give me a safe conduct, but will regard the feelings of a lady, and make it *sub rosa*. And now let me say, dear ones, that whatever developments may occur, you shall be duly informed, and I don't feel that we need fear serious harm."

Then she retired to make her toilet, and a few minutes before train time she was on the platform in a modest but bewitching attire. The officer gave one glance, that was all—a stranger would have given two or three—and, turning away, felt a soft sensation in his left side. He tried to appear like a stranger, with no interest in the lady, who now stood looking up the road for the train. She had divined and appreciated the public reserve of her military escort displayed at that delicate moment.

Soon the whistle blew, and the train was in sight. Just then the officer passed her and said, "Select a seat in the rear car, and I will come to you." The train moved up, bringing that car at her side. She entered by the front platform, he by the rear. They met at the center, and found one seat fully vacant only. He motioned her in, and she did not object to the stranger's occupying the seat with her. Train is off, and the noise of rumbling wheels soon drowns conversation to all but the mutual talkers themselves. What, with the hope that nothing serious is to befall her at headquarters—as her conscience tells of no crime against military or civil order—and the new found pleasure of company so congenial, she almost forgets the relation of officer and prisoner. The trip of fifty miles seems less than an hour, as the train enters the city of destination.

The officer and his fair prisoner are seated in an omnibus, and driven to—not headquarters, nor the common jail, nor guard-house, but to the —— House, the best in the city, and there Mrs. E. is imprisoned in a nicely furnished room for the night. The officer retires after ordering all her wants supplied, even to a special waiting-maid, saying as he goes: "Mrs. E., I will call in the morning with further orders. I hope you will rest well, and not have unpleasant dreams."

That night no bayonet paced the hall by her room to prevent the prisoner's escape. No, her *honor*, better felt than told, stood sentinel at her door! The next morning a gentle rap announced the officer's presence, and on opening

the door he gave her a pleasant smile, with a cordial "good-morning." She looked a little pale, as if she might not have rested well the entire night, which induced him to ask: "Are you quite well this morning, Mrs. E.? You are looking a little pale." On assuring him that she was, he notified her that he was now ready, if she were agreed, to escort her to the presence of his dignity, General M., at his private quarters.

"Certainly, Sir, I am ready and anxious, as well as curious, to know the meaning of this strange proceeding. Is it far, Sir?"

"No, it is not very far, Madam, but no matter about the distance, as there is a carriage at the door waiting to convey us thither."

"O, there is; but this treatment seems too kind and generous toward your prisoner. I could have walked as well, Sir," said Mrs. E., while a tear came into her eye, which, turning her head aside, she tried to hide from his view, but which he saw, and treasured in the heart of his recollection.

Taking his arm they descended the stairway, and proceeding through the hall to the front door they entered a close carriage, and were driven away without meeting the stare of listless spectators. On reaching the General's quarters she was ushered into his presence with military salutations from the subordinate to his superior officer. "I have the honor, General, of returning the process served, and the prisoner, Mrs. E., is before you, whom I now introduce to you," said the sub-officer. She bowed genteelly to the General, which brought the military bluff to his feet, and to make his politest reply, which would be awkward in most gentlemen. He asked her to be seated, ordering a chair. Then reseating himself in his big swivel chair, and facing the lady, he proceeded to say:

"Mrs. E., I suppose you would first like to be informed as to the reasons for this summary proceeding against you; and though, as Department Commander, I am not required by military law or usage to allege the cause of action, yet, in this case, and because I am dealing with a lady, who though a stranger to me, I perceive to be intelligent and genteel, I will assign to you the reason for this peremptory summons. A letter, purporting on its face, to have been written by yourself, or some one bearing your name, by the accidents of war and providential direction, has fallen into my hands, and a portion of its contents proves to be treasonable to the Confederacy." Here handing her the letter, he inquired:

"Mrs. E., do you recognize the letter as yours?"

"I do," was the brief response.

"And those are your sentiments, as therein expressed, toward our cause, Madam?" again said the General.

"The letter reads so, General, and it would be cowardly in me to deny, now under fear, what I then said without fear. I was frank then, and will not be less so now. Those were, and are, my sentiments; though little did I think, or intend harm, by the letter, to the Confederacy when writing it, and in forwarding it to friends in the North; as it was strictly a private letter to private friends, disconnected with any motive to inflict injury upon the country. Nor can I see or feel that the offense is a penal one in any sense, so long as I am found guilty of neither constructive nor actual treason, by aiding or abetting the enemy, furnishing him material aid or contraband information, nor of the possession of treasonable motives, expressed or implied, waiting the opportune moment to display themselves, or something more than mere feelings or convictions, which are certainly involuntary things, and hence without responsibility. Feelings and convictions, permit me to suggest, General, are like birds flying over one's head, for which one is not responsible. One is only responsible for willful action, in obedience to these feelings and convictions. I will not urge, General, the further consideration, that your prisoner is a woman, without pretension, whose sphere of action is confined exclusively to the domestic circle, including some little experience in literary matters. But of all this you must and will be the judge, of course, and I must submit to your judgment and consequent orders in the premises, but I would respectfully beg to be spared from sustaining damages, either corporal or incorporeal, on the plain principle of justice, that where one has neither done nor intended damage to others, he should not be damaged himself."

The General replied, though not without some misgiving: "My dear Madam, you defend yourself capitally well, and I perceive you are not only an intelligent lady, and hence, on this score, we fear you in our cause all the more, if disposed on seeming occasion, to do damage, which is liable to come at any time by the accidents of war, but I feel bound to say that I believe that you are a well-meaning lady, though not patriotic toward the country of your adoption. But, Madam, occupying the responsible position I

do, I am bound to discard personal feeling, and take notice of facts, both actual and possible, and not be a respecter of persons, but have my country's weal and prosperity before me, and remove with scrupulous care all obstacles thereto, even the least.

"As you say your case is not criminal in any important sense, but imprudent, inexpedient, unfortunate, the least I can do is to remove you beyond our lines till after the war. And as most convenient to us, and probably preferable to you, I will order you, by military escort, to Matamoras, in Mexico, across the Rio Grande. And I detail Lieutenant H. here, the officer who placed you under arrest, and brought you to these headquarters, to command the escort, and see the order of exile carried out. You can now return home on your parole of honor, and there await further orders."

To a lady of her style and sensibilities such a proceeding would be shocking, but Mrs. E. bore up under it well. She retired from the General's presence, with the pointed remark, addressed to him: "Well, General, if I understand the situation then, you exile me, not so much for what I *have* done, as for what I *might* do?"

"Your case is disposed of, Madam. I have nothing further to say; and you are too much of a lady to bandy words with," replied the General.

She was driven to the cars as she had come, in company with Lieutenant H., who saw her safe on board, and as the train moved off, he pressed her hand, and said warmly, "Good-by. God bless you; be of good cheer; in a few days, two or three, you will see me again, and—" he left the sentence unfinished, as the train was getting fast, and leaped from the platform.

At the hour of 12 M. she was at home again. "In a few days, two or three," she said to the family, "I am off for the sunset side of the Rio Grande to Matamoras. This is the order of the General, and to remain there, or outside the lines, till the 'cruel war is over.'

"And now, Lew, I want you and your sister Emma to accompany me with the ambulance and the nice white carriage mules, and be my companions in exile. Do, my dears, and don't say no, for how can I go alone, and leave my adopted darling brother and sister. We can do something for a livelihood if the purse gets low, and we'll fill it as we go."

"But, dear Mrs. E., you have not told us yet why you are ordered into exile. Have you been committing some enormous crime that deserves the punishment of expatriation? Tell us, for it may be that we may meet the fate of poor 'Dog Tray,' being found in bad company, which might not be quite so pleasant after all."

Thus responded, archly, Lewis and Emma.

"Sure enough. Pardon me, dears, my mind had become so absorbed with results that I had become oblivious of the cause. Ah! why so, not demented am I! and yet with all my effort at self-control, there is, I feel, a terrible strain on my nerves. But the cause, what do you suppose it is? I will tell you. Do you remember that letter I wrote to my dear old mother two months ago, dying, no doubt, with the heartache for her child in this far-off country, and in these troublous times? You do. Well, by a strange ordering of the fates that letter fell into the hands of the military. I see you wonder how. It was on this wise: The vessel carrying the mail was shipwrecked on the Gulf, and among the things carried ashore by the tidewaters, near Sabine Pass, was the mail-bag containing the fatal letter, and was picked up by the soldiers on duty there, and forwarded to headquarters. And now that is how the situation is, and the procuring cause of my being in military limbo."

"And is that all—is that the head and front of your offending?" exclaimed the brother and sister, and then added, "If that be all, we are not only ready to go with you into exile, but if need be to the ends of the earth. Yes, we'll go, dear Mrs. E.; we'll go, and glad of an opportunity for voluntary exile from a country so mean, and with one so dear."

"Hush, my dears; give utterance only to such feelings when we are safe beyond the lines. Now we understand each other, let us to the work of preparation for the journey of four hundred miles. Lew will look after the mules and ambulance. The ambulance will need two good seats, and room inside, and a rack behind for provisions and trunks. And you and I, Emma, will see the trunks well filled with clothing for all around, and other things that may come in play. You know we shall be obliged to camp out the whole way through, as there are no places of entertainment in that wild country. The wolves will nightly give us howling serenades around our camp-fires. But the escort will afford us ample protection against four-legged wolves, and wolves bipedal."

The next two days were busy ones of preparation, interspersed with brief respites, occasions for interesting chats and consultations on the novel trip before them, in which the ever-recurring how, when, where, and wherefore, were thoroughly canvassed and disposed of each time as well as mortals with only mortal ken could dispose of such things yet in the untried future. At last, when the clock said ten, the second night, the trunk lids were pressed down to their places, locked and strapped, and Mrs. E. wearied, and half-falling into a big arm-chair, exclaimed, "There, Lieutenant H., you may come as quick as you please, we are ready."

Just then the door-bell rang. "Why, who's that," said Mrs. E., in a half-startled, but suppressed tone; but a little bird told her it was the Lieutenant. Miss Emma approached and opened the door, and sure enough it was he.

"Is Mrs. E. in?" inquired he.

"She is," replied Emma; "please step in, Sir."

"Good evening, Mrs. E.," was his salutation to that lady. She replied, and rising and meeting him they shook hands warmly.

He remarked, apologetically, "It is a late hour to call, but I know you will excuse me, Madam. I am stopping at the hotel in town, and just came to know if you were ready to begin the pleasant journey in the morning," at the same time glancing at Lew and Emma, to see if they appeared to comprehend the situation.

"We are ready, I thank you, Lieutenant, and only wait 'further orders,' having just this moment, before you came, strapped our trunks."

The Lieutenant looked surprised at the plural, "we are ready," and gave another glance at the brother and sister, and then at the two big trunks, and had parted his lips to speak, when Mrs. E. interrupted him with, "Yes, we are ready—these, my darling friends, my children almost, are going with me to be my companions in exile; and we are going in our own conveyance, and have just one vacant seat for you, Lieutenant, and we all cordially invite you to occupy it, and travel with us. And whatever military cavalcade is to accompany us, let them travel by themselves and be our John Baptist. What say you, Sir, to this?"

"Well now, really, Mrs. E., this is quite unexpected, and as I can have no objection, certainly, to the surprise plan, for which you alone are

responsible, I can not refuse your kind invitation to make one of the number of so pleasant a traveling quartette. So being ready, I respectfully suggest the hour of eight in the morning as the time for starting. My requisition on the Commander of the post here, for six men and two four-mule teams and ambulances with drivers, has been filled, but it can remain so, and I will order them out an hour ahead of us, and we four will leave together, in a quiet way, not exciting public curiosity. And now, good-night all, I will be here at eight, sharp."

"What do you think of him, Miss Emma, and how will we be likely to fare in his charge?" said Mrs. E. after he had gone.

"What do I think of him? you ask. To speak, frankly, I think he is a nice gentleman, and will *do* to travel with, either with or without a military escort. I feel assured in his presence."

"It is indeed a painful thought to be driven, forced from one's home and country, even as a penalty for real crime, but when for an accident, a misfortune, which points to no criminal intent, it is a *grief*, unassuaged by aught save a conscious innocence. Though in my case, so far, a halo of real romance seems to gather around to shed its sweet sadness o'er my heart, to lighten the burden that presses it. Indeed it feels like the tender hand of the All-wise Father, caressing my troubled spirit into quiet and confident repose. Indeed, I almost feel thankful for the rod; and to bless the hand that holds and applies it. In a word, to speak directly, the trip we are about to make seems in its circumstances more like a pleasure trip than going into exile. But let us to repose; it is eleven o'clock, and we must rise early."

They retired, and the travelers of to-morrow are soon lost in sweet slumbers, which are made a little sweeter by pleasant dreams, in which the name of "Lieutenant H." escapes the lips of both the fair sleepers in low murmuring tones. Each hears the gentle murmur from the other, but is unknowing of her own; and each buries the secret in her heart, resolved that what has passed the portals of the ear shall not command the tongue for revelation on the house-top, nor to private ears, not even their own, unless, perchance, the mischievous little deity that presides over the heart destinies of most people, shall, for the sake of diversion, so far awaken curiosity as to force out the secret.

The morning light breaks in the east, and throws increasing strength upon the darkness of slumbering night. Awake, yes, wide awake. They arise, and perform in thoughtful silence, and with unusual care, their morning toilet. The morning repast is hurried through. The ambulance is at the door, and Lew, at seven o'clock, is loading and strapping on the trunks, with other necessary traveling equipage. The morning is beautiful, and the glorious sun has nearly reached the score of eight in the heavens, when Lieutenant H. suddenly appears, with smiling politeness, as bright as the sunny morning, and exclaims, "All ready, I see, and so am I; shall we be off?"

The family adieus are said. Lewis is on the front seat, with lines in hand. The Lieutenant hands the ladies in, Emma beside her brother. Just then Mrs. E. remarks, "I suppose, Lieutenant, you will occupy the seat beside your prisoner, to prevent her escape into the deep, tangled wild wood, when passing through the dark 'bottoms' of the Brazos? We shall soon be there."

"Thank you, Madam, that would seem entirely proper, and perhaps necessary; at least the situation is not repulsive." So saying, he became seated with a satisfied air, and Emma gave a stolen glance back over her shoulder at the double situation, first of officer and prisoner, and then of friends. She denied to herself thinking she would be willing to exchange seats with Mrs. E., as she caught sight of the Lieutenant's handsome face smiling under the starlight of his brilliant eyes. She felt a little uneasiness on her own seat, and imagined it was not as easy as the back seat would be; still she comforted herself into a tolerable degree of contentment, though it was far from being a continual feast. She thought, and admitted to herself, that the arrangement of seats was entirely natural, and to introduce any change would be rude. So she would endure what had no cure, and bide her time. These reflections came and went in her mind, but if some invisible hand had written them down over her signature, she would have denied the authorship of them.

An hour or more had passed, and Lew had been giving strict attention to his handsome *mulos*, and on the level road had allowed them willing speed, and now they descend quite a hill, and enter the four-mile 'bottoms' of the Brazos. The way was a narrow forest arcade. The giants locked arms one and two hundred feet above their heads, festooned with vines, mingled with the deep hanging moss, which fringed the trees here and there, and everywhere vailing from view the face of the sky, and holding back the

sun's rays, which penetrate not that dark passage, for full eight months of the year. Strange sounds here fall upon the ear, reminding one that half the zoological collections of Noah's ark could be found here, both of bird and beast. A half shuddering fear came over the ladies in that partial night, and each one leans a little nearer her companion. They have penetrated the dark way half a mile or more, when suddenly the mules stop, affrighted, and begin to back. Emma screams, and half swoons on her brother's arm. "What's the matter?" exclaim the others. Lew is some excited, but keeps cool from necessity. It was indeed a startling sight. An immense panther had just leaped across the archway, from tree to tree, forty to fifty feet above, and a few rods ahead, as though preparing for a leap upon the unwary travelers. At the moment of alarm, the Lieutenant had clutched his trusty rifle by his side, and the next instant all four saw the cause of alarm. The brave officer was instantly on the ground, with rifle in hand, and already drawing a bead on the gentleman in the trees. "Take care of the team and ladies, Lew, and I will soon make him sick," said he, but the animal was leaping from tree to tree, making off into the deeper forest, and was out of sight at two or three bounds, screaming as he went. But the Lieutenant gave him a parting salute, on a shadowy glimpse of him, at the sixth bound. The animal gave an unearthly scream, that sent a million echo thrills through the dark woods, and then a heavy ground fall. "I've brought him," exclaimed the officer. Reloading his gun, though he had one load yet in the other barrel, he ventured carefully into the thicket against the earnest remonstrance of the ladies, and found the game in the last muscular struggles of death, as he expected, having luckily struck him in the heart. Drawing his tape on him, he measured nine feet from tip to tip. Leaving his dead carcass to be food for buzzards, and returning to the ambulance, they moved on again through the dark tunnel, while the Lieutenant held his finger on the trigger, keeping an eye out for further intruders.

They had driven a mile farther, when the mules again pricked up their long ears, and this time a small pack of wolves crossed the road twenty rods in front, in a hurry, as if pursued or pursuing. They stopped not, nor so much as looked at the travelers, and were lost to view in an instant or so.

The Lieutenant here mischievously inquired, "Mrs. E., is it here you would like to escape from me 'into the deep tangled wildwood?'" That lady only answered with a shudder. Misfortunes, *on dit*, never come single; so with

frights. They had now reached the muddy malarious Brazos, and ferried across by virtue of a military pass, and had gone a full mile beyond. The pressure of fear had begun to yield as they saw open daylight through the tunnel, a quarter mile in the distance, but now again the *mulos* suddenly halt in a fright, and this time with snorting fear, snuffing danger near!

"Look there ahead in the track! See that awful snake coiled there!" exclaimed Emma. Again the Lieutenant was on the ground, gun in hand; and again the fair ones object. But he was not deterred from the purpose of bruising the serpent's head. Providing himself with a dead limb that had fallen from the trees above, he went bravely to the attack; first firing a bullet at his snakeship's head as it stood raised in arched defiance over the complex coils, ready for the springing bite of death! The bullet carried away the crest of the head, which threw the reptile into fearful contortions, and then, with terrific blows from the limb of the tree, he soon brought it to a quiet quivering rattle! It was a fearfully large spotted wood rattlesnake, and by the tape measured eight feet three inches in length, and had seventeen rattles. Relieving the highway of its presence, and casting it into the brush by the wayside, they passed on, querrying, "What next in the line of sensation?" and thinking, that for the first half day, and the first ten miles, the events of the morning would suffice all fancy for that class of romance.

Again the cruel Lieutenant asks something about escaping "into the deep tangled wildwood." But Mrs. E. extorts a promise from him of silence on that subject in the future; at least till they get out of the woods.

No more disturbing events occurred that day, but the feast of heart and soul was rich and racy. They were out of the fearful "bottoms" and rising to the clear and balmy atmosphere of the beautiful upland prairies. How different from the humid, pestiferous breath of the low, dark regions of an hour ago! They breathed free again. It was high noon, and they saw, two or three miles ahead, a beautiful grove, where they agreed to go into midday camp. On nearing it at one o'clock, their advance guard of two ambulances and the "six in gray," were coming out. The hailing sign to halt was given by the Lieutenant, and driving up, a few words were exchanged, and orders given about the route and where to camp that night, and then the advance drove on, leaving the officer and his company in the leafy grove by the cooling spring, enjoying their noon refreshments. No fire was struck, no coffee

made, but a basket of native claret was opened, a bottle broke, and the nectar of the gods was sipped from silver goblets by the joyous four.

Two hours had flown by in happy mood, in which the stomach proved the principal organ of friendship. The hungry epicures in the woods felt the divine flow more free and warm in obeying this ordinance of the gods. Their willing hearts would have staid in such a frame, and whiled away the sunny hours in that grove of bliss, but the voice of duty called from refreshment to the labor of the way. The *mulos* were satisfied, hitched up, and on the move to the west, accomplishing twenty miles more by nightfall, where they find the advance again, in beautiful camps, with two bright camp-fires a few rods apart—one for themselves and one for the exile with her attendants. The provisions are brought out for supper, and on this occasion Lieutenant H. proves himself an adept at coffee making.

The ladies offer to take charge of the cooking department, but he objects, claiming that he can make the best coffee. "Ladies, 'let him that would be great among you, be your servant.' I am the character referred to in the quotation, and I insist that you shall not be my competitors for distinction in the coffee-making line."

When the evening repast was over, the Lieutenant takes the ladies, one on each arm, and kindly gives them a bit of walking exercise by moonlight, through the grove, thus relieving the tedium of riding all day. The balm, stilly breezes creep through the open spaces with voluptuous effect, inspiring the arm-in-arm trio with soft sentiment, and their happier thoughts are mostly on themselves. "Stop," says Emma. "What dreadful noise is that?" as the distant screeching howl of the Coyotas fell on the ear. "It is the Coyotas," replied Lieutenant H.

"Let us return to camp at once," said both the ladies, and back they went quicker than they came.

It is ten o'clock at night, the guards are on duty, and all retire, the ladies behind the ambulance curtains, and the officer and Lew on a blanket before the camp-fire. The wolves come in and howl an hour or two within a few rods of the fires, in search of camp offals. The eyelids of the fair ones refuse sleep. At last a charge is made on the lank, hungry creatures, and a volley fired into their ranks by the guards, and they are routed and return not for the night, and then *Somnus* commands all in quiet rest for the next six

hours. At seven in the morning breakfast is over, and the advance leads out again, followed an hour later by the traveling *partie carree*.

The next six days of travel furnish no great variety of scenery or excitement, except in the social department, which seemed never to cloy. Otherwise, the trip, for the most part, was but a daily experience of repeated routine. All eyes and ears became familiar with sights and sounds by night and by day. Immense droves of cattle and horses were seen grazing right and left over the wide-spread prairies, and occasionally lank hunger was seen sitting at the mouth of his hole, in some sand bank or mound, or at the roots of some lone veteran tree, looking wistfully at the travelers, seeming to say to them, "How I would like to feast on your starved carcasses!" A bullet from the Lieutenant's rifle keeled one back into his hole, and scared another, tearing a rabbit for his breakfast so bad that he made lightning speed northward, and never slacked for the mile he was in sight, and at the brow of the hill, where his *narrative* became invisible, its last motion seemed to speak back and say, "I never heard a rifle before." And probably it was the fact—and on he went, as if resolved on never stopping till he got to the north pole, for fear he might hear another.

On the seventh day the weary travelers stood on the banks of the far famed "Rio Grande," at Brownsville, opposite the city of Matamoras, in the State of Tamaulipas, Mexico. The Lieutenant here ordered the advance into camp to wait his return. And then he crossed the "Rio" with the exiles, and remained with them till they were located in a pleasant suite of three rooms fronting on the "Grand Plaza," near the magnificent Cathedral. He made the excuse to himself that it was necessary for him to act as special protector to the ladies, till they were sufficiently familiarized with the ways of that strange people, to be able to make their own way, till he could see them again, and perhaps in nearer and dearer relations.

Lieutenant H. had now had ample time to analyze and determine the character of his feelings, which he more than once had displayed in manner toward Mrs. E., but had not spoken with his lips. In his self-examination he found his heart vibrating between two attractions—Mrs. E. and Emma. The question of preference, as tried by a purely chronological standard, stood against Mrs. E. She was considerably his senior in years, that was plain, but how much, and how many years, he could only guess. He could not tell if she were older or younger than she appeared, but probably older; that is, she

was young appearing for one of her years; or, *vice versa*, she was old appearing for one of her years; that is, younger than she appeared; or, making a third alternative, she was just the age she appeared to be. "But how old would that be?" he asked himself. And here again he was puzzled. Sometimes, during their travels, he thought she looked younger, and then again older, than when he first saw her, and served the summons. At one time he thought he saw the signs of wrinkling age, and then again he didn't see them. "But," he said again, "one thing is certain, the general proposition is true, that she is either older or younger than she looks, or just as old as she looks. So far I am safe; and furthermore, it is safe to affirm that, judging from *mere* appearances, she is about forty years old. She may be older, or she may be younger. Yes, she may be, but I think I am not far out of the way. She certainly is, without any possible mistake, somewhere between thirty-eight and fifty. If I were sure she were only forty, I could stand that. Let me see: I am thirty-five. Suppose she were but forty; how would that do? A wife five years older than her husband! It would sound better the other way. I don't like it very well, but, with love, I think I could endure the disparity. Endure (?), is that the word for a man seeking a companion?

"There is Miss Emma; how old is she? From twenty to twenty-five. That certainly sounds better. But do I love her well enough to make a wife of her? Well, I think I could, or do(?), if Mrs. E. was out of the question; I feel her drawing me the hardest, and the orthodox people say there can be but one true love, and I suppose it must be so, either because they say so, or because it is true in fact, in nature, that is, one's experience will accord with the sentiment. But is it true in my experience? I am afraid not; therefore I am a miserable sinner. It is true, I am more or less involved in feelings toward Miss Emma, warmer than common friendship between a single lady and gentleman, and it is *more* than less. Now what is a man to do with an experience so in violation of the orthodox teaching and steady habits of the olden times of our ancestors?

"But hold; here I am talking quite foolishly, for how do I know that either of those ladies would accept? I have not proposed, and they certainly won't. What shall I do? I can not propose to both, for I am not a Mormon, and don't want to be. Still I like them both, that's true, but the laws of the land are against bigamy. I wonder if nature is? Certainly human selfishness is not. But hold again, there is no end to love's mystery. The only way is to be

brave. 'A faint heart never won a fair lady.' The more I think, the more am I confused, in a quandary. O thou winged god, tell me what to do! I am resolved what to do. I will first ask one and then the other. But which one first? And will this be honorable to the last? Stop, ye gods! confusion confused! What am I about? Crazy! ho, for the insane asylum! But I must find relief. I am desperate!"

Evening shades appear, and Lieutenant H. is seated alone with Mrs. E., and after a few palpitations choked down, his sitting posture and position of hands made satisfactory, and his words well studied, his lips part to speak the word of destiny, when Mrs. E. suddenly breaks the awful silence with the domestic utterance, "How I would like to see my little daughter Kate and my husband to-night."

Horrors seize upon him. He makes no reply. "What is the matter, Lieutenant, you look so pale?" inquired Mrs. E. He grows paler, and she goes for the camphor, and hurrying back places the bottle to his olfactories, repeating, "What is the matter, Lieutenant?" Recovering a little, he stammers out, "Nothing, Mrs. E.; nothing, only I felt a little faint, as I do sometimes. Let me pass out into the open air, and I shall soon be myself again." When he stood outside in the free air, and looked up into the heavens, made beautiful by moonlight—the unrivaled silvery moonlight of Mexico—he thanked his stars, most of all, for putting it into the heart of Mrs. E. to speak at the instant she did, and save him from unutterable chagrin! In a few minutes he returned to the room where he had left the lady, and was once more seated in her matronly presence. She was changed, and looked older now, and more unapproachable in his eyes. Surprised at his quick convalescence, he was now prepared to enter upon conversation with Mrs. E. concerning Miss Emma. He felt settled now that his angel was calling his heart toward her. So after a few easy interrogatories, addressed to Mrs. E., he was satisfied that she was neither married nor engaged.

Miss Emma had been out walking with her brother Lew, and had just returned and entered the room. For a few moments all took part in a running conversation, but being about time to retire, Mrs. E. and Lew withdrew from the room, thereby breaking up the congregation, and leaving the Lieutenant and Miss Emma, each to enjoy company. "Two are company, and three are a congregation," says Emerson.

We will say in brief, he proposed and she accepted, but on condition that she might remain with Mrs. E. during the exile.

"Certainly, Miss Emma, you shall remain. I would not have you leave her, and am glad to see this evidence of your friendship and faithful devotion. And now, Miss Emma, as I have never been an advocate of long courtships, but deprecate them after the parties engaged are sufficiently acquainted, I would respectfully suggest, that without ceremonious preparation or invitations, which we could not have here, among strangers, and in a strange land—and without waiting till we can have them—we have the nuptials solemnized to-morrow evening, in this room, at eight o'clock, in the presence of Mrs. E. and your brother. I will remain with you a few days, and then return with my squad, and report to headquarters, and by some honorable means get back to you here at an early day."

At this interesting stage of proceedings, the retired portion of the congregation was called from their slumbers to hear and sanction the matrimonial terms, which, being duly done, the ladies disappeared for the night, and Lieutenant H. went to repose with Lew, who in twenty-four hours more would be his new brother.

They were married, and in ten days duty called the bridegroom to interior Texas, where he was held four months before he could come back to his bride. Three months more, and the war had closed with victory for the "Stars and Stripes." Mrs. E. and her friends were relieved from exile, and all returned home to the blessings of peace and joys of domestic life. Lieutenant H. had proved a heaven-sent blessing to them all.

CHAPTER XV.

LAWLESSNESS AND CRIME.



In the summer of 1863, we were coming up the Texas Central Railroad, from Houston to Hempstead, a distance of fifty miles. On reaching the latter place we had stepped from the cars to the depot platform, and in a minute heard a pistol-shot on the opposite side of the train. Thought nothing strange of it till in a moment more some one remarked: "A man is shot." And even then thought nothing unusual of it. The feeling of terror was only a uniform matter of course. But stepping across the way we observed a crowd gathering at an unoccupied store building, went in and there saw a man on the counter, stretched at full length on his back, struggling in his blood, and breathing heavily, with a bullet-hole through his head and brains protruding. Near by him stood his murderer, Dr. O——r, with *nonchalance* and a smile of fiendish satisfaction.

The dying man had been overseer on his murderer's plantation. A difference had arisen between Mrs. O——r and the overseer about the management of the plantation. And the lady, true to Southern instinct, could not brook opposition from an overseer, so she writes herself "insulted" to the doctor in the army, and home he comes in a rage by the train we were on, and spying the unsuspecting offender through the car-window, leaps out and shoots him down at sight and without warning. No one looked strange or excited, or said a word. We walked back to the train in disgust, feeling it may be our turn next. Went home to B——m, twenty-five miles, and the next morning a friend of ours—a druggist, Dr. F——g, from Paducah, Kentucky, at the opening of the war—was assassinated in the public streets. The writer officiated at his funeral from his widowed mother's house, who was thus robbed of her only son and support in old age. The sheriff of Washington County witnessed the transaction, and had foreknowledge of it, but did nothing officially to prevent or punish the crime. The name of the assassin was B——t, who, the writer learns, has since come to a similar end himself in the State of Mississippi, thus illustrating the innate reflex, as it were, of

the law of retributive justice that sleeps not nor slumbers till it has blood for blood, life for life! The murdered man's mother and only sister are since deceased, hurried out of the world by the great sorrow of his untimely and tragic end!

One night after the family had retired several pistol-shots were fired back of our house, attended with boisterous talking. Dressing, we went to the back window, and there saw a man in the moonlight falling to the ground. Just then a voice at the front of the house called: "Mr. N., Mr. N., come down here, I want to see you quick!" Descending the outside stairway leading from the upper to the lower gallery, we met our friend Captain C., who instantly exclaimed: "Mr. N., I have shot my best friend all to pieces. Please go and look after him. I must leave. You will find me at Dr. B.'s or about there." We went to the dying man, and found several collected around him. He had two shots through the knee and thigh, the latter cutting the big artery, and he bled to death in a few minutes.

It was Mr. Smythe, whom we had met not three hours before in the evening, and who then took occasion to protest his innocence from having taken part, as we had been informed, in a little persecution against the writer about the purchase of a lot of cotton. We noticed he seemed somewhat excited, judging from his tone of voice in the dark, and he on horseback in the street. While conversing he remarked in a low defiant tone: "You know, Mr. N., that I am not afraid of *any* man!" Just then we heard the click of a pistol in his hands, and instantly felt ourself in danger, and saying to him "it is all right," suddenly retreated to the house and did not go out again till called out to look after his corpse.

It seems after we left him he fell in company with a drunken desperado, and about eleven o'clock the latter came to the gate of our backyard, on Smythe's horse, and called by name for one of the colored servants to come out to him, and getting no response tore pickets from the fence and hurled them against the door of the negro quarters. Soon Smythe appeared and an altercation took place between them about the horse. Our friend, Captain C., was passing to his home, and out of kindness to the family sought to quell the disturbance. As he reached the spot the desperado was drawing his revolver on Smythe, and when disarmed by the Captain, then Smythe in turn drew a derringer on the desperado, when the Captain caught it in his left hand, holding the revolver in his right, and saying: "You shall not shoot

a disarmed man." Smythe responded: "Let go my pistol or I'll shoot *you*," accompanying the threat with an oath. A struggle ensued in which Smythe recovered the use of his pistol, and shot the Captain, grazing his hip. He replied with two shots, which finished Smythe's career on earth. A preliminary examination was had, and the Captain was bound over, but the grand jury dismissed the case as justifiable homicide.

We will now relate an incident, with which the writer was still more personally connected, to illustrate the bitter prejudices a Northern man had to meet living in that country. Yes, prejudice! a thing conceived in sin, born in iniquity, twin of jealousy, and equally cruel; one of the relics of barbarism still clinging to poor human nature, tormenting its waking hours and its dreams by night, lurking in the soul's deep recesses, and in the thoughts of the brain, displaying in its action all the bristling, snarling, growling, barking, and snapping suspicion of the canine race, ready to pitch on every strange dog passing the street. It may be further characterized as the blindest, most unreasonable, hateful and hating, and most desperately wicked passion of the human soul. It casts its blighting mildew over everything it touches.

We can have no extensive acquaintance with its presence and power in society until we have met and felt its chafing and friction-grinding power in the strange relations and contacts of a selfish and suspicious world. Our ideas and feelings are not sufficiently humanized and catholic in their sway. And when we think they are, frequently on occasion we are waked up to discover they are not. The thought is unwelcome, that in this we exhibit still, in despite our genteel and generous progress, the unconscious affinities of barbarism.

But why do we thus comment? Because in our five years' Texas experience we met this monster of the human heart in shapes and phases, deeper, darker, and more vile than we had ever dreamed of before, or could have dreamed if we had never seen Texas. There this barbarous element assumes a more lawless and criminal form than in any other country we ever saw. There it hesitates not at doing personal violence to its object. And so much the more as they value human life less than other people. Comparatively, Northern people can scarcely imagine what prejudice means except in milder forms, and as defined in dictionaries, pulpit theories, and so forth.

A lady friend said to us on our return from that country: "Mr. N., you ought to be a wiser man for what you have seen in Texas." A gentleman was kind enough to say to us: "Served you right, you had no business to go there in the first place." Now we do not of course ask the alms of sympathy in our Texas experience, particularly from such as might feel harmed by the exercise of that noble grace, but simply appear as the writer of a little personal history.

Perhaps no Northern man was more unfortunately situated in Texas than the writer. He had gone there just a few months prior to the war, which, to the eye of prejudice, was evidence, *prima facie*, that he was a spy, or something else inimical to the country's welfare. If not, why was he there at that late day? The incident we wish to relate is in the following.

CHAPTER XVI.

THE TWO DAYS' MEETING.



Some time in June, 1864, the writer had an appointment for a two-days' meeting, fourteen miles away, at a place called U—— H——, Saturday and Sunday. On the morning of the sixth day of the week, the splendid clay-bank saddle-horse was brought out, young and vigorous, and the preacher placing himself in the Spanish saddle, was on his way to the religious meeting, reaching there two hours before the time. Preached at eleven o'clock A. M. to a large week-day audience in a neat house of worship situated in a beautiful grove on a hill which was the highest land-point in the county. He was the invited guest of a local preacher, at whose instance the appointment had originally been made.

In the afternoon, a self-resolved committee of three gentlemen called on the preacher to know if the report were true, which was current there, they said, that, on the 12th of April previous, he had held a feast at his house, to which all the Yankees in the neighborhood were invited guests, and that, too, in *express* opposition to the proclamation of President Davis, making that a day of fasting and prayer, calling upon the people to resort to their places of public worship, and pray for the success of the Confederacy. If not true they desired to suggest that the preacher had better notice the report in the public meeting that night. His local preacher friend opposed giving any such undue prominence to the report. But he disposed of the committee by remarking: "I will follow my best impressions at the time."

The evening came on, the audience assembled, and after preliminaries he arose to announce text and subject, but before doing so said to the hearers: "I understand you have a grievous report about me here, the scene of which is laid in B——m. I heard the report myself some time ago there, but it bore such evidence of instigation by the cloven tongue of prejudice and slander that I thought little of it, and it had passed from my mind." The preacher then gave a brief recital as they had it. "But," said he, "the report in B——

m had one item that you have not here. That at the close of the feast I was at the head of the table and drank off a toast to the name of Abraham Lincoln. Furthermore," said he, "I will now give you another fact not contained in either report. It is this: The Confederate Brigadier-general M., with three members of his staff, were present at my table that day. One of his staff officers is a Baptist clergyman, and was the only minister present at the public services that day, and officiated in his clerical capacity, coming from church to my house. This important fact was evidently left out of the report, because if included it would have damaged the plausibility of it and defeated the purpose of the intended slander, which was to injure your humble servant, and no one else."

The preacher continued: "We had two meals that day at our house—breakfast at the usual hour of eight o'clock in the morning, and our bill of fare contained no extras on account of the day; nor do I remember that the bill was reduced or modified either in quality or quantity to suit any preconceived notions as to what would and would not be proper to eat or abstain from eating on that proclamation-day of fasting and prayer. We had dinner at four o'clock in the afternoon, and having fasted four hours beyond the usual hour for that meal, we thought it not a serious breach of the letter or spirit of the proclamation-text to crowd a little more into the dinner hour at four P. M. My wife is a splendid cook herself, and what with that fact, and her supervision of three or four colored assistants, and the inspiration all were under to do their best because of the coming presence of the aforesaid military dignitaries, we *did* have about as good, and delicious, and sociable a meal as the times and the state of the market would permit. I will not so far dignify the report as to deny the evil animus of it, but call the attention of the audience to two facts, and leave you to draw your own conclusion: the *toast* and the presence at our table of a Confederate Brigadier-general, with his staff, reconcile them who can."

Here leaving the matter, he announced his text: "But the Scripture hath concluded all under sin." And as he was in the mood of a holy indignation at that hour, he evolved from his text the topic of "*sin*: wherein it consists," and "*its bitter fruits*: wherein do they consist." And he gave them, to the best of his ability, a sermon that savored of brimstone and the hot place below!

Sunday morning the preacher gave them "faith, hope, and charity," and felt victory his, as seen in the increasing numbers and interest of the meetings.

General M. was his personal and accepted friend, and a Union man at heart, and accepted the garb of a brigadier-general of State militia to hold his political popularity in the State, for he had aspirations toward the gubernatorial chair, and hoped some day to do his State better service in a civil capacity.

CHAPTER XVII.

THE CONSCRIPT LAW AND HOW THE WRITER BEAT IT.



Three years and more of war had now passed, and we had succeeded in flanking all movements to get us into the army. The conscript law had been in force a year or two, sweeping all ages from eighteen to forty-five, and all classes except ministers of religion in regular discharge of ministerial duties, State and county officers, and slaveholders owning a certain number of slaves, fifteen being the minimum. Of course, it being the slaveholder's war, and the slaveholder never having been obliged to work for his rights in human chattels and things, but others made to produce and maintain them for him, his aristocratic leisure must be consulted and favored still, in the conduct of the war. *It was the slaveholder's war, but the poor man's fight.* And nothing pleased them better than to force a Northern man, described in their parlance—"a d—d Yankee, and a d—d abolitionist"—into the army, and get him killed off.

The writer has been asked a hundred and one times: "How did you escape the army?" The question is easily answered. After the first volunteering wild-fire had swept over the land and died out, he saw what would be the next step in the war programme, conscription. "The wise man seeth the evil and fleeth," says the prince of wise men. And though he did not flee in the literal sense, yet he did in the legal sense of the coming conscript law, by changing his "base" from that of a simple private citizen to that of a minister of religion; and had his regular congregation, to whom he ministered over two years. By this *dernier* resort, he bridged over a bad place in the road—for "Jordan was a hard road to travel"—and he was on the hardest part of the road in those days.

But as late as February, 1865, a new exemption law was reported to the Confederate Congress, and on the eve of being passed, containing this

clause: "All ministers of religion, who have, at any time during the war, bought and sold for profit, shall go into the army." This law was reported to Congress by Mr. Miles, of South Carolina, Chairman of the Military Committee. But we were credibly informed the Hon. Williamson S. Oldham, representative from our Congressional District, drafted it, and inserted the clause relating to ministers of religion, with particular reference to the writer's case. The Hon. gentleman had spent two hours or more in our store, the day before leaving the last time for Richmond, Virginia, to dance attendance upon the last and forlorn session of the Confederate Congress. And having posted himself in our case, he concluded that business clergymen were the forlorn hope of the Confederacy. The animus of the law was that ministerial drones only, who would not work, but preferred starvation, or living off their broken-down congregations, were entitled to exemption from military duty. But the more enterprising class of ministers, who were willing to divide financial burdens with their congregations, by seeking business pursuits, for supporting themselves and families, and yet giving them the same amount of pulpit service, with the drones, were damaged by the virtue of business enterprise, and held to the performance of military duty.

This looked like the impassable gulf which we could neither cross nor flank. But Solomon's forlorn hope of "fleeing" was left us, and we made a hasty and masterly retreat out of Texas into Mexico. The retreat, however, like all hasty retreats, was expensive and financially disastrous. We had no time to strike tent, gather up family and material interests, and take with us. It was the occasion of finally losing thousands of dollars. But when safe on the sunset side of the Rio Grande, in Matamoras, the Confederate asthma left us, and we breathed freer. But not long after, we found that though we had escaped the Confederate "frying pan," we had jumped into the Mexican "fire," for the demon of war was after us there. The city was under the personal command of General Mejia, the favorite General of the Emperor Maximilian, and who, the reader will remember, perished with his imperial master at the tragic close of the quasi Empire. And at the time we speak of, the city was beleaguered by Generals Canales and Cortinas, of the Liberal party, on the outside. The report was put in circulation that the foreign residents must help defend the city. This was the most dangerous ground yet, for in case of the capture of the city, the foreigners in arms, just at sunrise some fine Sunday morning, would have been filed out on "Boro

Plaza," and shot to death without "benefit of clergy." The public shooting of one or more on this plaza was generally the opening entertainment of each Sunday. From shooting all went to High Mass, then to carrying the host through the streets; thence to the cockfights, beer-garden dances, theaters and other amusements the balance of the day.

The writer found that long familiarity with such scenes resulted in a demoralization of noble sentiment and refined feelings; so that at last one came to regard human life not much above the level of brutes, and to feel that there is no virtue except in name, and that the distinction of right and wrong is only relative and conventional, having no absolute and universal foundation in truth and equity. Indeed the Romish Church of Mexico—and no other is there—seemed to act and move on this broad assumption, as she does everywhere, when permitted to act out her nature freely, that truth and right are not absolute things as they relate to mankind, but are to be held subject to her *dictum* and disposal. Hence the same thing may be right or wrong at the same time, depending only on the circumstance of being allowed or disallowed by the Church. Here comes in the plausible, yet mischievous doctrine and dispensation of indulgences. There is but a step betwixt truth and error, betwixt the sublime and the ridiculous.

The Rev. Dr. L——n, from Nashville, Tennessee, a Cumberland Presbyterian divine, and the writer, joined in a petition to his Imperial Majesty, Maximilian, for a free permit to hold religious services as Protestants in the city of Matamoras. The petition was granted, and soon after it was followed by a proclamation from the Emperor, decreeing religious freedom to all throughout the Empire, including foreigners. This was doubtless a species of *religio coup d'etat*, intended for effect; but more abroad than at home, particularly in the United States. However we took advantage of it for a few weeks in the city; and held services in the "Varieties' Theater," each Sunday morning, for the benefit of the Anglo-American population. But after the fourth Sunday we began to feel the bitterness of the native population toward us. And this, in connection with the danger that the city might fall into the hands of the Liberals, who were less liberal in religion than the Imperials, caused us to discontinue the religious services. And though so soon defeated, yet we felt a little wholesome pride in the fact that we were the first Protestant heretics that

ever bearded the Romish Lion in his Mexican den. The city remained in Imperial hands till we left.

CHAPTER XVIII.

A PLOT AGAINST THE WRITER'S LIFE— MORE ABOUT TEXAS.

n July, 1864, being in trade at B——m, and having been for two years doing a commission, receiving, and forwarding business, besides buying and selling on his own account, the writer called one day at the Collector's office, in the court-house, to pay the quarter's two and a half per cent. taxes on sales. The Collector being absent, he inquired of a squad of men at one of the front doors of the court-house—among whom was his Honor District Judge S——d—if they had seen the Collector. Just then a man came hurriedly pressing through the squad, and approaching us asked if our name was N——. We had no sooner said yes, than he struck us over the mouth, cutting both lips nearly through on the teeth, accompanying the blow with the denunciatory charge: "You d——d scoundrel and thief, you have stolen \$23 from my wife."

In quick succession six or eight more blows followed the first, when, bringing into requisition the little knowledge of the "gloves" obtained in boyhood, we succeeded in warding them off. His poor success as a pugilist drove him to the use of an office chair, whose blows were received with another. Then he changed to hurling the chair at us with all vengeance, which we received as before, until both chairs were demolished. By this time we were in the court-house yard, when our personal friend, Deputy-sheriff Hardin, came to the rescue, caught Mr. T——d, our assailant, under his powerful right arm, and held him as in a vise. By this time our assailant's brother appeared on the field, and ordered the Sheriff to release his brother, saying: "It is all right to whip the d——d Yankee." "No, Sir," replied the officer, "if you want to hurt Mr. N. you must hurt me." He released him on a promise to keep the peace. Meanwhile, we saw a dozen men circled around us, armed with revolvers. We could see the devil in each eye. We then began to suspect a plot. But what could the charge mean? The explanation had come to us. We remembered the clerk had said some lady

had brought to the store a lot of dress goods, and requested their sale for her account at certain prices. That he had sold them for the gross amount of \$230, taking out the usual ten per cent. commission of \$23, and paid her the balance. We made a statement of the facts to the circle of desperadoes, and then retired to our house.

The next day, from a couple of friends, leading men in times of peace, but nowhere in such times, we learned what the plot was. The low class hated our presence in their midst, and business success, and in their bitterness would drive us from the country or kill us. The \$23 matter was to be used as a pretext for the attack, hoping thereby to provoke retaliation as a further excuse for shooting us down, and in case of failure his confederates were to reinforce him.

They seemed to calculate pretty safely that a dozen of them, at least, could dispatch *one* unarmed Yankee. A calculation very different from that which they boasted at the opening of the war, that "one Southern man could whip just one dozen Yankees." Yes, our assailant swore vehemently that "he preferred fighting Yankees at home rather than in the field." We replied, "very likely, if unarmed."

The friends advised us to leave the place, as they feared secret assassination. We took their advice, and left for San Antonio, one hundred and sixty-five miles west, where we took our family in a few weeks, and spent the winter of 1864-5. On the first day of March, 1865, the writer took an ambulance stage—a sort of private irregular affair—for Matamoras, having for company, beside the driver, a lady and two children, going to her husband there, and placed under our care. The driver had never been through on the route before. We got along quite well the first three or four days, having a change of mules each day. But one afternoon we took the wrong road, and brought up ten o'clock at night, lost in the middle of, so to speak, a shoreless prairie. The mules exhausted, the driver turned them out to graze for the night, with forty feet of stake rope between each pair.

The lady and her children were settled for the night in the stage, and the driver and ourself took the accustomed ground bed. At break of day the writer awoke, and raised his head to look for the grazing *mulos*, but could not see nor hear them. Suspecting they might have taken leave of absence, the driver was instantly awakened, and he followed the rope trail in the road

we had come the night before, a half a mile back, and then it suddenly changed to the right oblique, and was lost in the trackless prairie grass. The sun was two hours high, and it was Sunday morning. It felt like Sunday all round. No sign of civilized life in view on that ocean prairie. Here and there could be seen, forty and eighty rods off, the hungry Spanish wolf seated in quiet watchfulness, and patiently longing for a human meal. Our provision box was nearly empty; the children were crying for water, and we had none, and could not tell when we would have any. Nine o'clock came, and no driver nor mules yet. He had gone northward, and the writer struck out toward the rising sun in search of the missing animals. We had gone about a mile, and saw a mile or two further in the distance two men on horseback, driving a large herd of cattle and horses. We followed them as rapidly as our pedestrian qualities would permit, and when on an elevation, within possible hailing distance, say half a mile, we raised an Indian whoop, and imagined ourselves considerable of an Indian in the whooping line just then, as there was a strange feeling of life and death about it. We succeeded in making them hear, got their attention, and by waving a white signal, succeeded in drawing them to us. They were Mexicanos, not able to understand a word of English. Fortunately we could make them understand the situation, in their own language, the Spanish. We gave them two Spanish dollars to go and hunt the mules. They were gone an hour and returned, handing back our money, saying the *umbra* had the mules. We took but one dollar, giving them the other for their honesty. "Adios, Senor," and off they rode. Just then we saw the driver coming with the mules, two miles off. At first they looked like one immense animal about forty feet high, mounted by a man twenty feet more. This illusive effect was produced by the prairie mirage. About noon the mules were in harness again and moving.

At four in the afternoon we reached water at a Mexican Rancho. The children were nearly famished from thirst, as they had been twenty-four hours without water. And here we struck the lost road again, twenty-eight miles from Rio Grande City, on the Rio Grande, called Ringgold Barracks during the Mexican war with the United States, named for Major Ringgold, who was killed there.

We passed down the river on the Texas side with a fresh team, crossing it by ferry, at Edinburg, and then we took the stage on the Mexican side, one

hundred and fifty miles to Matamoras. We made that distance on the finest road we ever saw, in just twelve hours. The next stage that came through was captured, and robbed by the cut-throat Cortinas, who is dignified in the military world with the title of General. The splendid stage line was thereby compelled to haul off, to the great annoyance and detriment of the traveling public.

We will here record a tragic incident to illustrate the savage character of this half-breed semi-barbarian Cortinas. But it is quite enough to mantle with patriotic shame the American cheek, to know that a high Federal officer was *particeps criminis* in the foul play.

Don Manuel G. Rejon was a Spanish gentleman, of fine personal appearance, in whose veins ran the pure Castilian tide, an eminent lawyer, and a member of the Mexican Congress. In April, 1864, owing to the political disturbances which occurred in the States of Nueva Leon and Coahuila, he fled to Brownsville, Texas, and thought himself secure under the protection of the United States flag.

Jose M. Iglesias, one of President Juarez's Ministers, was at this time in Matamoras, and solicited the extradition of Rejon. General F. J. H., commanding the Federal forces on the lower Rio Grande, turned him over to the Mexican authorities.

The surrender of a political refugee like Rejon, that he might be put to death by his enemies, never occurred before in the United States. The famous, or rather infamous, Cortinas was then Governor of the State of Tamaulipas, and in obedience to the arrogant orders of Minister Iglesias, caused him to be shot. A father's prayers, a woe-stricken wife's tears, and the piteous wailings of his children, did not avail to save the unfortunate Rejon.

General H., after having surrendered Rejon, applied for the extradition of a certain Confederate agent, who resided at Monterey; but his wishes were not gratified by the Mexican authorities. We believe the name of the agent was J. A. Quintero.

The surrender of the fated Rejon was a gross outrage upon the principles of civilized warfare, and was done with the moral foreknowledge of the bloody fate that awaited him. The act was as if surrendered to the tender mercies of Indians! And though General H. might have been actuated by a

desire to secure the surrender of the Confederate agent Quintero, yet this furnishes no palliation for the unprecedented action. The act remains a blistering stigma upon the General, as it should; and is an unvarnished disgrace to the United States service—inexcusable, inhuman, and savagely mean; showing that even a Federal General, in *one* instance at least, could hob-a-nob in cut-throatism with the infamous Cortinas. In our view, it was a high-handed stroke of arrogance, unauthorized by military precedent or necessity, and should have resulted in cashiering General H., and dismissing him from the service in disgrace.

In a few weeks the writer's family came to him in Matamoras; five hundred miles they came alone, with a lady traveling companion, through a wilderness country, camping out fourteen nights, the Spanish Coyotas making night hideous with their Scottish bagpipe combination of screeching, howling sounds. The country covered much of the way with Mesquite and Cactus "Chaparral." Very little water, except in puddles by the wayside. Our youngest child, eighteen months old, sickened from the water, and nearly died at Matamoras. The overdone condition of Mrs. N., from personal exposure, mental anxiety and fear, she has never fully recovered from. We are vain enough to think that few women could have shown equal heroism under similar experience, and lived through it. Doubtless the experience of previous years in the Methodist Itinerancy had prepared her for such emergencies. We know not, indeed, what we can endure until put to the test.

Only two weeks before making this journey, the family had been flooded out in San Antonio by the sudden rise in the San Antonio River, eighteen feet in two hours. They barely escaped with their lives, losing nearly everything in the line, of household goods—carpets, five feather beds, mattresses, a lot of elegant parlor books, and among them an elegant gold-clasp family Bible, containing the family record, worth thirty dollars and otherwise valuable as a gift of former years. The flood was caused by a sudden discharge of an immense water-spout from the heavens, a few miles above the city in the San Antonio Valley. The water-spout had come from the Gulf, a hundred and fifty miles or more, and discharged itself in the valley, throwing the river over its banks. The writer was in Mexico at the time.

CHAPTER XIX.

LEE'S SURRENDER.—EFFECT UPON TEXAS SOLDIERS.—WRITER'S RETURN TO TEXAS.



e were in Matamoras when Lee's surrender took place in Virginia. As soon as the news reached Texas the Confederate soldiers began to desert in squads—the desperado class—organize into predatory bands, roam at will over the country, and rob everybody and everything they could lay hands on. Took special delight in robbing Northern merchants in the country.

They broke into the writer's store at B——m one night, and carried off three to four thousand dollars' worth of goods; and that was the end of it. There was no chance for legal redress, for the condition of the country was that of lawless disorder. It was not certainly known who the robbing parties were, but if it had been, it would have been considered guilty knowledge by them, and probably cost one his life.

On the 15th day of June, 1865, we took passage with our family, on a Government transport, and came to New Orleans. Thence on July 1st we secured passage by the "Star Line" of steamers, for the family, to New York, and in a few days returned ourself to Texas, to gather up, as far as possible, the fragments of business. Landed at Galveston just behind Hamilton, Military Governor of the State. Followed him up country, and on reaching B——m, found Major Curtis, from Southern Illinois, in command of the post, with two companies of troops.

After an absence of a year, we were back again on the ground of former trials and dangers. But now, with an assurance against fear, the first thing we saw was a squad of men sunning themselves on the front gallery of our old dwelling house. Among them was the man T——d, who had made the attack on our life the year before. We walked up and saluted them, saying, "How are you, gentlemen? I see a new order of things here since I left; how do you like it?" Did you ever see the downcast look of a sheep thief? Then

you can imagine how some of these scalawags appeared. Some never looked up again after the first glance. Our assailant paled, and looked as if his heart were quoting the interrogatory of the ancient devils: "Hast thou come to torment me before my time?"

With one or two gentlemen we passed to the Court House, where Major Curtis had headquarters. Took a birdseye view of the situation, and then went to the house of our North Carolina friend, a Union man, and who believed in Sam Houston. He could not well be otherwise, for he had been so fortunate as to secure a genuine New England lady for a wife.

Sunday morning we were passing the soldiers' quarters, and saw them handing a coffin into a wagon. We halted, and addressing the gentleman giving directions, found it was Major Curtis. He told us the deceased was a fine young man from Southern Illinois, whose praise was upon the lips of all his soldier comrades. The indications were, that they were burying without religious rites, and on inquiry we learned they had no chaplain, and were not inclined to ask the services of a resident clergyman. We informed the Major that we sometimes acted in such a capacity, and any service we could render should be cheerfully given. On his appointment we preached a funeral discourse in the Court House, at 3 P. M., that day. They buried the Christian soldier boy a thousand miles away from home, where all were strange and few were kind.

The next day the Major desired an interview with us at his office, to obtain information about certain parties living thereabouts. Here was an opportunity to relate our grievances, and have them redressed if we desired. We related the case to him and he proposed to arrest and punish the party; but we said no, that we were willing to leave the scoundrel to the handlings of a just Providence!

Bidding the Major "farewell," and a "God bless you" one day, we took stage for Austin, the capital of the State, and headquarters of the Governor. Passed up the valley of the Colorado River, which we had frequently to ford and ferry in a distance of eighty miles, before reaching the capital.

The Governor was already bivouacked in the State domicile, and two regiments were encamped hard by the city. Judging from appearances, his Excellency meant business. Here we met, and became the guest of Rev. Josiah Whipple, elder brother of the Rev. H. Whipple, now of Chicago. He

had once been in the Methodist connection in Illinois as long ago as 1840, and before that date. Went to Texas in a missionary capacity, in company with the Rev. John Clark, who died of cholera while in pastoral charge of Clark Street M. E. Church, of Chicago, some years ago.

He insisted we must not take the stage for San Antonio that day—Saturday—but remain with him over Sunday, and perform pulpit service for him. We did so. But on entering the pulpit Sunday morning, we were unfortunate in a portion of our wardrobe, in having on a blue flannel sack coat instead of a "Confederate gray" or black, or home-made jeans, or some other color than blue. *Blue* was as enraging to the secesh eyes of some of the fair ones in the audience as *red* is to the eyes of a turkey gobbler. They could not endure the blue coat as they had seen the "boys in blue" that morning, on their way to church, and judged we were one of the regimental chaplains of the Union troops encamped near the city. So six or eight of them, led by an elderly amazon, filed out of church while the "blue coat" was on his knees in silent devotion in the pulpit.

On rising and being seated in the desk, we observed a little excitement at the door, between a couple of gentlemen and several ladies, which we afterward learned was the effort of the men to get the ladies cooled off and back into church again, which they succeeded in doing, except the old woman. She declared she would never hear a *blue coat* preach as long as she lived, and home she went. A few days thereafter we were told that the old lady and a daughter or two were sweeping the sidewalk down town with their long dress trails, and when coming to the United States flag, suspended in front of headquarters, and over the sidewalk, they stepped to the middle of the street, and thus avoided the humiliation of passing under the hated "Stars and Stripes."

Their contemptuous conduct was noticed, and reported to the post-commandant, who sent a posse after them, had them brought back, and made them march to and fro under the flag for several minutes, while the band played the national airs of "Star Spangled Banner" and "Yankee Doodle." And then they were dismissed with the wholesome admonition, "to show more respect in the future for the old flag which had done them good, and not evil, all their days."

A Sunday or two after we noticed the old lady in church again, where she listened respectfully to the preaching of the offensive *blue coat*, and we thought the thorough Union medical treatment she had received had done her good, as her bilious or rebellious condition seemed very much reduced, and the patient rapidly convalescing toward a love of the "red, white and *blue*."

We visited San Antonio, and on reaching New Braunfels, thirty miles from there, a fine German town of five or six thousand inhabitants, we found at the hotel a man just in from the bush, where he had been met, robbed, stripped, and tied to a tree, and there left to perish by hunger and thirst, or to be the prey of bears, wolves, and panthers from the mountains near by. Judging from the cast-off clothing they left behind, the robbers appeared to be deserters from the Federal camps at San Antonio. Fortunately some passer-by heard his cries of distress, and went and released the man from his perilous situation. The robbers had taken from him a gold watch, \$175 in gold, and a good suit of clothes in exchange for some rags of blue, with which the victim in part covered himself so as to get into town. In their haste the robbers left in the clothing an old silver watch, which, with the clothing, we took and turned over to the General in command at San Antonio. He kindly thanked us for the interest we had taken in the matter, and said that information had been lodged that two cavalry-men were missing from camp, and presumed these were the parties; and said he should send out a detachment, and if possible capture them. We subsequently learned they were not captured. You might as well look for a needle in a haymow as to hunt for deserters in the forests, chaparral, and mountains of Texas.

We returned to Austin the sick guest of the Rev. Mr. Whipple, three weeks in the fellowship of the sufferings of the ancient Job.

CHAPTER XX.
GOV. HAMILTON—THE THIRTY NEROS—
THE OLD
GERMAN AND HIS WIFE—THE FIGHT WITH
INDIANS—A
NATIVE TEXAN'S OPINION OF GERMANS.

Before we left Austin Governor Hamilton sent out a strong detachment to the adjoining county on the north, and had arrested sixteen members of the vigilance committee, whose whole number was thirty, and whose business had been during the war to hunt up and kill Union men. The sixteen were brought to Austin and lodged in prison to await trial. Eight of them turned States' evidence, and testified that the thirty had killed, in their own county, exactly their own number. They showed the officers where fourteen of the victims were buried, in one place.

We were invited to dine one day with a friend at the house of their legal counsel. From him we gathered the facts. He said that he considered their defense desperate to the last degree; but he was bound by his professional oath and honor to see that they had a just and impartial trial.

One of the victims of the fiendish malice of these thirty Neros was an old, white-haired German, eighty years of age, who was suspected of Union proclivities. They went to the house where the old German and his aged wife were living together alone, in peace and quiet, and made the pretext to the old lady that they wanted her husband as an important witness in some case, which partly quieted her fears. They placed the old man in the saddle, and ordered him to ride in front. As he was passing out the gate of the front yard, the villains shot the old man in the back, and he fell to the earth dead! The old lady standing in her door-way saw it all, gave one long, wild

scream, and fell forward to the ground! The wretches left, nor let the grass grow under their feet till safe in their hiding places.

The thunderbolt of insanity had passed through the soul of the wretched old wife, and when we left Austin she was a hopeless maniac in the Insane asylum. We wish to say that these things were generally unknown outside the localities where they transpired during the war.

To the northwest of Austin, a hundred miles away, we heard the report that a serious fight had occurred between the State Militia and two or three hundred Indians, who had come down from the mountains to steal horses and cattle. That the Indians fought in ambush, and made many of the whites bite the dust. But when the lying spirit of the war was over, the truth came out that these Indians were a colony of German refugees fleeing from Texas persecution to Mexico. But few of them ever reached there.

The German population of Texas were generally understood to have Union sympathies, and were therefore cordially hated by original Texans. We were riding one day into the country with a genuine Texan, and coming to a heavy German settlement, he called our attention to their fine farms and substantial improvements, and said, "See the Germans squatted everywhere on the best lands in our State. I'll tell you what I would do if in my power. I would compel them to leave the rich land and go to the sand hills and sand prairies. I don't think they have any business on these lands, and right under the noses of the better class of citizens."

This was an occasion when we regarded the "discretion" of thinking without speaking "the better part of valor." But we confess that we never felt more disgraced by the company we were in. We passed out to his plantation. His house was scarcely fit for a horse-stable, and everything was in filth and confusion in and out of doors. We thought the meanest German in the settlement his king in industry, neatness and thrift. One of the most flourishing towns in Texas is New Braunfels. It is thoroughly German in its original settlement and growth. As already stated, it is located thirty miles east of San Antonio, and probably on the shortest river in the world, the Comal, two miles long. Just to the north of the town, and running west, is a range of mountains. At the base of this mountain range, the Comal rises from the bosom of the earth, from several large springs, which flow together within a distance of a few rods, has no tributary, descends fifty to

seventy-five feet within the two miles, and then falls over a bluff, making the best water power in the State, and equal to any in the world for the quantity of water. Then loses itself in a confluence with the Guadalupe River, which still further north rises in the same sudden way. And on this stream are several fine water powers. The waters of the two rivers will equal in volume the Rock River of Illinois. The San Antonio headwaters are formed from several sudden springs three miles above the city. The San Marcos, still east of all of those before named, originates in the same way, and all of them furnish an abundance of water power all along their courses. And when it comes to the character of their waters, the writer must confess that he has never seen their equal in any country. They are as limpid as the finest spring water ever seen. We have thrown a five cent silver piece into one of the San Antonio springs, and seen it on the pebbly bottom, fifteen feet down easily, and the depth did not seem to the eye more than five or six feet.

The country, where these streams rise, is from six to eight hundred feet above the level of the sea, and only a hundred and twenty-five to one hundred and fifty miles from the ocean. The result is a clear, dry, salubrious atmosphere. So much so that if standing on a mountain top, twelve miles west of San Antonio, in a clear day, one's vision can penetrate westward two hundred and fifty miles across the Rio Grande to the mountains of Monterey, in Mexico.

CHAPTER XXI.

NORTHERN TEXAS.

n this closing chapter of our book, we have thought that a brief outline sketch of the topography, climate, soil, and productions of Texas might not be uninteresting to the reader. And in order to this, we shall speak first of its grand geographical divisions, as characterized and distinguished by peculiar products. And first we will speak of Northern Texas, which is distinguished for being the wheat region of the State. The wheat region proper embraces about thirty counties, of which Dallas County may be regarded as the center, containing about thirty thousand square miles. The rich black soil is especially adapted to wheat-growing. It yields in ordinary seasons, and under the imperfect cultivation that it gets as yet, twenty-one bushels to the acre as a mean average; and in occasional instances the quality is so superior as to weigh seventy-two pounds to the bushel. After the first year of the late civil war the supply of flour was principally from Northern Texas. Its quality was superior to any flour we have ever seen in Illinois. The soil is equally favorable to all the other cereals that are produced in the Northern States. The soil on and near the Upper Brazos is reddish, and is now considered the best for wheat on account of the solution of gypsum that it holds, and which is regarded as an important quality in a wheat-producing soil. It wears better and longer than other soils.

The southeastern and southern-central counties are the best cotton-growing region, the most fertile of all lands in the State, and for any thing, like an equal area, the best for cotton that can be found in the world. The cotton counties proper constitute about one-quarter of the State. The region also includes several millions of acres of sugar lands, often quite equal to those of Louisiana. Sugar has been produced in considerable quantities near the mouths of the Brazos and Colorado Rivers.

The topographical face of the country, in the cotton and sugar section, is quite uniform on the coast belt of it. Galveston and Lavaca are, respectively,

ten and twenty-four feet above the level of the sea; Houston, which is fifty miles from the former port, is sixty feet; Columbus, which is eighty-five miles from the coast, is two hundred and fifty feet; Gonzales, something over one hundred miles, is two hundred and seventy feet. This shows a very moderate rise, of only a foot or two per mile, from the coast far inland.

San Antonio, one hundred and forty miles from the sea, and outside of the cotton region west, is six hundred and thirty-five feet above sea-level. The table lands and the desert, called Llano Estacado (Staked Plain), in Northwestern Texas, are two thousand and two thousand five hundred feet, and some elevations are five thousand feet above the sea.

In point of climate Texas claims to be called the Italy of America. The mean temperature corresponds, and is equally clear and glowing. Its peculiarities over other climates of latitude are found in its unwavering summer sea breeze and winter northers. The first is a delightful alleviation of its summer heats, flowing each day from the Gulf as the sun's rays become oppressive, and extending remotely inland to the furthest settlements with the same trustworthy steadiness. It continues through the evening, and has so great effect that, however hot the day may have been, the nights are always cool enough to demand a blanket, and yield invigorating rest.

The severe northers occur from December to April. They come with varying durations—from a few hours to two or three days, and seldom extend beyond the general period of forty days. The rapid reduction of temperature from seventy-five to thirty-five degrees, and the driving wind, are keenly felt. When accompanied with heavy rains and sleet, as is sometimes the case, not often, the cattle suffer and die off in large numbers. These northers are not unhealthy, but invigorating, and do not cause nor aggravate pulmonary diseases. Pneumonia is sometimes developed by them, but with half the caution that we exercise in the winters of the North, its attacks may be avoided.

As in all new, warm, and highly fertile countries, the low rich river bottoms, especially of Southern Texas, which are covered with a profusion of semi-tropical vegetation, are unhealthy to unacclimated persons. The higher lands are healthy, if the emigrant make a proper disposition of himself, which is too frequently otherwise. The atmosphere of the lower Brazos, at Richmond and thereabouts, was particularly poisonous to the writer. Three days'

residence there would suffice to bring on chills and fever, and then a retreat of a week up the country seventy-five miles would suppress them.

San Antonio has been in former years quite a favorite resort for consumptive invalids seeking the improvement of health. The native Mexicans used to tell a story of its healthfulness that has the Yankee smack to it. They said some travelers, approaching San Antonio, met three disconsolate-looking fellows, who were hastening away from the city. They asked them what was the matter, and where they were going. They replied that they had met with reverses, that they wished to die, and were going to some place where they *could* die.

Yellow fever is imported into the coast towns as it is into New York and Philadelphia, but it does not originate there. Its ravages, as would be expected in such a climate, are sometimes severe, but it does not penetrate into the upland and hilly regions any more than it does into the interior of New York or Pennsylvania.

Times of Planting and Harvesting.—Plowing can be done in every month of the year. This is an immense advantage by way of economizing labor. It is done in January and February for the field crops. Early garden vegetables are planted in January. In February the prairies are green, corn mostly planted, and oats, barley, peas, etc., are sown. In March fresh pasturage is quite abundant, though the old has not failed during the winter, and about half the corn is planted. In April the balance. Then sheep are shorn, and potatoes, peas, and wild berries appear in market early in the month. In May small fruits are gathered; apricots ripen toward its close. In June corn is ready for harvesting, and peaches are ripe. In July first cotton-picking comes. We have seen new bales of cotton for sale in Galveston on the 4th of July. Cotton-picking continues to the close of November. December is a plowing, cleaning, and picking-up month.

The above statements refer to average seasons in the central and southern latitudes of the State, and to the ordinary culture of the main crops. Some of them might be grown earlier, and would ripen if not planted till months later. Most garden vegetables can be planted throughout the season, so as to afford a constant repetition of them for the table.

Wool Production.—Wool husbandry is a large and important interest in Texas. Sheep can be grown with high profit for domestic uses on the

moderately elevated dry *sound* lands of all parts of the State. But the sheep region proper—that where the pasturage is best adapted to them, both in summer and winter, where with safety and health they can be herded in great flocks, and where the land is cheap, and wool can be most cheaply grown for exportation—lies in Western Texas. It is bounded on the east and west by the Guadalupe and Nueces Rivers, and so far as yet experimented, north by the Colorado River, say from Bastrop upward.

South of San Antonio the sheep region is generally level, descending with a moderate slope to the coast. But the hilly country, commencing five or six miles north of San Antonio, is regarded *par excellence* as *the* sheep region. The hills further north become more abrupt, with narrower valleys between, and large river bottoms are reached. The present center of the sheep region is Kendall County, appropriately named after the late George Wilkins Kendall, the senior editor of the New Orleans *Picayune*, one of the best conducted and most readable newspapers in the United States. He and Horace Greeley served their apprenticeship together in the office of the Concord (N. H.) *Statesman*. In 1834 he went to New Orleans and established the *Picayune*, and entered on his career of success.

He went to the Mexican war under Ben McCulloch with the Texas Rangers. He died October 22, 1868, at his residence in Kendall County, thirty miles north of San Antonio.

He was the great sheep-farmer and flock-master of the South, the pioneer of that branch of husbandry in Texas; and he did more than all others to introduce, foster, and instruct the people in its management in a region so adapted by nature to its profitable pursuit.

Kendall County and a dozen counties around it are supplied with streams of water in abundance, clear, and healthful, and springs, some of them, of great volume. On the larger streams is a good supply of timber of various kinds. There are large groves of post-oak, affording *mast* for innumerable hogs. The hills are generally bare of vegetation except grass, which consists of varieties of the *mesquite*, probably the finest grass for sheep and beeves in the world, and quite equal to the white clover of the North. It is short, fine, exceedingly palatable and nutritious—stands drouth well, and springs up like magic after every shower. It is not entirely killed down by winter, and subsists flocks throughout the year without the necessity of artificial food. It

is only necessary for the emigrant to secure a homestead, including land enough to raise family supplies from, and his stock of horses, cattle, sheep, and hogs, can be pastured on the outlying ranges with no expense except for herdsmen and shepherds. No rental to any body. Indeed, a single man can hire his board, and without owning or hiring a foot of land, can keep large flocks and herds. And this condition of things must continue beyond the lifetime of the present generation.

Texas stretches through ten and a quarter degrees of latitude, from twenty-six to thirty-six and one-fourth degrees, over seven hundred miles. And then it reaches through twelve degrees of longitude, which, on the thirty-second parallel, would make the width of the State about seven hundred miles. The State government has already laid off one hundred and fifty-seven counties, with an area in square miles of one hundred and ninety-six thousand two hundred and ninety-nine. Territory not laid off in counties, over one-quarter of the State, including the mountainous part, seventy-two thousand three hundred and eighty-five square miles. Total square miles in the State, two hundred and sixty-eight thousand six hundred and eighty-four. The State is between five and six times as large as the State of New York, and more than three and a half times larger than all New England. None of the noted kingdoms of Europe approach its dimensions except Russia. Vast portions of it are still in a state of nature, and the balance of it is thinly populated.

There is no grand climatic or latitudinal division of the State but offers its peculiar and special inducements to immigrants. Wheat, the finest in the world, and other cereals, with fruits, etc., of all kinds, in the north, cotton and sugar in the southern-central and southeast, pine lumber and cypress in the east, and stock in the west.

Southwestern Texas is a very peculiar portion of the State, and may be geographically described as lying between the San Antonio River on the east, and the Rio Grande on the west, and south and southeast of the road running from San Antonio to Eagle Pass on the Rio Grande, containing about thirty thousand square miles.

After the establishment of San Antonio, which we believe was in the year that Philadelphia was settled—called Bexar by the Spaniards and Mexicans—many years passed before any settlements were attempted between that post and the garrisons and towns west of the Rio Grande. The first in point

of time was that of Senor Barrego, who in the forepart of the seventeenth century established a stock-raising hacienda at a place called "Dolores," on the Rio Grande, twenty-five miles below the present site of Laredo. He received a grant from the King of Spain, of seventy leagues of land. This hacienda was afterward destroyed.

In 1757 the town of Laredo was founded. This place was a sort of "Presidio" (Fort) where the inhabitants were armed occupants of the soil. And it proved the only permanent settlement of the Spaniards on the lower Rio Grande. After this ranches and haciendas were gradually extended over the country, between the Nueces River and Rio Grande. And during the first quarter of the present century extensive herds of horses and cattle, and flocks of sheep, were pastured between the two rivers. The remains of the stone buildings, water tanks and wells, are still to be seen. The troubles attending the attempt of the Mexicans to separate from Spain invited the savage hordes from the north, which had been kept in better subjection under the system of Spain than they have ever been since, to make raids upon the frontier settlements, which caused the country to be nearly vacated again.

The Texas revolution and subsequent border warfare gave the finishing touch to this country. And when the United States troops under General Taylor marched from Corpus Christi to the Rio Grande, in 1846, not an inhabitant was to be found between the Nueces and that river. It had the appearance of an immense desert to the army, unused as they were to such treeless pampas. The immense herds of cattle and horses, left to take care of themselves, had become wild, and had greatly increased; and as "mustangs" grazed over those plains in almost countless hosts, it was entirely dangerous for a man to approach them, particularly on foot, and much more so even on horseback. The old king mustang, and his male subordinates, would first drive the herd into corral by making a rushing, neighing circuit around them, and then make a fearful dash at the human intruder, striking, kicking and biting him to death.

In 1850 the *repopulation* of that country fairly commenced. The mustangs were killed or caught and tamed, and "that *so-called*" desert has been steadily filling with a hardy and active race of stock-raisers.

As the country now stands, the climate is decidedly unfavorable to agriculture. And unless some plans, on a magnificent scale, can be devised and executed, by which to irrigate that vast and rich country, the main dependence will always have to be, as heretofore, on the flocks and herds. The climate is unseasonable; but not so much for want of rain; for take the seasons through, ample supplies of rain fall for all purposes, if they only came at the right time, and in proper quantities. The planting time is from January to May, and that is the dry period of the year. It often happens that not sufficient rain falls during those months to "wet a pocket handkerchief." When it rains it rains. And during the other months of the year the torrents that fall upon the country will aggregate twenty-five to thirty inches. It is not extravagant to affirm that if the water could be utilized in some, as yet undiscovered way, that country would be the finest in the world. The desert (?) would "bud and blossom as the rose," in all temperate and semi-tropical products. The climate, on account of the dryness of the winter and spring, is as healthy as could be desired.

We think something might be done by making earth tanks on a large scale, thereby creating immense artificial lakes at convenient points, and at proper distances, to be used for irrigating purposes when necessary, and thus redeem that beautiful country from agricultural waste. It can not be done, however, by private capital and enterprise, nor by small corporations, but might be by heavy ones, under the material encouragement and patronage and aid of the General and State governments, by money and land grants, as to railroad corporations. And doubtless, in time, something of the kind will be done when the public good shall demand it. The gardens in and around San Antonio, and along the river for miles and miles, are irrigated from its waters, by little ditches running in all directions, from a big ditch or canal, that was originally built by the Spanish government when its various missions were established along the San Antonio valley. But if nothing of the kind should be done in the future, that country will forever remain the finest stock-raising section in the United States—the paradise of horses, sheep and cattle. There is little doubt that the tame cattle herds of to-day outnumber the wild ones of half a century ago. And one day southwestern Texas will export half a million of beeves yearly.

OLD LETTERS.

OLD LETTERS.

CANTO I.

ometimes old letters have the strangest things
Recorded on the worn and sallow page:
The writing, too, has neither head nor wings,
But one would think that insects for an age
Had wip'd their tiny feet where black ink clings,
Regardless of the ancient scribbling sage,
Whose quill, one pointed and one feather'd end,
Had trail'd away his thoughts to absent friend.

But who can be sure, they're any more queer
Than those we moderns hast'ly pen to-day;
E'en tho' their marks so odd and strange appear,
That as we read the mind doth halt and stay
Until the brain hath got a little clear,
In order, as we let its powers play,
We well can solve what all the scribblings mean,
'Tis so at six, or sev'n, or at sixteen.

The language, too, is no more queer and strange,
As thought doth spring and file along on thought,
And spirits meet in pleasant interchange
Of fancies told, or fancies only caught;
And scarcely caught at that in his small range,
As some poor scribbler has his fabric wrought,
And in the wretched scraping swiftly tells
What feeling urges—what his bosom swells.

Those who would have this sweetest priv'lege cease,
Must ingrate be in senses more than one;
Nor dwell at home, or anywhere in peace,
Though parent, friend, daughter, or absent son,
Such name 'twere well enough they should release;
Indeed, 'twere well it never had begun,
If cold neglect in writing they do show,
No matter if the mails go swift or slow.

But some there are who never can be made
To answer letters until ages roll

Almost away, or letters are mislaid,
Or till an absent, good, and loving soul,
Full well may think the friendly hand has stay'd,
Or that the troubled fates may have control,
Or illness may—or even worse, one's doubts—
Our friend is gone away, or else in pouts.

And yet, most happy one and all should be,
If but allow'd to bring our distant friends
So near that, they may feel and truly see
Each impulse of the heart, and as it blends,
Feel truly certain that we have the key
Which opens friendship's valve, and makes amends
For many sad, unkind, and ugly things,
That daily life with all its worry brings.

One friend I've had for many steady years.
Who, though she lives a thousand miles away,
Comes ever with her joys, her hopes and fears;
Before me every feeling doth she lay,
Which stirs my own to mingle with her tears,
And ev'ry throbbing of my heart doth stay
For her, till all she feels, or thinks, or knows,
Takes root in my own breast, and there it grows.

She lives in icy—I in Southern clime:
And e'en as the bright-eyed daughters of the South,
She loves this land—so many years now mine;
Nor deems its rainy seasons, or its drouth
Objectionable, or so out of time,
If Mail sacks but unseal their widened mouth,
And bring her freshly posted speedy news
From me and mine, where fall the Southern dews.

When fierce war raged, and battle strife ran high,
She o'er the horrid din and clamor came—
In spirit came—and heav'd a weary sigh!
We look'd together on the bloody plain,
Until our crying souls no more could cry.
As saw we our own braves' expiring pain;
"Father, forgive" this wild, this raging crew,
"For" in their strife "they know not what they do!"

So oft, when Cynth'a pale, rode high at night,
And smiled thro', or o'er a rift of clouds,

She's told me of its beauty and pure light,
That whitens air, like newly coffined shrouds,
And makes the snows so flaky, keen and bright,
While skaters skim the icy lakes in crowds,
And she, with wishing, longing heart, once more
Would come, or bring me to the ice-bound shore.

In weariness of heart, the mind so dwells
On all its windings thro' the pleasant past,
Its smooth calm seas, and undulating swells.
Its earnest aims in solemn grandeur cast,
Leaves impress on our souls, which merely tells
Of evanescent things that can not last;
And e'en tho' painful, held with deep regret,
Unwillingly would we ever forget.

This is a long and quite extended reach,
Of that begun an hour or two ago;
And looks more like a set or settled speech,
Than like the stream down which old letters flow:
And so, dear reader, thro' the lengthen'd breach,
If so you please, we'll travel rather slow,
And take as we proceed—to make amends—
Some letter missives from our absent friends.

The first of friendly sort, we point you to,
By Lewis, an ally of the "lost cause,"
Was penn'd at night, in 1862,
When subject of Confed'rate army laws,
And flew the show'ring deadly bullets, flew
With little intermission—scarce a pause;
And when men bravely fought, with might and main,
To gain their independence—but in vain.

The letter said—'twas not a hasty note—
"This now to you, may prove farewell, in fine;
We're all equipped, and waiting for the boat,
That leaves her moorings somewhere close to nine,
Which soon is here—and then afloat, afloat,
And by the morning sun's first blushing shine,
We'll wear the victor's glorious laurel wreath,
Or else be shrouded in the arms of death!

"I know, good friend, this strain must give you pain;
In carelessness I would not take a step;

And taking this, if counted with the slain,
Poor mother's tears, her pillow oft will wet
For me I know—whom she'll ne'er meet again;
Yet shall I hope, before the next sunset,
That she, alike yourself, may gladly tell,
There's One above, who doeth all things well.

"There are some things to jot down here, that I
Would kindly ask, my dearest friend, of you.
If I am *hors de combat* plac'd, and die,
Or battle's lost or gained—here's my adieu,
But please this letter send—or please to try—
My feelings scarcely can I now subdue,
While fate obstruent says, a few hours more
May transport all to an unbroken shore.

"Should fickle fortune frown, and leave me fall
Into unfriendly and blood-greedy hands,
'Twill be like being—if I be at all—
In hands next like to those of savage bands.
It doth not matter on this earthly ball,
So much where one may be, or what breeze fans.
The unhappy casualties the post will cite,
Ere one more sun has settled into night.

"Dear Charley's going too—the noble boy—
She's sad to see him with the warring host.
His joyous look, 'tis a pity to destroy;
A thousand pities more his life were lost.
But she knows well, naught but the main decoy,
Could take him thus from her, he loves the most.
God grant him life—a long and happy life,
And one with blessings, free from battle's strife.

"And now, kind friend, I say a sad good-by;
The rolling drum doth call us to repair—
Under the dull, though quiet darken'd sky,
That may so soon be turn'd to lurid glare,
As cannons play, and iron missels fly—
To duty—parcel'd out to each a share:
But none of us can tell the sad finale:
And now again I say, good-by, farewell!"

And thus the letter ended—in a strain,
That led beloved ones at home to think,

If war should spare, that he would speak again;
But give us news from which the heart would shrink,
For so is all that comes from battle plain,
Where death holds ev'ry dear one on his brink.
Such is the fate of war—the olden story,
Where men invest their lives in search of glory.

And shall I tell, how with her hand in mine,
Poor Mary sat, and leaned upon my breast;
And how her tears fell down on ev'ry line;
And how, before the morning sun's first shine,
Her weary form was out, and loosely dress'd;
And how she pac'd the room the live long day,
Till ev'ning light had lost its latest ray!

Poor child! the premonition seemed to be,
That many trials were in store for her,
Altho' their unveil'd form she could not see;
The thought brought in her eyes a fi'ry blue:
O, for some hope to which her heart could flee!
Some healing balm the stony fates would stir!
But ere the week had told its length'ning round
The secret of her sick'ning fears was found.

Suspended hope for three long days—then came
The welcome letter from our hero-friend;
He was alive—unhurt, and just the same.
And humbly thanked high heav'n for such an end;
But ah! how many, many could he name,
Who would, with his, their own dear voices blend
No more along the lines of coming years;
And to their friends could nothing leave—but tears.

"O! would, the feelings which my bosom fill'd,"
He said, "as still we glided down the tide,
And all around in nature calm and still'd—
I could portray—I felt I could have died!
No matter then, if soon I should be killed;
If all I lov'd, and ev'rything beside,
Should leave this beautiful, enchanting world,
And into death's cold, cruel arms be hurl'd!"

"No sound was heard till late at night. The moon
Then rose, and softly also rose the wind,
And swept away across the low lagoon,

Where battle soon would rage a very fiend,
And o'er the next day's fair and glowing noon;
And, raging in its lion anger, find
Its grim and ugly den of horrors fill'd
With precious blood terrific strife had spill'd.

"And Charley"—Thus this sad'ning part began—
"Is now among the noble ones laid low;
Grim death will ne'er hew down a better man;
And we, his friends, a better crave to know.
Horror! I saw his life-blood as it ran,
And then I thought—for Mary what a blow!
'Twill rend and crush her young and grieving heart!
So good—and oh, how sad that *thus* they part!

"He near the gunwale bravely—manly stood,
When o'er the waters came the murd'rous shell,
And with four comrades, swept him down in blood;
They early in the carnage quickly fell;
He rais'd his head from midst the oozing flood,
And calmly listened to the changing knell;
Then eyeing me, he said, 'Come Louis, come—
My life ebbs fast—I'll soon be going home.'

"Will you to Mary my last token bring,
And promise, ere my eyes are sealed in death,
To carry her this tiny diamond ring;
And tell her then, that at my latest breath,
I'm thinking of the songs she used to sing;
And also tell her of my holy faith
In her truth and her pure, undying love;
Which can be seal'd but in the world above?

"And have my body carried back to where
The brothers, in the holy mystic ties,
Will gather in the Lodge with solemn prayer,
Before 'tis laid beneath the open skies.
'Twill do me good to know I'm sleeping there;
Ah, see! grim darkness comes! the hour how flies!
Some other things there are, I wish'd to say,
But too late now! night—home—Mary—'tis day!

"I promis'd all—then gently laid his head,
First on a knapsack, then upon my arm;
Once more he op'd his eyes, and smiling, said,

'Thanks, Lew—I'll soon be far from war's alarm.'
Once more he press'd my hand, and then was dead!
I laid him down—no fear of coming harm,
For none could pain that cold and lifeless form;
Now all was past—let battles rage and storm.

"Of more than this, I've scarcely time to speak;
You'll find reports when papers come with news;
E'en yet, I seem to hear the cannon's shriek,
As horrid forth their belching thunder spews,
In vengeance dire and most terrific wreak,
And covers friend and foe with death-damp dews!
How sinks and quails the heart at the dread sight,
When war turns fairest day to blackest night.

"The fun'ral pageantry—the solemn toll,
The cortege, like a serpent, winding through,
The muffled drum's long-sounding gloomy roll,
The death corrode that o'er the senses grew,
Or sick'ning chill which o'er one's spirit stole,
The dead march tap—they all seem still in view—
'Twas thus they bore him to the silent bourne,
From whence, in old earth form, he'll ne'er return.

"All these and more—the measur'd tread
Of good, brave men, who slowly wound along
With his remains, to their last resting place—
I scarce can realize that he is gone,
And that his form lies mold'ring with the dead;
That we're no more to hear his joyous song—
I say, all these are trooping through my mind,
Like ghostly phantoms of some awful kind.

"I'd ask, before this missive I do close,
Which now has grown to an unusual size,
Tho' half is still unwritten, heaven knows—
That you will comfort Mary, when her eyes
Are blinded with sore weeping o'er the woes,
That will wring out her soul in deep well-cries,
And rend in sorrowing weariness her breast,
Which now scarce anything can soothe to rest.

"Yet be a comfort and a friendly stay,
And bid her grapple with her fate—not grieve,
Please try to soothe the blinding tears away,

Though little now can sorrow much relieve,
Or shed of joy or bliss a single ray.
Ah! tell her how my soul is *double* brave,
Since't feels the spirit touch of Charley's soul;
But thoughts are quite beyond my word control.

"A few more items yet, and I have done.
I would the warmest gratitude express,
And obligations deep I owe to one—
Whose heart is with her friends in their distress,
And when their joys come on, exceed her none,
In spontaneities, to smile or bless—
To you, Lottie—who disappointments share,
All that your tender prompting well can bear.

"And now, good friend, I feel I'm badly needing
A little respite from the past few days,
Whose strange events have set a canker feeding
Within my breast, where wooing quiet stays;
But now, at times, I feel it must be bleeding,
My very brain is in a dizzy haze
Of horrid things that in succession fly
Before my eyes. Once more, dear friend, good-by."

CANTO II.

f there be anything that is heartrending,
It is when called upon to yield our cheer
To those whose joys have found a sudden ending,
Indeed the task's a hopeless one—that's clear—
To attempt to improve upon or save by mending.
As well essay to move a planet from its sphere,
As talk to any one whose real sorrow
Has pass'd the line where he was wont to borrow.

I've tried it oft, and given o'er the task;
And hopeful too as any woman that e'er tried,
Or man either, e'en though he wore the mask,
That Satan wore to set our mother Eve beside
Herself enough to think, and curious ask,
Why she was ever made, or ever tied
Upon this curious revolving ball,
And where her crazy actions brought "the fall."

That was the fearful thing in nature's God—

The giving to that simple child the power
To tread where his own mighty footsteps trod!
The gloomy clouds o'er all mankind since low'r,
And lay their stubborn heads beneath the sod!
His grandchild might have bloom'd supernal flow'r,
Of all the grand and awful fabrication,
Nor need redemption nor regeneration.

Perhaps such questions we've no right to put,
Unto the Framer of the Universe;
To our inquis'tiveness his doors are shut,
On dit—and recommended well of course,
By the theologist in pious hut,
With clearing small around—or what is worse,
He lives beyond where busy thoughts do center,
And so beyond the pale where gossips enter.

But then theology is not the theme
To claim my present labor or my time.
We'll then retire to Mary's broken dream;
Although the task is hard, in changing rhyme,
To waft her smoothly down life's whirling stream,
And land her safe in any pleasant clime,
When knowing that her dearest hopes have pal'd,
And every sweet anticipation fail'd.

My muse has sung the task, a hopeless one,
To offer balm to one in woe not found;
Or being found, it meets a chronic tone.
To raise the sadden'd brow when sorrow crown'd,
Is near a failure ere the task's begun;
'Tis throwing straws to one already drown'd;
The light frail things are in a feeble clasp,
And serve no other purpose than to grasp.

You may try this, or that, or other thing,
And find each move is not responsive met,
Except to prove abortive, and to fling
Your kindest purpose back, from efforts set
In bounds of common sense—another ring,
Within whose compass many chafe and fret.
To try to lead a moody woful mind—
'Tis but a task where blind must lead the blind.

"When fate—the dark-brow'd Mistress—lays her hand

With heavy weight upon a mortal wight,
It is as if King Terror's deadly wand
Had swept along, and wither'd left and right;
Or like one's bark, left on a sullen strand,
Where soundless waters rise in fury's might,
Rock on and on, in sullen moaning clash,
Unmindful of the human wrecks they dash.

And Mary—still I hear her stifled moan,
As vainly the letter she tried to read,
The anguish of her low, distressful groan,
Would cause a heart of adamant to bleed.
It seem'd her brain were like a flaming stone;
Her heart a torn and bent and broken reed;
And such a look of wan and woeful pain!
God grant me such a likeness ne'er again."

Next day they bore her to her city home,
With life enough scarce left, her frame to bear;
All had been swept away like wild sea foam,
And nothing left but a fond mother's care,
To nurse away the fever which had come;
A fit attendant of her woes, and share—
A heated languor with sufficient breath
To hold her just within the porch of death.

CANTO III.

ut turn we now to other scenes than these,
At least awhile, and take a cheerful look,
As trav'ler looks from sand to greenleaf trees,
And 'neath the shade where runs the babbling brook,
Who doffs his hat to the refreshing breeze,
And reading nature as a living book,
He feels her smiling, in its joyous glim,
Has such a sweet affinity for him.

Life should not be all terrors—nor its charms
Be life-long raptures, or unending songs;
When both are blended, each alike disarms;
Nor constant good nor ill, alone belongs
To life—one only brings us moral harms,
And on our poor humanity, great wrongs;
For by the constant sameness would man's deeds
Defeat all progress that to greatness leads.

So from the gloomy picture drawn above,
We'll turn away and find a brighter side.
Let not the drooping Mary die of love,
As many storied ones have lov'd and died;
Nor *solitaire* in heart forever rove;
But bid her all life's changes firm abide;
Her case is hom'opathic, we discover—
Similia similibus curanter.

Months came and went, and still she linger'd on,
At home by the sea. Its solitary shore,
Was travers'd often by her step alone;
Somehow the dark sea's surging, sullen roar,
Brought quietude, when elsewhere she found none;
Her daily lone walks there were many score.
Philosophy no pedagogue can teach
Is sometimes found upon a lonely beach.

The saddest, yet the sweetest melancholy,
Inspires a feeble, slow reviving frame,
If but allow'd to steal from heartless folly,
Away from all that bears the social name;
And 'neath the spreading evergreen sea-holly,
Check down the fires of disappointment's flame;
And thereby give the thoughts a purer turn,
And cool the heated caldron where they burn.

In such a state, the bubbles we pursue
Seem but the vaunt of sickly strength and pride;
We're on our way, a weary wand'ring through,
With fallen hopes flung losely on the tide
Of morbid aims—whose almost crying hue
Is pencil'd by dull care. Nor can we hide
The care-worn hues with careful toilet hands;
The glass of life drops slow, but sure, the sands.

The tameless passions frequent in the breast,
Are like the molten waves of Ætna's fire;
Knowing nor years, nor months, nor weeks of rest—
Tho' some there are to better things aspire—
Impulses whatsoe'er, not one repress'd;
Their every song's a ceaseless never tire,
And no reflection in its secret springs,
On what demands it 'mid a thousand things.

Her letters oft were fill'd with moaning words,
Whose sadden'd tone inspir'd one's heart with awe;
E'en her description of sweet singing birds
Did moan—and so did all she heard and saw.
Home-sheltered—like the flock the shepherd herds—
Where she would fain from prying eyes withdraw,
There dead monotony did reign and sigh,
That tells how near the fount of tears is dry.

And yet me thought her grief had soften'd down
More in that calm inertia—settled state—
Whose features wore, nor smile, nor cheer, nor frown;
A kind of understanding with Dame Fate,
That wreathing thus her brow with sorrow's crown,
Were far less sad than when 'twere wrought too late
To wear its jagging ugly thorns, and give
A single farthing for such life to live.

At length news came—how Arthur Wildbent had
So kindly driven her along the strand;
And air-improv'd, it made us all so glad.
That last reunion, while the Melrose Band
Discours'd sweet music, she had been less sad;
That once she gam'd croquet with cheerful hand,
And beat—but beat old Melancholy better,
And hence she boasted of it in her letter.

She frequent made the balmy ev'ning drive
Adown the beach, so like a sanded floor;
Where white-capp'd waves, that seem'd almost alive,
Did chase each other to the shining shore,
Buzzing like restless bees within the hive;
Or, like the porpoise, rolling by the score,
Tho' gathering nothing in their briny splash,
Except the wat'ry pearls to shore they dash.

'Tis true, she always miss'd good Charley when,
The ev'ning throngs were wont to congregate—
The greatest press was on her spirits then—
Howe'er they whirl'd in dance, or stood, or sat,
Not one amid the gallant crowd of men,
Could for *his* absence ever compensate,
Unless it might be Lewis—who to-day
Reminded her of *him* who'd pass'd away.

Life had its pleasures, beauty had the world;
Tho' fewest of them had been brought to bear
Upon a destiny like hers, so furl'd;
Scarce naught of either could be painted there;
All romance so remotely had been hurl'd,
She lik'd some work of lonely quiet, where
By somber daylight, or by flick'ring taper,
Her inburst feelings she could note on paper.

Life's *new* sensations are but few and precious—
Thus speaks some writer of some wondrous cave;
It may be Mammoth, with its caverns spacious;
Whose floors, obliv'ous, Leth'an waters lave;
And when we wander thro' them, strange refresh us;
Most surely do, if we but catch and save,
For rarest of all rare delicious dishes,
A string full of the tiny eyeless fishes.

But where find we in life, sensations new?
Such as have never yet been told, we mean.
Of Such, me thinks indeed, the number's few;
And may not reach one even in a dream.
'Tis true, we often all the *old* renew,
Which to one's own sensations new may seem;
And yet they but repeat—so we believe—
All those once told by Adam to his Eve.

Yes, so far told, as then it could be done,
In the beginning time of this world's ways—
Thro' which their course to pick, they'd just begun—
But not express'd in such poetic lays,
As down the rippling tide of language run
The thought and feeling of the later days;
And more's the pity—since their employment
Seems but a very circumscribed enjoyment.

"'Tis now two years since Charley pass'd away,"
She wrote, "and I have liv'd for him as true
As any one who keeps her wedding day;
'Till lately I have somewhat chang'd my view;
'Tis not so well for one to mourn away;
The news, sweet friend, the news I'll break to you—
Unless this letter meet with a miscarriage—
And own to you, again I think of marriage.

"And you may guess my choice, the favor'd one;
He's more like *him* than any I have met,
Indeed, than any I have ever known;
And this is why my heart is on him set;
I can not always pass my life alone,
The choice I feel that I shall ne'er regret;
You know him well, and know I never can—
Search o'er the earth—secure a better man.

"Somehow I feel myself so sadly chang'd,
I'm scarce the same you knew in days of yore;
My sorrow hath so much my mind derang'd,
Instead of twenty years, I feel fourscore.
From youthful pleasures I'm so far estrang'd,
Myself doth seem a matron grave, and hoar
With silvered front, and seems a grave surprise,
That I'm not trying to repair my eyes.

"I aim to do my duty as I ought,
And of his life be crowning joy and bliss,
That Lew may realize how ev'ry thought,
From wedding day to death, shall be all his;
And ev'ry purpose shall be truly taught,
That wifely love should point alone to this;
So in our union we may find repair
For all the sorrows both have had to bear."



Transcriber's Notes

Obvious punctuation errors repaired.

Archaic spellings unchanged: hight, vail, drouth.

P. v: Apppetites and Temper -> Appetites and Temper.

P. viii: The Thirty Neroes -> The Thirty Neros.

P. 23: a cotemporary of the deceased -> a contemporary of the deceased.

P. 71: Title added "TEXAS OATH OF OFFICE".

P. 101: execept a few stanch Union men -> except a few stanch Union men.

P. 121: bowed the stanger's bow -> bowed the stranger's bow.

P. 133: Matamoros -> Matamoras.

P. 176: betwen each pair -> between each pair.

P. 200: heathfulness -> healthfulness.

P. 222: spontanieties -> spontaneities.

P. 223: mighty footstops -> mighty footsteps.

*** END OF THE PROJECT GUTENBERG EBOOK FIVE YEARS IN
TEXAS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.